

# Racial Resentment and Public Opinion on the Death Penalty

Elements in Race and Ethnic Politics

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**Abstract:** Racial disparities have been documented in many aspects of the death penalty throughout the US. We document the powerful roles of race and racial resentment in explaining who supports and who opposes capital punishment. We review the literature on support for the death penalty, add new analyses at the individual level, and show the consistent and substantial impact of race and racial resentment, which are considerably more important than variables sometimes thought to drive support for the policy, such as religious tradition, ideological orientation, or residing in the South. We also develop a set of yearly state-level estimates of public opinion on the death penalty and racial resentment. Both nationally and at the state level, public opinion, racial resentment, and death sentencing are tightly connected. Thus, we show a powerful level of responsiveness to public opinion, but also that this opinion is tainted by racial animosity toward African-Americans.

**Keywords:** Public opinion; responsiveness; death penalty; racial resentment

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# **1. Race and Capital Punishment**

This Element demonstrates that public opinion is an important driving force in the use of the death penalty, and that support for capital punishment is strongly connected with White racial animosity toward African-Americans. Capital punishment is a highly racialized element of the criminal legal system, with race-of-victim effects particularly salient in explaining “who gets death” (e.g., Baldus et al. 1990; Donohue 2014). Scholars have shown a historical through-line from slavery to convict-leasing to lynching to the death penalty. Indeed, the decline of lynching in the South in the early 20<sup>th</sup> century was connected to the rise of judicial executions, with political leaders explicitly arguing that lynchings “outside” the courts should be replaced with procedures “inside” that would have greater legitimacy (Whitaker 2008; Steiker and Steiker 2016). To this day, killers of white female victims have the highest rate of death sentencing, though white females have relatively low rates of homicide victimization. In addition, Black men are sentenced to death at the highest clip, particularly when the victim is a white female compared to a Black man, for example (see Baumgartner et al. 2018). These racialized inequalities are well documented, and we will not be adding significant new evidence on the question of the impact of race on the application of the death penalty; our focus is specifically on the role of racial attitudes in driving public support for the death penalty.

It makes sense, given the strong historical linkages between race and the death penalty, and Americans’ racialized understandings of crime in general (see Peffley and Hurwitz 2010), that public opinion on the death penalty would be tightly connected with attitudes about race. We propose here a deep dive into a limited topic: How we can understand public support and opposition to the death penalty, and what are the roles of race and racial attitudes? Scholars of the death penalty have amply documented the racial dynamics that affect its use. The question

for us here is whether members of the public see this as a bug or a feature. That is, for those individuals who support capital punishment, do they do so in spite of some reservations about the possibility that race may be a part of it? Or do they see the racialized dynamics of the application of the death penalty as a demonstration of its value? Similarly, for those opposed to capital punishment, is this because they have certain beliefs about the policy itself, or is it connected to broader feelings about race and racial fairness in the criminal legal system? Race and crime are tightly connected in American culture and media portrayals, so it certainly seems plausible that some people's "tough-on-crime" or "pro death-penalty" attitudes might be connected to racialized thinking. By the same token, some attitudes against the death penalty, or "tough-on-crime" policies in general might be due to concerns about racial imbalances in the legal system.

We explore the drivers of public opinion on the death penalty and show that opinion is just as racialized as is the policy itself. Employing hundreds of opinion polls stretching back to 1936, as well as data from the American National Election Study (ANES) and the General Social Survey (GSS) spanning 32 years, we undertake a broad empirical investigation into support for the death penalty over time. (We also look at the Collaborative Multi-racial Post-election Survey [CMPS] in Appendix D.) We find that support for the death penalty is driven primarily by respondents' race and racial attitudes. Support is highest among those who are White and those who harbor higher levels of racial resentment toward Black individuals. Of course, other factors also contribute (gender, religiosity, and authoritarianism, to name a few). But we find that race and racial animosity are consistently the primary factors driving support for the death penalty. These findings are so striking, and the power of racial resentment in explaining death-penalty attitudes is so strong, that we have adopted this finding as the theme of this entire research project. It's just that powerful, consistent, and strong.

The remainder of this Element is divided into 11 sections, as follows. In Section 2, we look at the dynamics of public opinion over time and show its close connection to actual usage of the punishment.

Section 3 moves to an individual-level assessment of what drives support. We begin with a systematic review of the literature, identifying approximately 20 studies that have presented original survey-based results predicting opinion on the death penalty with various predictor variables. Our evaluation of this literature shows some consistency in findings, but also serious limitations associated with a lack of replication. Each study seems to change the theory, perhaps only to make a “new” statement.

Measurements are similarly inconsistent as scholars innovate, develop new measures, or simply choose to use a different operationalization than others have previously used. Some of this may be due to data availability and the nature of large-scale survey research, but some appears to be due to scholarly incentives to innovate rather than to replicate. It is therefore difficult to follow trends and identify a consistent model based on the published literature.

We develop our own model in Section 3 as well. Using the 2000 National Election Study, the survey we identify with the greatest coverage of relevant measurements, we show the most complete model possible, unifying many aspects of the disparate literature. This model demonstrates that race and racial resentment are among the most powerful predictors, in a model that simultaneously includes controls for ideology, authoritarianism, religiosity, religious denomination, and other socio-demographic predictors.

In Section 4, we explore the consistency of our predictive model of death-penalty support over time. It is clear that aggregate levels of death-penalty support have changed dramatically over time, consistent with Enns’ (2016) analysis of public punitiveness generally. Did the coefficients change? Did aggregate levels of racial resentment change, driving the decline in public opinion support for the punishment over time? Or are there period-effects that do not relate to changes in the predictive power of individual characteristics? We demonstrate that race and racial resentment have remained consistent predictors of death-penalty support over time. (Race actually declines as a predictor later in the period of analysis, but racial resentment increases at that same time, and their combined impact remains strong.)

Section 5 dives into the main findings from our studies of individual attitudes: Racial Resentment. We explore its meaning, consistent and powerful connection with opinions on capital punishment, and its additional predictive power even in models controlling for partisanship, ideology, race, gender, income, authoritarian personality, and other factors. We demonstrate not only its powerful connection to death-penalty attitudes, but we show that this connection is stronger than virtually any other variable in the ANES data collection. Then, we move to showing that it predicts death-penalty attitudes uniquely well by comparing death-penalty attitudes with seven other policy attitudes. Racial resentment does indeed predict other racialized policy attitudes (e.g., support for welfare programs, crime and policing). But the connection is strongest with the death penalty.

In Section 6 we explore racial resentment (sometimes referred to as “symbolic racism” with other measures of hostility or affect toward African-Americans. This demonstrates that racial resentment is the best indicator of racial hostility available to us in the ANES, and that it correlates more strongly with other measures of hostility than with measures that tap into American values of individualism, hard work, and moral traditionalism. In sum, it’s about racial hostility.

Section 7 moves to a detailed discussion of support and opposition to the death penalty among Black and Hispanic Americans. While Black Americans show less support for capital punishment than White Americans do, the level of support is nonetheless considerable. But the predictor variables for Black and Hispanic individuals are not the same as in the general population, suggesting a special role for racial resentment among White members of the public.

In Sections, 8, 9, and 10, we move to assessing state-level support for the death penalty and the relative proclivities of the different states to impose sentences of death. Section 8 compares the 50 states according to their overall levels of support for the death penalty as well as racial resentment, showing only modest correlations at the state level. Section 9 develops state-year measures of support for the death penalty and racial resentment, using multi-level regression with post-stratification (MRP) techniques.

Section 10 then shows the tight connections between our two opinion measures: death-penalty support and racial resentment, and their mutual connection to the actual numbers of death sentences imposed in each state over time. These analyses show the racially contaminated nature of public opinion on the ultimate punishment; at the aggregate level, what politicians might be paying attention to cannot be distinguished from racial resentment. These sections demonstrate that public opinion matters. In those time periods and in those states where support is high, death sentences are high. Where support declines, use declines. So, we are not analyzing only abstract ideas about public opinion for their own sake; these attitudes have demonstrable life-and-death consequences.

Section 11 concludes by evaluating our results in light of the powerful effects of racial animus in driving public opinion on the death penalty. While for most public policies it would seem normatively desirable to see a strong linkage between public policy and public opinion, this particular case shows that opinion is tightly connected to racial animus, prejudice, and stereotypes. These characteristics render opinion in this case a poor source for public policy responsiveness. In this case, the opinion-policy linkage is contaminated by the racial hostility that we document.

This Element reports the results of a highly empirical research program, and many of the technical details cannot fit into the space available. Further, we hope to reach audiences who are more interested in the substance of our findings rather than the statistical methods. Therefore, we have focused on the substance, and we have compiled an extensive set of appendices with all the data associated with each table and figure presented in the book as well as further analyses, alternative specifications, and robustness checks that show the consistency of the results presented in the main text compared to other possible ways of presenting or analyzing the data. We welcome those who might want to use our data, explore the results in greater detail, or understand more about our project to explore our website and appendices at <https://fbaum.unc.edu/books/DPOpinion/DPOpinion.htm>.

## **2. National-Level Trends in Public Opinion and Death-penalty Application**

### ***2.1. A National Index of Public Opinion***

Our first approach on the issue of dynamics is to compile all available national public opinion surveys and create an index of support for the death penalty, using the Stimson dyad-ratios algorithm (see Stimson 1999, 2015, 2018). Our University of North Carolina political science colleague Jim Stimson developed this methodology to allow assessment of trends over time using the maximum possible number of public opinion surveys. It extracts a single annual value from hundreds of survey estimates over time, combining the results of questions using different wordings (as long as each is repeated). We identified 629 questions about the death penalty posed in national surveys of US adults by searching the Roper iPoll database

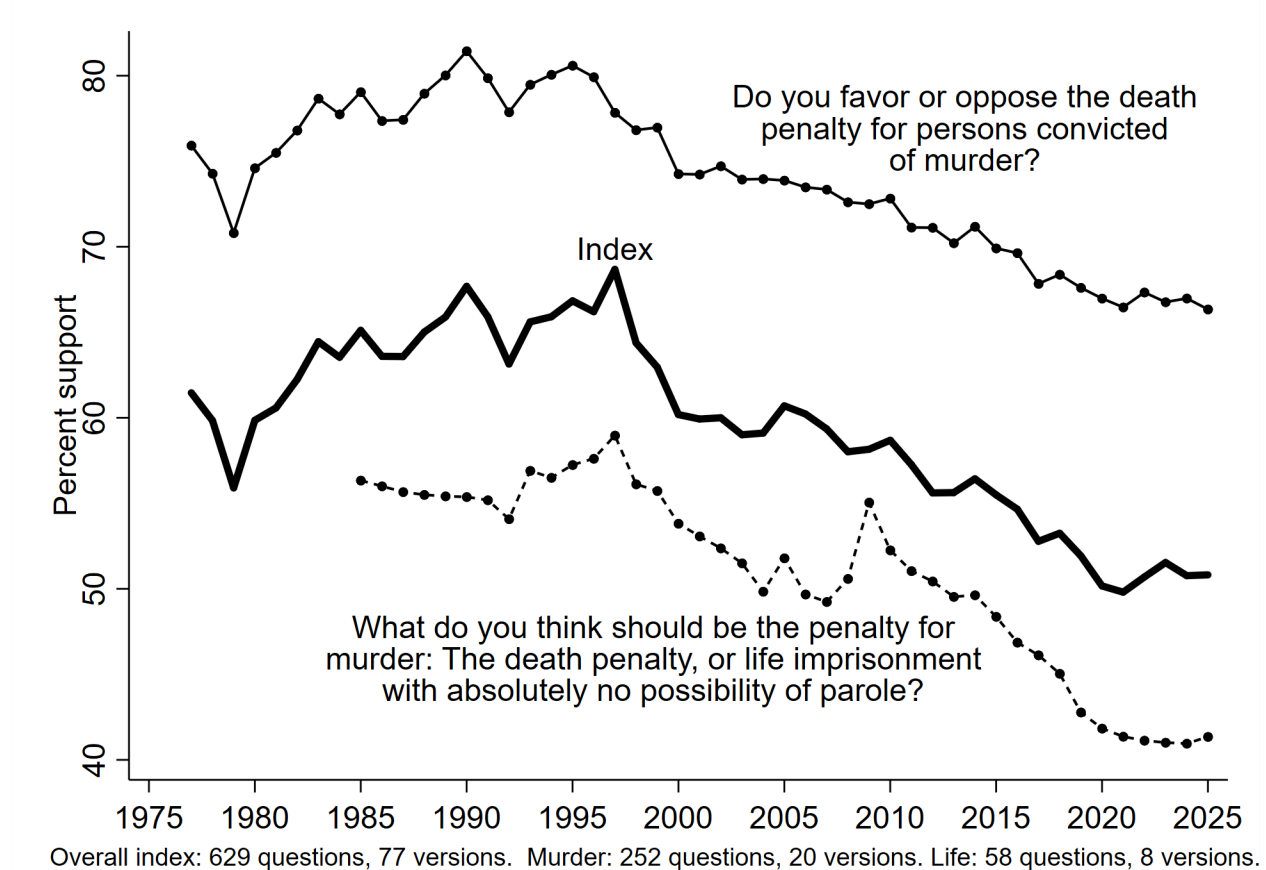
(<https://ropercenter.cornell.edu/ipoll/>).<sup>1</sup>

Of course, different questions lead to different results; question wording matters. Stimson's algorithm extracts, however, the common dimension of movement over time. When the same question is posed at least twice, we can see whether public opinion moved in the direction more accepting of the death penalty, or in the direction of greater opposition. The program also weights each individual survey item by the degree to which its movement over time corresponds to the same factor as the resulting index, using multiple iterations. Figure 1 shows the index as well as two of the questions that are most commonly posed: the classic "Gallup murder" question ("Are you in favor of or opposed to the death penalty for persons convicted of murder?"), and the "Gallup life" question ("What do you think should be the penalty for murder--the death penalty or life imprisonment with absolutely no possibility of parole?").

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<sup>1</sup> See Appendix A for more information about the construction of our index of public opinion.

Figure 1. Three opinion series.



Source: Calculated from data retrieved from Roper iPoll.

Figure 1 illustrates how question wording matters. While the “Life” question was not posed until 1985, responses to it are, on average, 23 percentage points lower than those to the “Murder” question. The “murder” question was posed 252 times by 20 different survey houses; the “life” question, 58 times by eight different survey organizations. As Figure 1 makes clear, while there are clear and consistent question wording effects, trends over time are similar; both series have been declining since the mid-1990s, though they increased in earlier years.

The overall index reflects the common movement extracted from 629 separate questions (including 77 different questions and polling organizations) posed at least twice to national

samples of US adults. This provides the most complete information possible about the movement of opinion over time.

The value of the Stimson dyad-ratios algorithm is that it allows one to use all the available information, resulting in a more accurate assessment of the state of public opinion compared to using any single question series. A complication of the method is that it combines answers to questions that, while all on the topic of the death penalty, use different question wordings. Some ask about whether the respondent supports the death penalty for particular individuals, such as Saddam Hussein or Timothy McVeigh. Some ask about generic scenarios such as the death penalty for female offenders, offenders below age 18 or 21, offenders with severe mental illness, or offenders who participated in a crime but did not personally kill the victim. Responses to these questions naturally differ quite substantially. Therefore, the numeric value of the index is difficult to interpret. In the analysis below, we assess only whether the index is going up or down, and by how much. This avoids any misinterpretation of the results and is a conservative methodology, given the various questions wordings used.

Our appendix offers a version of the opinion index stretching back to 1935. Surveys on the question of the death penalty became quite common after the 1972 *Furman* decision brought the issue to the political agenda. In the long-term, opinion was at its minimum value in 1966, and Figure 1 shows it increasing dramatically until reaching a peak in the 1990s and declining dramatically through the most recent years of data collection. The decline from 1997 to 2025 is almost 20 points, as was the rise from 1972 to 1990. In Figure 2 (below), we present the opinion index set to an average value of zero for the 1972 to 2025 time period. A key consideration in the death penalty is simply the overall trend apparent in Figure 1: Opinion grew more supportive throughout the 1970s and 1990s and reached a peak in the mid-1990s. Then it declined

dramatically. This is consistent with Peter Enns' assessment of public opinion "punitiveness" in general (see Enns 2014, 2026).

## ***2.2. Public Opinion and Death Sentencing at the National Level***

The death penalty itself has a long history in the US, as it has been used since colonial times and has long been a part of US history and legal tradition. The US Supreme Court ruled in 1972 that existing laws were invalid because they did not sufficiently limit the death penalty only to the most egregious crimes, because, in practice, they allowed "capricious and arbitrary" use (see *Furman v. Georgia*, 1972). This monumental ruling set in motion a political movement throughout much of the country, particularly in the South. At the time of *Furman*, approximately 700 individuals were under sentence of death, and all saw their sentences reduced to life in prison (generally, with the possibility of parole). In 1972, 41 states plus the District of Columbia, the federal government, and the US military had capital punishment. All of these systems were invalidated, but the states quickly acted to reinstate their laws. The states passed new laws with guarantees of fairness and proportionality that they hoped would meet the new standards. By 1983, 40 jurisdictions had re-established. Starting in 2006, with New York (by judicial action) and New Jersey (by legislative action), several states have abolished in the past 20 years, so that as of January 1, 2026, there were 29 retentionist jurisdictions (27 states, the military, and the federal government) and 24 abolitionist ones (23 states and DC). In addition to these movements away from the death penalty, three states (Ohio, Pennsylvania, and California) have announced indefinite moratoria on executions (though these states retain the death penalty and continue to sentence individuals to death). (For more information on these trends, see Baumgartner et al. 2018, Chapter 2, or DPI 2026c.)

While the US routinely experiences 10 or even 20,000 homicides per year, the death penalty has never been a common response to homicide. The peak number of executions annually in US history was in 1935 when 197 executions took place; in the “modern period” since *Furman*, the maximum number is 98 executions, in 1999. Looking at death sentences in the period since 1972, 328 death sentences were imposed nationally in 1986, the maximum annual value for the entire modern period. In 2025, just 23 death sentences were handed down across the country, a decline of over 90 percent.

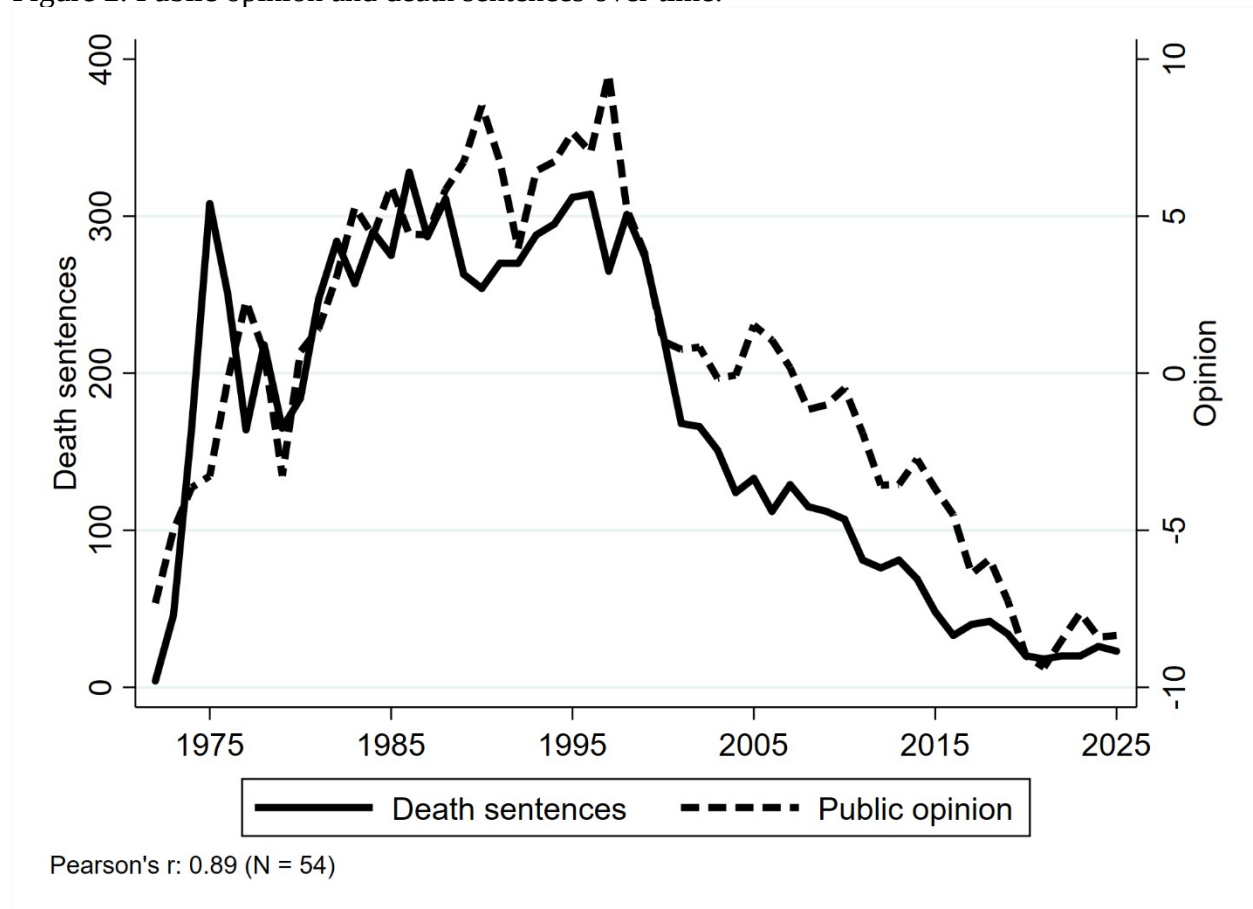
These relatively low numbers of death sentences across the country mean that, when broken down by state, the numbers can be very low. Many states have imposed fewer than 25 death sentences across the entire period since *Furman* (so, less than one every-other year); three states, on the other hand, have condemned more than 1,000 individuals: Texas, California, and Florida. The death penalty, in sum, is rarely used (compared to the large numbers of homicides), has fluctuated substantially over time, and is geographically specific, with some states (and counties) being more likely to impose it than others. (On these trends generally, see Dieter 2013, Garland 2012, Garrett 2017, Steiker and Steiker 2016).

In spite of the relative rarity of its use, the death penalty is of course highly symbolic politically and has been seen as a potent signal of a politician’s “tough-on-crime” bona fides. In recent years, the parties have divided on the issue, a phenomenon we will explore in greater detail in the sections below. Increasingly, Democratic elected officials have moved away from capital punishment as it has been associated with errors (e.g., convicting the innocent) and racial bias. When Virginia abolished the death penalty in 2021, it not only became the first former Confederate state to do so, but it also responded to allegations of racial bias in the history of its use of the death penalty. The vote to abolish, however, was virtually by party block, with no

Republicans in the lower house voting to abolish and three Republicans joining the Democrats in the Senate to send the legislation to Governor Ralph Northam, a Democrat (see DPI 2026d). In sum, the politics of capital punishment have changed substantially from the 1980s and 1990s, when both parties were strongly in favor, to the 2020s when use is much lower and the Democratic Party has moved away from it substantially.

Given the political symbolism associated with the death penalty, it may not be surprising that we see a remarkable responsiveness in the case of the death penalty, with actual using of the punishment tracking very closely the state of public opinion. Figure 2 shows how public opinion and use of the death penalty are tightly connected over time. The dotted line shows the index of public opinion just described, from 1972 to 2025, the most recent year available. Because the values in the index are based on responses to 77 different questions, each of which has a different interpretation, we set the mean value of the series to zero and pay attention to whether opinion is moving up (toward more support for the death penalty) or down (against). The solid line shows the number of death sentences imposed nationally (data drawn from Baumgartner 2026).

Figure 2. Public opinion and death sentences over time.



Support for the death penalty reached its lowest point in 1966 (see our full series in Appendix A) and was still low in 1972 (-7.3 in Figure 2) when the US Supreme Court invalidated all existing death sentences in the momentous *Furman v. Georgia* decision. Just four death sentences were imposed that year, as states took time to re-write their statutes after the June 29, 1972 Court decision. Opinion quickly began moving in the pro-death-penalty direction, perhaps in response to the Court's decision, or perhaps driven by elite rhetoric sharply critical of the decision (see Garland 2005, 2012). By 1980, more than 1,300 death sentences had been imposed, and public opinion had moved into positive territory, above its average value for the entire time period. Opinion continued rising, reaching a peak of +9.5 in 1997, before beginning a long decline. Death sentences during the 1980s and 1990s were regularly on the order of 300 per year, reaching peaks of 328 in 1986 and 314 in 1996. They, too, then began a long decline, falling below 100 in 2011 and below 50 in 2015 to end the series with just 23 death sentences in 2025. Public

opinion reached its lowest point, -9.36, in 2021 and remained low through the end of the series in 2025 (-8.4).

Overall, the correspondence between the two variables depicted in Figure 2 is striking; the statistical correlation, 0.89, suggests a powerful connection. It is rare to see a degree of public opinion responsiveness as strong as in Figure 2. The decision by a court to impose a sentence of death reflects the actions of many state agents, including District Attorneys (generally elected at the local level) judges (often but not always elected), and members of the jury (reflecting community values). No one takes the decision lightly, and the absolute numbers of death sentences even at their peak values, just over 300 per year, are a tiny fraction of the numbers of homicides (often more than 20,000 per year), suggesting a clear understanding of the severity of the punishment. It seems fair to say that the death penalty is a remarkable example of public-opinion responsiveness. As the public became more punitive in the 1970s, 1980s, and 1990s (see Enns 2014, 2016), so were there more death sentences. As the public moved away from those views, death sentences declined dramatically.

Politicians such as Michael Dukakis and Bill Clinton have paid the price for being out of touch with national-level public opinion on the death penalty (Dukakis in his televised debate with George H.W. Bush in 1988; see Simon 1990) or used their demonstrated support for the policy to signal their commitment to a popular “tough on crime” stance (Clinton in 1992; see Fournier and National Journal 2015). President Trump carried out 13 executions at the end of his first term (including in the days leading up to Joe Biden’s inauguration, the height of the Coronavirus pandemic; see Tarm 2023), and Governor Ron DeSantis of Florida has carried out an extraordinary number of executions in 2025 and 2026 (see Colloff 2026). Of course, this has become less common in the decades since the late-1990s as public support has plummeted, raising the question of whether Trump and DeSantis have miscalculated or whether the issue is highly polarized and such a decision is an effort to mobilize a certain base of an electoral constituency rather than a broad appeal to the values of most voters.

We explore more about public opinion responsiveness by looking at trends similar to those just discussed separately for each state in Section 9. For now, the points are simple: First, use of the death penalty has varied substantially over time during the “modern” period (e.g., post-*Furman*), with some periods showing over 300 sentences per year and others fewer than 30. Second, public opinion in support of the death penalty has varied considerably over time as well. Third, the two series show a remarkable connection. When one goes up, so does the other; when one declines, so does the other. We can assess these connections in greater detail by moving to the states. In order to evaluate the linkage between opinion and use of the death penalty over time at the state level, we must first develop new state-level measures of public opinion over time; we turn to that next.

### **3. Who Supports the Death Penalty and Who Opposes It?**

What drives public opinion on the death penalty? The death penalty of course has a long history in our country and is mentioned specifically in the Constitution and Bill of Rights. It was clearly an expected part of the legal framework envisioned at the time when the Constitution was written. The 5<sup>th</sup> Amendment refers specifically to “capital, or otherwise infamous crime” and to protections for individuals “put in jeopardy of life” or to be “deprived of life”; and the 14<sup>th</sup> Amendment prohibits a state from “depriv[ing] any person of life” without due process, suggesting that depriving one of life by execution, with due process is certainly envisioned. In sum, the US has a long history of capital punishment, and many religious traditions are accepting of it. At the same time, capital punishment has always been rare, and many religions oppose it. How do individuals make up their minds about this question? We explore the sociological, demographic, and attitudinal factors that make some individuals support the death penalty and some oppose it. We begin with a review of previous studies and then we develop our own model of support and show its dynamics over time.

### ***3.1. Previous Literature***

We are hardly the first to study who supports and who opposes capital punishment; Gallup Poll questions on the topic go back to the 1930s, and our analysis in the previous section identified 609 separate survey questions in the Roper iPoll collection. We conducted a systematic search for original survey-based research in both Google Scholar and UNC's University Library System for any articles, book chapters, or data sets containing information on the following search terms: ("death penalty", punishment, "criminal justice", or crime) AND (race, "racial resentment", attitudes, or "public opinion"). This generated a list of 28 possible studies. We then narrowed the list of works to include only articles reporting the results from originally conducted public opinion surveys showing statistical models predicting support or opposition to the death penalty with data collection in the period of 1976 or later. This led to the exclusion of works that reported only secondary information about public opinion (e.g., summaries of other studies), the dynamics of public opinion over time (e.g., Enns 2014, Baumgartner et al. 2008) or which discussed other aspects of the debate about the death penalty.

Table 1 provides a summary of our findings. The Table lists 17 empirical studies providing statistical estimates of support or opposition to capital punishment. The studies are listed in order of how many of the predictor variables listed were included in the model, and the predictor variables are also listed in descending order of how often they were included. The note to the Table provides the key to link the study number with its citation.

Table 1. Summary of variables included in published literature on death-penalty opinion.

| Predictor Variable                 | Study Number (see Key) |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | Number of Studies |
|------------------------------------|------------------------|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|----|-------------------|
|                                    | 1                      | 2  | 3  | 4  | 5  | 6  | 7  | 8  | 9  | 10 | 11 | 12 | 13 | 14 | 15 | 16 | 17 |                   |
| Gender                             | x                      | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  |    | x  | x  | 16                |
| Education                          | x                      | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  |    |    | 15                |
| Ideology                           | x                      | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  |    | x  | x  |    | x  | 15                |
| Age                                |                        | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  | x  |    |    |    | 13                |
| Race                               | x                      | x  |    |    | x  | x  | x  | x  | x  |    | x  | x  | x  |    | x  | x  |    | 12                |
| Socioeconomic Status               | x                      | x  | x  | x  | x  | x  | x  | x  |    | x  | x  | x  | x  |    |    |    |    | 12                |
| South                              |                        | x  | x  | x  | x  | x  | x  |    | x  | x  | x  |    |    |    |    |    |    | 9                 |
| Fundamentalist Christian           | x                      |    | x  |    | x  | x  | x  |    | x  | x  | x  |    | x  |    |    |    |    | 9                 |
| Partisanship                       | x                      |    |    | x  |    |    |    | x  | x  |    | x  | x  | x  | x  |    |    |    | 8                 |
| Perceived Crime Rates              |                        | x  | x  |    |    | x  |    | x  | x  |    |    |    |    | x  | x  |    |    | 7                 |
| Urban                              |                        | x  | x  | x  | x  | x  |    |    |    | x  |    |    |    |    |    |    |    | 6                 |
| Anti-Black Stereotypes             | x                      | x  |    | x  |    |    |    | x  | x  | x  |    |    |    | x  |    | x  |    | 6                 |
| Religion                           | x                      | x  |    |    | x  |    | x  |    |    |    |    |    | x  |    |    |    |    | 5                 |
| View on Punishment                 |                        |    | x  |    |    |    | x  | x  |    |    |    |    |    |    |    |    | x  | 4                 |
| Authoritarianism                   | x                      | x  | x  |    |    |    |    |    |    |    |    |    |    | x  |    |    |    | 4                 |
| Perceived Racial Bias in CJ System |                        |    |    |    | x  | x  |    |    |    |    |    |    |    |    | x  | x  |    | 4                 |
| Racial Resentment                  |                        |    | x  | x  |    |    |    |    |    |    |    |    |    |    | x  |    |    | 3                 |
| Egalitarianism                     | x                      | x  |    | x  |    |    |    |    |    |    |    |    |    |    |    |    |    | 3                 |
| Moral Traditionalism               | x                      |    |    | x  |    |    | x  |    |    |    |    |    |    |    |    |    |    | 3                 |
| Marriage Status                    |                        |    | x  |    |    |    |    |    |    |    |    | x  |    |    |    |    |    | 2                 |
| Trust in Government                | x                      | x  |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | 2                 |
| Confidence in Executive Branch     |                        |    |    |    | x  | x  |    |    |    |    |    |    |    |    |    |    |    | 2                 |
| Crime Rates                        | x                      |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    |    | 1                 |
| Variables included                 | 14                     | 14 | 13 | 12 | 12 | 12 | 11 | 10 | 10 | 9  | 9  | 8  | 8  | 8  | 6  | 4  | 3  |                   |

Key: 1. Soss et al., 2003; 2. Unnever and Cullen, 2007a; 3. Stack, 2000; 4. Kam and Burge, 2019; 5. Unnever and Cullen, 2005; 6. Unnever and Cullen, 2007b; 7. Cook, 1998; 8. Peffley and Hurwitz, 2007; 9. Barkan and Cohn, 1994; 10. Borg, 1997; 11. Britt, 1998; 12. McGarrell and Sandys, 1996; 13. Grasmick et al., 1993; 14. Peffley and Hurwitz, 2002; 15. Bobo and Johnson, 2004; 16. Hurwitz and Peffley, 2005; 17. Applegate et al., 2002.

Table 1 shows several things. First, in spite of a literature going back to the 1930s, the number of published studies presenting a statistical model of who supports and who opposes the death penalty is not very large; we identified just 17 studies. Second, while the vast majority of these studies (12) include controls for such variables as gender, education, ideology, age, race, and socioeconomic status, other variables are not consistently included. The lack of consistent use of the same control variables renders direct comparison of various results hazardous at best. Similarly, some groups of variables, such as those associated with religion or religiosity are often included, but they are operationalized in different ways in various studies: Some note whether an individual is a fundamentalist Christian (e.g., by religious denomination); some ask about frequency of church attendance or the literal interpretation of the Bible, and some operationalize religion in other ways. Psychological control variables, such as moral traditionalism, egalitarianism, authoritarianism, and so forth, are also included only in a handful of studies, and those that include one often do not include another.

The situation described in Table 1 is reminiscent of that described by Baumgartner and Leech (1998) in their review of the literature on lobbying (see especially pp. 130–140). In order to meet the scholarly demands of publication in major journals, scholars are discouraged from replication. Rather, they must innovate either theoretically or in terms of methods (including measurement as well as statistical model). The result of these pressures, they wrote, was to create a literature that “grows, but does not accumulate” (17).

Of course, many of the individual studies in Table 1 are excellent; our critique of the collective literature should not be taken as a critique of any particular study. For example, Soss et al. (2003) put race and racial attitudes at the center of their analysis of White individuals’ support for the

death penalty, particularly those living in counties with more African-American neighbors.

While they make clear that attitudes on the death penalty are complex and stem from many factors, they conclude:

White Americans' preferences for the death penalty cannot be adequately understood apart from their racial component. Racial prejudice is, in the aggregate, a significant part of what white death penalty support means. Just as racial bias remains a feature of how capital punishment seems to be practiced in the U.S., so too does it continue to distort the ways white Americans think about and respond to the ultimate penalty (Soss et al. 2003, 416).

Similarly, Kam and Burge (2019) note the power of racial resentment in predicting support for the death penalty. Using a series of GSS datasets, they assess racial resentment among Black as well as among White respondents and note the particularly powerful effects of racial resentment on death penalty attitudes among White individuals (see especially pp. 779-780). Bobo and Johnson (2004) similarly state: "[T]he most consistent predictor of criminal justice policy attitudes is, in fact, a form of racial prejudice. While racial resentment does not ever explain a large share of the variation in any of the attitudes we have measured, it is the most consistently influential of the variables outside of race classification itself" (171–172). Their study involved a series of survey experiments among large White and Black samples of adults and showed that White respondents' attitudes were rarely appreciably moved by any of the framing experiments, but they were more supportive of capital punishment than Black respondents and powerfully affected by measures of racial prejudice.

Barkan and Cohn (1994) used the 1990 GSS and assessed "personal antipathy" to Blacks according to the answers to two survey questions: whether a person favored or opposed "living in a neighborhood where half your neighbors were Blacks" and "having a close relative or family member marry a Black person" (203). Controlling for racial stereotyping, political conservatism,

fear of crime, religion, education, and other demographics, they found “antipathy to Blacks” to be a powerful predictor (p. 205) of support for the death penalty among White respondents.

Peffley and Hurwitz (2007; see also a more complete treatment in 2010) conducted an original survey where they measured racial attitudes as well as those associated with the causes of crime, which they term “structural” or “dispositional.” Structural causes are those associated with poverty, access to education, policing disparities, or other social or systemic factors; dispositional causes are individual choices. They note that Whites’ support for capital punishment moves up as their attribution of the causes of crime moves from structural to dispositional (1006). Black and White individuals hold strongly different views on the causes of crime; Peffley and Hurwitz therefore explain how these racially different beliefs correlate with strongly divergent and racially distinct responses to the question of capital punishment.

Peffley and Hurwitz (2007) note that two arguments have recently dominated the public discourse surrounding capital punishment: innocence and race. Innocence concerns the possibility of executing the wrong person; this rose to prominence in the late-1990s and is reinforced each time a person is exonerated, something that has happened to death-row incarcerated individuals some 200 times now, and several thousand times including non-death row convictions (see DPI 2026b; National Registry 2026). Race is the question of whether the system is fair with regards to racial dynamics; the overwhelming evidence suggests that it is not, from Black venire-members being excused from jury service to differences in use of the death penalty based on the race (as well as gender) of the victim, to the bulls-eye when a Black male offender is convicted of killing a White female. These are not only sociological facts, write Peffley and Hurwitz; they have entered the national consciousness: “there is considerable evidence that the death penalty has become racialized in the minds of the mass public. Whites in

the United States often conflate issues of race and crime, drawing on their racial stereotypes of African Americans when thinking about punishment” (2007, 997).

Therefore, these authors conduct a simple survey experiment, and they apply it separately to Black and to White respondents in a national survey in one of the most revealing research projects on the death penalty that has been done to date. In one treatment, they asked: “Some people say that the death penalty is unfair because most of the people who are executed are African Americans. Do you favor or oppose the death penalty for persons convicted of murder?” In another, they asked: “Some people say that the death penalty is unfair because too many innocent people are being executed. Do you favor or oppose the death penalty for persons convicted of murder?” In the third or control treatment, they simply asked: “Do you favor or oppose the death penalty for persons convicted of murder?” Results were nothing less than shocking. In the control case, responses in favor of the death penalty were 65 percent for White and 50 percent for Black respondents. For those given the innocence argument, results were 64 / 34. And in the racial argument group, results were 77 / 38. That is: the innocence argument had virtually no effect on White respondents though it reduced Black support for the death penalty by 16 points (from 50 in the control group to 34 in the treatment group). In the racial argument, White support increased by 12 and Black support declined by the same amount (2007, 1002). Whereas White and Black opinion was already polarized (65 / 50) in the control group, a gap of 15 points, this gap grew to 39 points in the racialized treatment; Whites were twice as likely to support the policy as Blacks (77 / 38). They note that their results are consistent with those of Bobo and Johnson (2004) and Soss et al. (2003), reviewed above.

In one way or another, racism (even if defined as a denial of the de facto discrimination that is rampant in the justice system) surely affects many whites’ beliefs regarding this policy. But whatever the precise explanation for our finding, the results are clear—i.e., a majority of whites supports capital punishment, a majority of whites believes that high

levels of black criminality can be attributable mainly to dispositional characteristics, and a majority of whites refuses to abandon support for the death penalty despite evidence that the policy is highly flawed (Peffley and Hurwitz 2007, 1008).

Unnever and Cullen (2007a) look at the cumulative GSS data and note a 24 percentage point racial difference in support for the death penalty. More importantly, they note that those factors which correlate with support among White respondents do not so correlate in the Black part of the sample. That is, White individuals who have “high incomes, embrace conservative politics, express confidence in the government, and are religious fundamentalists” tend to be more supportive of the death penalty, but this is not true among Black respondents (147). The history of lynchings and state violence against African-Americans renders Black respondents much less trusting that capital punishment is carried out in a way that can inspire confidence; they conclude that racial differences in this policy domain are powerful and resistant to change.

Unnever and Cullen (2007b) address “White racism” directly in their study using the 2000 National Election Study. Assessing both “Jim Crow” racism and “symbolic” racism (which is the same as racial resentment as measured throughout this Element), with a wide range of control variables, including ideology, religiosity, authoritarianism, trust in government, egalitarianism, and media influence, they clearly show the power of race and racism (see p. 1289).

In sum, there is a substantial literature on individual correlates of death-penalty support. Results generally show that men, people in the South, people of certain religious groups (e.g., Protestants and evangelicals), people with lower incomes, Republicans, conservatives, people with authoritarian personalities, and people with high fear of crime tend to support it. This same literature shows that White individuals and those with higher levels of racial prejudice support it as well, controlling for all the other factors. While the literature is not designed in a way that allows direct comparison across the various studies we have found, it is clear that race, and racial

attitudes, are key drivers of public opinion on the death penalty, according to the previous literature.

We cannot assess from the published literature how any of these factors may have changed over time, however, because the studies we reviewed in Table 1 typically are not comparable with one another. Therefore, in the next section we replicate the most complete models we can construct using various large national surveys. Even here, we cannot test the exact same model because of differences in question availability. We show highly consistent results, however, and we highlight the same factors (race, racial resentment) that emerged from our study of the literature. Once that is complete, we then assess the consistency of these findings over time.

### ***3.2. Original Analyses at the Micro-level***

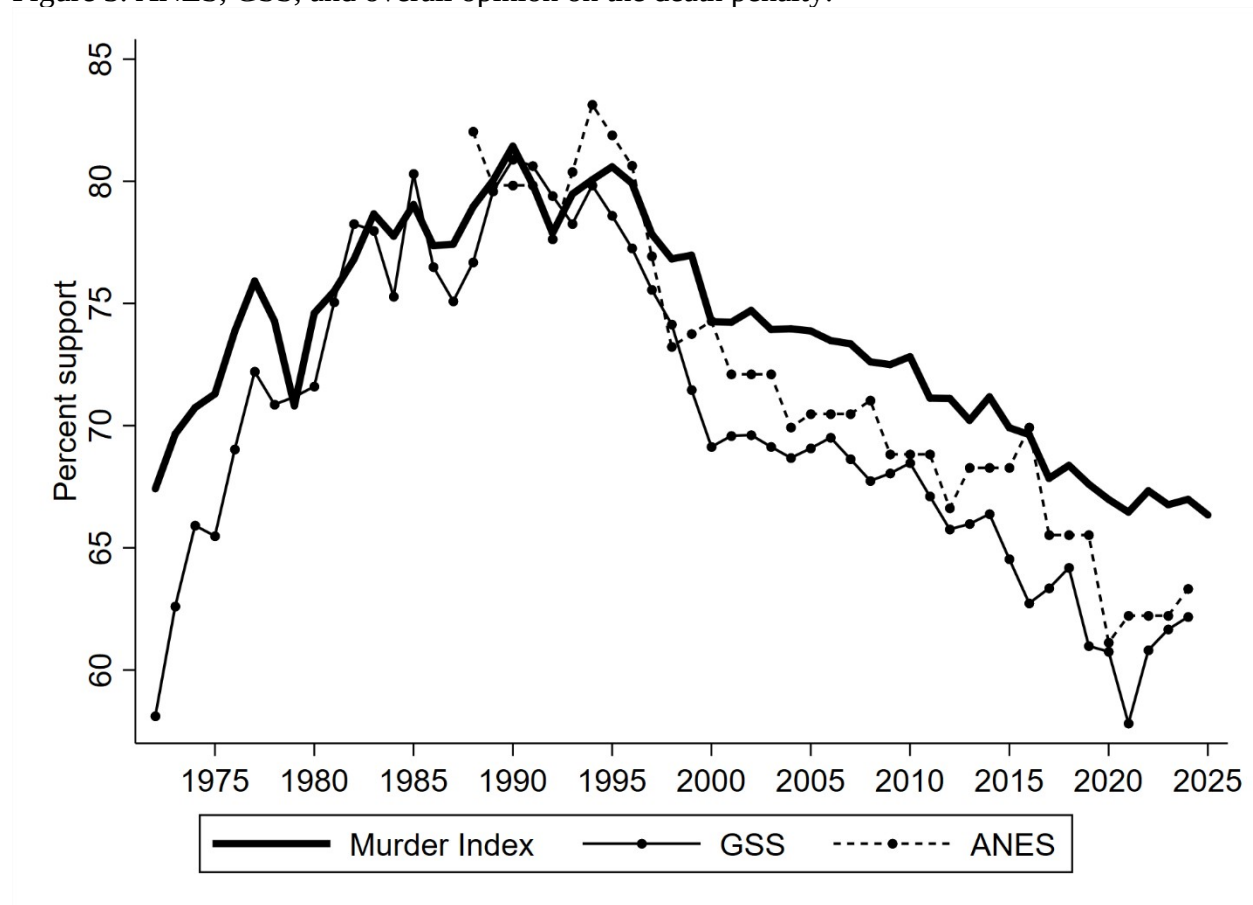
The literature on what attitudes or characteristics are associated with support for the death penalty is highly disparate. Thus, to resolve the inconsistencies in the literature and test competing theories concomitantly, we sought to develop the most comprehensive model we could construct. Any model that directly tests the independent variables identified in the literature must include a range of variables tapping respondents' demographics, political attitudes, political values, and racial attitudes. To construct such a model, we turn to the most comprehensive dataset available: the American National Election Study (ANES), the longest running time series in American public opinion research. We replicate these results to the extent possible with the General Social Survey (GSS) and other surveys. Then we explore the time-series elements of these findings, showing the consistency of the results throughout the modern era.

### ***3.2.1. Analysis of the 2000 ANES***

Before turning to a time-series analysis, we seek to construct the most comprehensive model possible in a single year. Though the ANES is valuable, time-series analyses using these data are inherently limited by question availability: Each periodic survey does not include the same questions. Thus, we turn to a representative year in our dataset, 2000, to create the fullest model possible before turning to a reduced model for time-series analyses.

The ANES makes use of the traditional “Gallup murder” question, so support for the death penalty is typically relatively high compared to other question wordings. Figure 3 presents the average level of support for the death penalty (excluding neutral and “don’t know” responses) from the ANES and with the “murder index” from Figure 1 above. Recall that that index is based on over 250 surveys asking the identical (or nearly identical) question, conducted by many different survey organizations. Figure 3 shows how the ANES compares to this larger index.

Figure 3. ANES, GSS, and overall opinion on the death penalty.



Note: the “Murder Index” in Figure 3 is the same as that presented in Figure 1 above; it consists of the answers to 252 survey administrations from 20 different organizations asking the “Gallup murder” question. The GSS and ANES series are included in that index and produce similar results.

It is reassuring to see that the ANES corresponds closely to the larger index; sampling variability for any individual year makes some differences expected, but none of the differences in the two series appear troubling. (Recall that the index is an aggregate of many surveys and so has reduced sampling variability compared to the ANES, which is just a single survey at each time point.) Further, since we will be focusing on the 2000 ANES below, it is reassuring to see that the level of death-penalty support in that year is neither at the apex nor at the nadir of the trends over time.

Moreover, the 2000 ANES data collection was conducted in a year where opinions may have been less racialized than in later years. For example, the election of the first Black president, Barack Obama, in 2008 led to people more closely associating racial attitudes with his policy priorities, such as expanding government provisions of healthcare (Tesler, 2012). The Tea Party movement that formed in response to Obama's presidency, though nominally advocating race-neutral conservative economic policies, nonetheless tapped racial animus and laid the groundwork for the later MAGA movement (e.g., Knowles et al., 2013; Parker and Lavine 2025). Thus, if racial attitudes are a strong driver of support for the death penalty as we believe, 2000 is an excellent starting point since it comes before the Obama presidency and is neither at the top nor the bottom of the trends toward and away from support for the death penalty generally.

A key advantage of the 2000 ANES is that it includes the full Racial Resentment Scale. The Racial Resentment Scale is based on answers to this series of questions. Generally, each question is answered on a five-point scale ranging from Strongly Disagree to Strongly Agree, with the index made by counting the number of times a person gives a response leaning in the direction of racial resentment. Note that in order to avoid affirmation bias, questions 1 and 3 below are posed so that "agree" leads to the racially resentful answer and questions 2 and 4 are coded in the opposite direction.

1. Irish, Italians, Jewish and many other minorities overcame prejudice and worked their way up. Blacks should do the same without any special favors.
2. Over the past few years, blacks have gotten less than they deserve.
3. It's really a matter of some people not trying hard enough; if blacks would only try harder they could be just as well off as whites.
4. Generations of slavery and discrimination have created conditions that make it difficult for blacks to work their way out of the lower class.

Because each question has five possible answers from strongly agree (0) to strongly disagree (4), respondents can score anywhere from 0 to 16 on this scale, which has been extensively validated, debated, and assessed (see DeSante and Smith 2020). In the analysis below, this (and all other predictor variables) is rescaled from 0 to 1.

A second key predictor is an index of authoritarianism tapping a view of the world as fixed and rigid rather than fluid and flexible (Hetherington and Weiler, 2009; 2018; Hetherington et al., 2027) using four items tapping one's attitudes toward childrearing. The four questions are as follows:

Although there are a number of qualities that people feel that children should have, every person thinks that some are more important than others. I am going to read you pairs of desirable qualities. For each pair please tell me which one you think is more important for a child to have.

1. curiosity or good manners
2. obedience or self-reliance
3. being considerate or well behaved
4. independence or respect for elders

Religion is a third theoretically important factor because of its role in determining a person's attitudes toward punishment. For those with evangelical Protestant perspectives on crime, drawing from the Bible, crime is associated with a person's "disposition" or "character" and can only be resolved through punishment or religious conversion. How one attributes the causes of crime, to dispositional factors or to situational ones, is a strong predictor of preferences on punishment, with those favoring a dispositional understanding of crime favoring much harsher punishments (see Peffley and Hurwitz 2010; Grasmick et al. 1993).

Before showing our regression model predicting support or opposition to the death penalty among the respondents in the 2000 National Election Study, Table 2 provides summary statistics on each of the variables included in the model. Generally, these include demographics, religion-

based questions, ideology and party ID, as well as such personality trait indicators as authoritarianism, egalitarianism, and social and governmental trust. (See Appendix C for exact question wordings.)

Table 2. Descriptive statistics.

|                               | Mean | SD   | Min. | 1st Q | Median | 3rd Q | Max. |
|-------------------------------|------|------|------|-------|--------|-------|------|
| Race: Black                   | 0.12 | 0.32 | 0    | 0.00  | 0.00   | 0.00  | 1    |
| Race: Hispanic                | 0.08 | 0.28 | 0    | 0.00  | 0.00   | 0.00  | 1    |
| Race: Other                   | 0.05 | 0.23 | 0    | 0.00  | 0.00   | 0.00  | 1    |
| Race: White                   | 0.74 | 0.44 | 0    | 0.00  | 1.00   | 1.00  | 1    |
| Religion: Catholic            | 0.27 | 0.44 | 0    | 0.00  | 0.00   | 1.00  | 1    |
| Religion: Jewish              | 0.02 | 0.13 | 0    | 0.00  | 0.00   | 0.00  | 1    |
| Religion: Other/none/DK       | 0.19 | 0.39 | 0    | 0.00  | 0.00   | 0.00  | 1    |
| Religion: Protestant          | 0.52 | 0.50 | 0    | 0.00  | 1.00   | 1.00  | 1    |
| Born Again                    | 0.33 | 0.47 | 0    | 0.00  | 0.00   | 1.00  | 1    |
| Female                        | 0.55 | 0.50 | 0    | 0.00  | 1.00   | 1.00  | 1    |
| Education                     | 0.37 | 0.40 | 0    | 0.00  | 0.50   | 0.50  | 1    |
| Age                           | 0.43 | 0.29 | 0    | 0.17  | 0.33   | 0.67  | 1    |
| Social Class                  | 0.43 | 0.25 | 0    | 0.14  | 0.57   | 0.57  | 1    |
| Urbanism                      | 0.50 | 0.28 | 0    | 0.50  | 0.50   | 0.50  | 1    |
| Political South               | 0.32 | 0.47 | 0    | 0.00  | 0.00   | 1.00  | 1    |
| Party ID (7pt)                | 0.45 | 0.34 | 0    | 0.17  | 0.50   | 0.67  | 1    |
| Ideology                      | 0.52 | 0.14 | 0    | 0.50  | 0.50   | 0.50  | 1    |
| Authoritarianism              | 0.60 | 0.26 | 0    | 0.50  | 0.50   | 0.75  | 1    |
| Biblical Authority            | 0.61 | 0.32 | 0    | 0.50  | 0.50   | 1.00  | 1    |
| Black Influence               | 0.42 | 0.35 | 0    | 0.00  | 0.50   | 0.50  | 1    |
| Egalitarianism                | 0.59 | 0.18 | 0.04 | 0.50  | 0.54   | 0.71  | 1    |
| Moral Traditionalism          | 0.59 | 0.20 | 0    | 0.50  | 0.56   | 0.75  | 1    |
| Past-Year Financial Situation | 0.57 | 0.21 | 0    | 0.50  | 0.50   | 0.75  | 1    |
| Religiosity                   | 0.51 | 0.35 | 0    | 0.17  | 0.50   | 0.83  | 1    |
| Social Trust                  | 0.58 | 0.36 | 0    | 0.33  | 0.67   | 1.00  | 1    |
| White Feeling Thermometer     | 0.70 | 0.20 | 0    | 0.52  | 0.72   | 0.88  | 1    |
| Racial Resentment             | 0.60 | 0.22 | 0    | 0.50  | 0.56   | 0.75  | 1    |

Notes: Statistics are calculated using the survey-weighted analytic sample from the final 2000 ANES model predicting death-penalty support (N = 1,671). Variables are coded as in the regression analysis. Race and religion entries are binary indicators. Black and Catholic are the reference categories in the regression model and are included here for descriptive completeness. For binary indicators, the mean is the weighted proportion in the indicated category. Quartiles are weighted empirical quantiles.

Figure 4 shows how the variables included in the model correlate with one-another.

Figure 4. Correlation matrix.

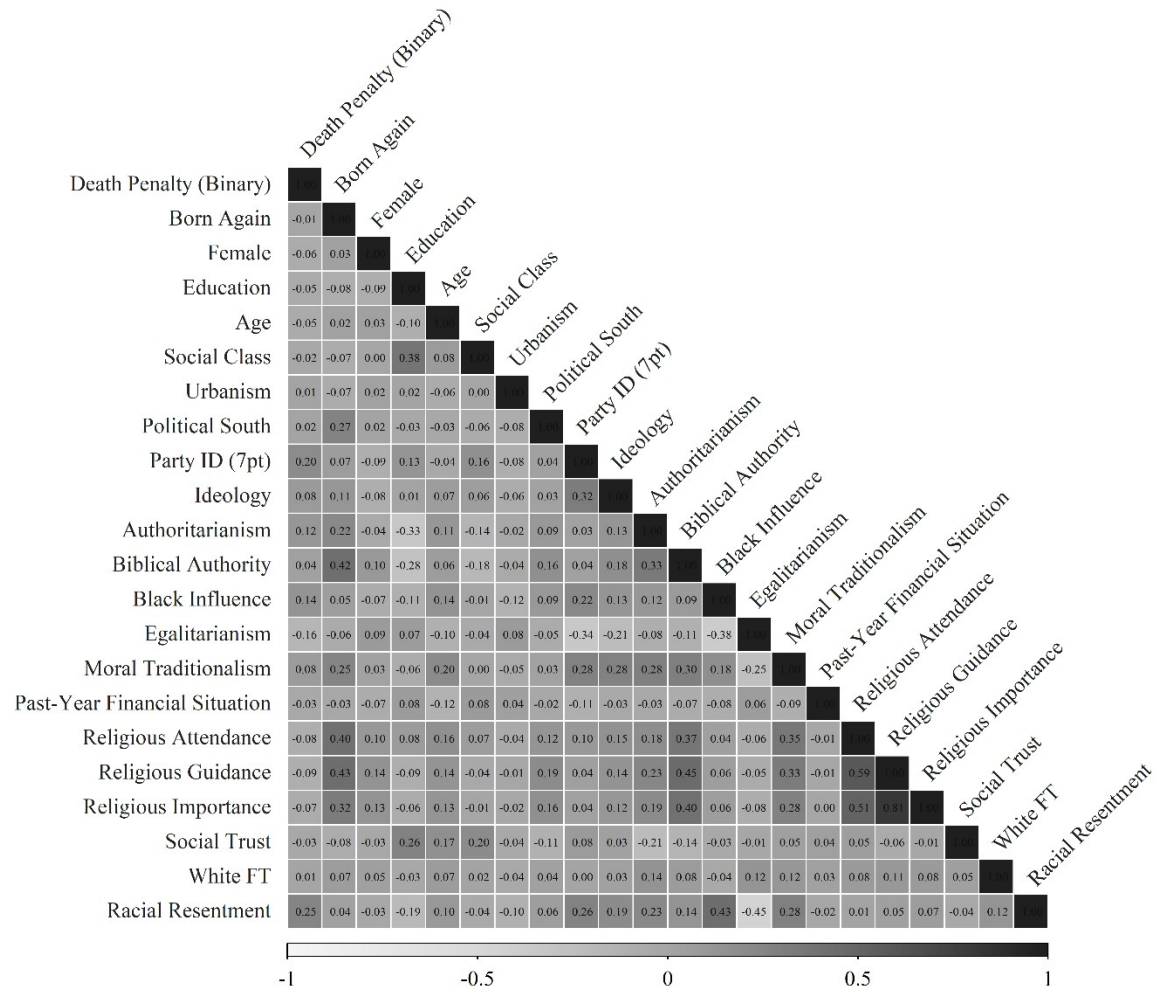


Figure 4 shows that most of the variables included in the model are statistically independent, with a few exceptions, particularly the religion-related questions. For this reason, we generate an index of religiosity based on religious attendance, religious guidance, and religious importance.

With this information in place, we turn to our model. Table 3 presents four different binomial logit models that estimate predictors of support for the death penalty, iteratively adding more predictors so that we can observe the consistency of the results while adding different sets of predictors to the model. In particular, we want to see the independent impact of racial

resentment, controlling for other attitudes, so we add this variable last, in Model 4. All variables are coded on a 0-1 scale.

Model 1 presents results for a demographics-only model, including variables for race, gender, religion, education, age, class, and geography. Model 2 folds in explicitly political attitudes: namely, party identification (branched 7-point scale) and symbolic ideological self-identification (e.g., whether one self-identifies as a “liberal” or a “conservative”, on a 7-point scale). Model 3 adds in a host of other religious, racial, and social attitudes. Chief among them is authoritarianism. Finally, we add racial resentment in Model 4. This allows a difficult test, since racial resentment is only added to a model which already has a large number of predictors, some of which (such as race, party identification, or authority-mindedness) may be correlated with it. This allows us to see the added value of racial resentment in a model when other variables have already been accounted for.

Table 3 presents odds-ratios. These can be interpreted as showing the degree to which the variable in question increases or decreases the odds of supporting the death penalty, as one moves from the minimum (0) to the maximum (1) value on that variable (e.g., age, education, income). For categorical variables (race, religion, and gender), the odds-ratios are compared to the baseline values of Black (race); male (gender), and Catholic (for religion).

Table 3. Predicting support for the death penalty, 2000.

|                               | Model 1:<br>Demographics | Model 2:<br>Adding<br>Political Vars. | Model 3:<br>Adding<br>Other Vars. | Model 4:<br>Adding RR |
|-------------------------------|--------------------------|---------------------------------------|-----------------------------------|-----------------------|
| Intercept                     | 1.211                    | 0.793                                 | 0.554                             | 0.288                 |
| Race: Hispanic                | 3.073***                 | 2.450**                               | 2.510**                           | 2.090*                |
| Race: Other                   | 3.314***                 | 2.502**                               | 2.519*                            | 2.153*                |
| Race: White                   | 4.416***                 | 3.172***                              | 3.130***                          | 2.550***              |
| Religion: Jewish              | 0.885                    | 1.134                                 | 1.087                             | 1.097                 |
| Religion: Other/none/DK       | 0.775                    | 0.794                                 | 0.720                             | 0.768                 |
| Religion: Protestant          | 1.131                    | 1.093                                 | 1.048                             | 1.101                 |
| Born Again                    | 0.849                    | 0.801                                 | 0.920                             | 0.942                 |
| Female                        | 0.717**                  | 0.761*                                | 0.854                             | 0.835                 |
| Education                     | 0.620**                  | 0.582**                               | 0.924                             | 1.013                 |
| Age                           | 0.568*                   | 0.624*                                | 0.651                             | 0.643                 |
| Social Class                  | 0.891                    | 0.757                                 | 0.767                             | 0.838                 |
| Urbanism                      | 1.614*                   | 1.662*                                | 1.770*                            | 1.814*                |
| Political South               | 1.329                    | 1.254                                 | 1.247                             | 1.209                 |
| Party ID (7pt)                |                          | 2.970***                              | 2.544***                          | 2.422***              |
| Ideology                      |                          | 1.764                                 | 1.543                             | 1.378                 |
| Authoritarianism              |                          |                                       | 3.465***                          | 2.966***              |
| Biblical Authority            |                          |                                       | 1.223                             | 1.169                 |
| Black Influence               |                          |                                       | 1.333                             | 0.988                 |
| Egalitarianism                |                          |                                       | 0.399*                            | 0.692                 |
| Moral Traditionalism          |                          |                                       | 1.212                             | 0.964                 |
| Past-Year Financial Situation |                          |                                       | 1.232                             | 1.106                 |
| Religiosity                   |                          |                                       | 0.331***                          | 0.362***              |
| Social Trust                  |                          |                                       | 0.827                             | 0.835                 |
| White Feeling Thermometer     |                          |                                       | 1.454                             | 1.142                 |
| Racial Resentment             |                          |                                       |                                   | 5.944***              |
| Observations                  | 1674                     | 1674                                  | 1671                              | 1671                  |
| AIC                           | 1880.1                   | 1845.4                                | 1798.6                            | 1774.6                |
| BIC                           | 1959.2                   | 1934.2                                | 1931.3                            | 1912.1                |

Notes: Entries report odds ratios. Models use the ANES cumulative-file weight VCF0009z. \*  $p < .05$ ; \*\*  $p < .01$ ; \*\*\*  $p < .001$ .

Looking at the results in order we start with the demographics in Model 1. All racial groups compared to the reference category, Black respondents, are significant, with White respondents being the most supportive. These effects lessen as we move to the fuller models, but remain highly predictive even in Model 4. Education and age are significant with a negative sign, though these effects attenuate in the fuller models. Religion (with Catholic as the reference category) is not significant, perhaps because of the diversity of religious perspectives on the death penalty in the major religious denominations. Note that being “born again” is negative but not statistically significant. This may relate to the need for greater specificity by interacting the “born again” variable with religious denomination. Living in the political south, those states that joined the Confederacy, has a positive sign but is not statistically significant. Urbanism, by contrast, is significant and positive, meaning that city-dwellers are more likely to support the death penalty than those who live in rural areas, after controlling for other factors.<sup>2</sup>

Model 2 adds partisanship and ideology. Ideological self-placement is not significant in any of the models, but party identification exhibits a strong positive effect, meaning that the more strongly one identifies with the Republican Party, the more likely it is that they support the death penalty. The odds-ratios here are large, 2.4 to 3.0 depending on the other variables included in the model. This means that being a strong Republican more than doubles the odds of supporting the death penalty, controlling for other factors.

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<sup>2</sup> This is perhaps a counterintuitive result. For robustness, we replicated the ANES model as well as we could with the General Social Survey (GSS) and found the opposite result, that rural residents are more likely than urban residents to support the death penalty. This is the only substantive inconsistency we find between the ANES and GSS data collections in 2000 and other years. However, urbanism was not recorded consistently over time so is not included in our time-series analyses. Thus, we urge caution at overgeneralizing from the urbanism scale’s result on the ANES.

Model 3 adds authoritarianism and other attitudinal variables. Moving from the minimum (0) to the maximum (1) on the authoritarian scale corresponds to an odds ratio of 3.5 in Model 3 and 3.0 in Model 4, which translates to high-authoritarians being 200 to 250 percent more likely to support the death penalty than the lowest authoritarians, other factors held constant. Moreover, religiosity is highly significant and negative, suggesting that those who attend services more often and who are more likely to believe religion is important to and guides their lives are less supportive of the death penalty. The rest of the range of social attitudes and political values turn up null results.

The results for racial resentment in Model 4 are striking. The coefficient for racial resentment carries an odds ratio of 5.9, which corresponds to a nearly 5-fold increase in the likelihood that a highly racially resentful respondent will support the death penalty compared to those at the minimum of the scale. Even in a highly saturated, kitchen-sink model, racial resentment appears to have an extremely strong correlation with support for the death penalty.

Taken in totality, Model 4 allows several interpretations. First, racial resentment is strongly associated with support for the death penalty. Given the racial disparities in the application of the death penalty shown in earlier sections, and its correlation with public support for its use, this result is perhaps not surprising. Still, its scope is remarkable; an odds ratio of 5.9 suggests an extremely powerful effect. Moreover, the next three strongest predictors in model 4 are authoritarianism (odds ratio: 2.97), identifying as White (odds-ratio: 2.55), and being a Strong Republican (odds ratio: 2.42). These results bolster a conclusion that race is the primary lens through which the public evaluates the death penalty.

### ***3.2.2 Replication using the General Social Survey***

To further probe the relationship between racial animus and the death penalty, we also ran the fullest possible model using the 2000 General Social Survey (GSS). The GSS is a social survey, not a political one as the ANES, and thus we are limited in the degree to which we can include similar questions. Where possible, however, political questions, such as ideology and partisanship, were added, and all coding was matched to that of the ANES so coefficients can be compared. A key difference in the two data sources is that racial resentment in the ANES is measured by a battery of four questions, as described in the previous section, but the GSS includes only a single question, “Irish, Italians, Jewish and many other minorities overcame prejudice and worked their way up. Black people should do the same without special favors.” Therefore, we expect the impact of this variable to be less pronounced in the GSS model because it is measured with less precision. Of course, even with a single question, we expect it to be a significant predictor nonetheless. Table 4 shows the results.

Table 4. Predictors of death-penalty support, 2000 GSS.

| Predictor             | Model 1<br>Demographics | Model 2<br>+ Political/Social | Model 3<br>+ Racial Resentment |
|-----------------------|-------------------------|-------------------------------|--------------------------------|
| (Intercept)           | 0.966                   | 0.885                         | 0.547                          |
| Race: White           | 4.084***                | 3.828***                      | 2.111*                         |
| Race: Other           | 1.878**                 | 1.694 <sup>†</sup>            | 1.376                          |
| Religion: No Religion | 0.653**                 | 0.470**                       | 0.656                          |
| Religion: Protestant  | 1.000                   | 0.864                         | 0.920                          |
| Education             | 0.607**                 | 0.973                         | 1.103                          |
| Income                | 1.996***                | 1.837*                        | 0.948                          |
| Age                   | 0.846                   | 0.729                         | 1.088                          |
| Social Class          | 0.630 <sup>†</sup>      | 0.709                         | 1.405                          |
| Urban Residence       | 0.806                   | 0.768                         | 0.737                          |
| South                 | 1.024                   | 1.224                         | 1.457                          |
| Male                  | 1.638***                | 1.711***                      | 1.490 <sup>†</sup>             |
| Party ID              |                         | 2.147**                       | 1.555                          |
| Ideology              |                         | 1.509                         | 1.435                          |
| Church Attendance     |                         | 0.230***                      | 0.192***                       |
| Fundamentalism        |                         | 0.909                         | 0.909                          |
| Authority             |                         | 1.132*                        | 1.067                          |
| Racial Resentment     |                         |                               | 1.377***                       |
| <i>N</i>              | 2070                    | 1235                          | 601                            |
| AIC                   | 2222.4                  | 1276.8                        | 615.0                          |
| BIC                   | 2290.0                  | 1363.8                        | 694.1                          |

Note: Cell entries are odds ratios from binomial logistic regression models estimated with survey weights (wtssps). <sup>†</sup> $p < .10$ ; \* $p < .05$ ; \*\* $p < .01$ ; \*\*\* $p < .001$ .

As in Table 3 in the first two models, being male and being White are consistently powerful demographic predictors of support for capital punishment. In Model 2, for example, being male has an Odds-ratio of 1.71, meaning that men have approximately 71 percent higher odds of supporting the death penalty than women. Even more strikingly, being White in Model 2 has an OR of 3.83, meaning that White individuals have approximately 283 percent higher odds of supporting the death penalty than Black respondents. When political and social variables are included in Model 2, ideology and church attendance stand out. Being more Republican increases the odds of supporting the death penalty by over 100 percent in Model 2, and being a

regular church attender decreases it by over 70 percent. In Model 3, the variables that remain significant are White, Male, Church attendance, and racial resentment.

One will note that when the GSS measure of racial resentment is added to the model, party identification and ideology are no longer significant, while racial resentment, along with being White, emerge as key predictors of support for capital punishment. Going from low to high levels of racial resentment increases the odds of death penalty support by 38 percent. The magnitude of this effect is substantially smaller than that observed in the ANES, a statistical pattern we observe throughout the GSS data. We think this has much to do with the absence of the robust racial resentment scale used in the ANES. Further, the number of respondents in Model 1 is 2,070, but the N declines to 1,235 in Model 2 and finally to only 601 in Model 3. So the GSS evidence supports our main findings, but we can have more confidence in the ANES findings on this issue. That said, as we have illustrated above and will show below, even with this conservative measure and limited N, race and racial resentment still play pivotal roles across the time series.

### ***3.2.3. A Classification and Regression Tree (CART) Model using the 2000 ANES***

To further investigate the results in the 2000 ANES, we sought a method that could describe the variables included in Table 3 above in terms of their predictiveness of support for the death penalty. To do so, we estimate a Classification and Regression Tree (CART) model, suitable for work that seeks to characterize who supports certain policies (e.g., Armaly and Enders, 2022). The CART model is useful for our purposes for two reasons: First, the classification method allows for the estimation of nonlinear relationships between the independent variables and the outcome variable, death-penalty support. Rather than simple linear regression, the CART model generates split points that indicate not only which variables, but at what value of those variables,

explain the greatest amount of variance in the outcome variable. That is, the CART model splits the respondents progressively by those variables (and those split-points) that produce the greatest difference in levels of support for the death penalty. The variables with the greatest impact on the outcome variable come first, and others below. Note that the same variable can appear twice, if splitting at one point, then later at another point, produces significant changes in the likelihood of support for the outcome variable (e.g., the death penalty).

Second, using this method allows us to get a sense of how the distribution of death penalty support changes, rather than looking only at likelihoods or odds of support. To do so, we estimate a CART model for the 2000 ANES data collection using the 4-point scale of death penalty support, ranging from strongly oppose to strongly favor.<sup>3</sup> Thus we are able to gain more leverage over how death-penalty support changes given different ranges of the independent variables. Note that the CART model is a completely different methodology than the logistic regression presented in Table 3 above, though it relies on the same underlying data. It provides a different type of analysis, but of course we expect it to have some common elements with the results shown in Table 3; indeed as we will show immediately below, it does.

The CART model results for the 2000 ANES are shown in Figure 5.<sup>4</sup> The tree is structured by a series of nodes ordered sequentially by which split-points explained the most variance in death penalty support. Node 1, the root, explains the most variance. Each variable that has a split-point in the tree is known as a decision node, and terminal nodes represent cases where no other split-

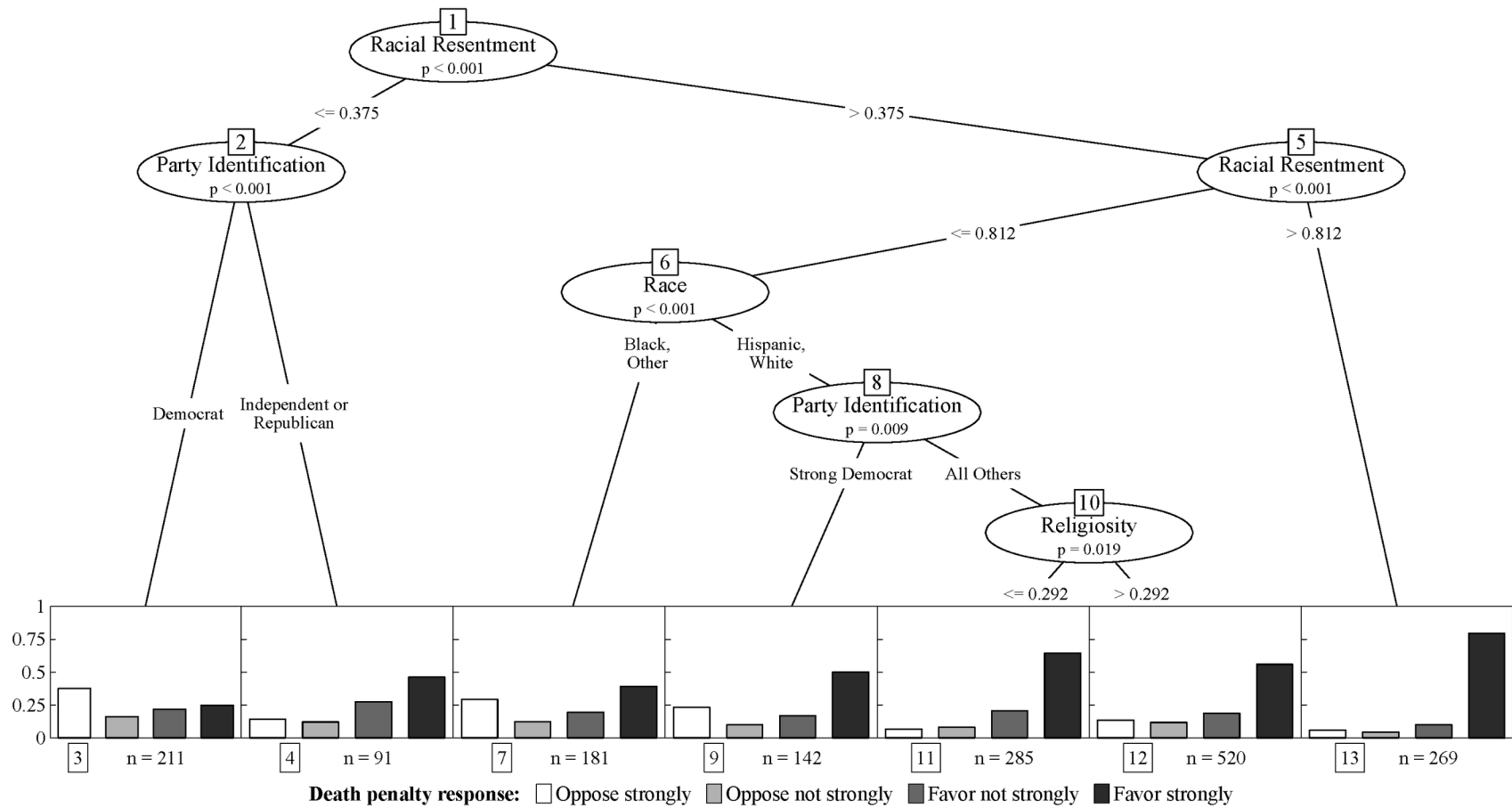
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<sup>3</sup> These results exclude responses categorized by the ANES as “Don’t Know,” “Unsure,” or nonresponses for clarity of presentation. The results are not substantively changed by including these responses recoded to be at the midpoint of the death penalty support scale. See Appendix C for the 2000 ANES CART model results with the midpoint included.

<sup>4</sup> See Appendices C and D for CART model results for other years and for a similar version using the GSS. These are consistent with the results presented here.

point produced a statistically significant difference in death-penalty support. These are shown at the bottom of each tree branch along with the distribution of support for the death penalty among the respondents corresponding to that node. The Figure also shows the number of respondents in each terminal node.

Figure 5. Predictors of Death Penalty Support.



Note: CART model based on 2000 ANES, (pared, unweighted model). See Appendix C for alternative specifications.

Node 1 (the root node) shows that those who reported relatively low racial resentment, at 0.375 or below, tend to be less supportive of the death penalty than those with moderate to high levels of racial resentment. Node 2 (second row, left) is party identification, which shows that those who are low in racial resentment and identify as a Democrat (Node 3) are much less supportive of the death penalty, while those low in racial resentment and identify either as a true Independent or a Republican (Node 4) tend to be more supportive. The different levels of support for the death penalty can clearly be seen between Nodes 3 and 4. These are the “terminal nodes” and the graphics inside depict the share of respondents in the survey who fall in each of four positions from strongly opposing the death penalty to strongly supporting it. Note that Node 3 (low racial resentment, Democrat) is the only node in which the modal response is “strongly opposed” to the death penalty.

Node 5 splits the respondents again based on racial resentment, this time separating those above and below the split-point of 0.812. Compared to respondents that report moderate to moderately high levels of racial resentment, those who report very high levels of racial resentment, between 0.812 and 1, are almost universally supportive of the death penalty. These are depicted in the graph inside Node 13, which shows approximately 80 percent “strongly supportive” of the death penalty.

Node 6 splits those who are moderate on racial resentment (e.g., above .375; Node 1) but below .812 (Node 5) by race. Those who are Black or of Multiple or Other races form Node 7, and these respondents are relatively evenly split in their support of the death penalty. Hispanics and Whites separate at Node 6, and in Node 8 they further split by Party Identification, with Strong Democrats going to Node 9 and all others going to Node 10, which separates by our index of

religiosity. Those scoring relatively lower on that variable ( $\leq 0.292$ ) move to Node 11, and those scoring higher constitute Node 12.

Figure 5 contains a lot of information, but a key take-away is that just six decision nodes are needed to divide the respondents into seven terminal nodes that separate the entire survey into groups with distinct attitudes on the death penalty. Those variables are, in order: racial resentment, party identification, racial resentment, race, party identification, and religiosity. This analysis, using a different analytic technique, confirms the main results from Table 3.

We focused in these sections on the 2000 ANES because it had relatively complete coverage of relevant questions and also because it falls in the middle of our time series, neither at the point of highest aggregate support for the death penalty nor at the lowest point. Further, it comes before the increased racialization of many attitudes toward policy issues after the beginning of the Obama presidency. In the next section, we repeat these models over time.

#### **4. The Dynamics of Support for Capital Punishment**

Having analyzed a single year, we now turn to a time-series analysis. We estimate the fullest models we can using the ANES presidential-year data collections, from 1992 through 2024, limited of course to the years in which the relevant questions were posed. Crucially, attitudes on the death penalty were not asked before 1988, and authoritarianism not before 1992.

Furthermore, the 1996 survey excluded both resentment and authoritarianism, which we have already shown to be key predictors of death-penalty support. We therefore estimate a model similar to Model 4 in Table 3 for each year: 1988, 1992, 2000 and so on for each presidential year through 2024. The model is restricted to those variables which are consistently available.

This is of course a restricted model compared to the fuller one presented in Table 3. Appendix C

includes extensive robustness tests which demonstrate that results are consistent across various specifications. That is to say, we have no reason to believe that our results would be substantively different if we had the full range of control variables available in each survey.

Table 5 presents a single model pooling the data from the surveys analyzed above. (Here, we exclude 1988 because of missing variables; as before we also exclude 1996 for the same reason.)

Table 5. Predicting support for the death penalty, 1992 to 2024.

| Variable                      | Odds-Ratio |
|-------------------------------|------------|
| Intercept                     | 0.473***   |
| Race: Hispanic                | 1.271**    |
| Race: Other                   | 1.377***   |
| Race: White                   | 1.708***   |
| Religion: Jewish              | 0.983      |
| Religion: Other/None/DK       | 0.925      |
| Religion: Protestant          | 1.335***   |
| Female                        | 0.861***   |
| Education                     | 0.803***   |
| Age                           | 1.165*     |
| Party Identification          | 2.044***   |
| Ideology                      | 2.806***   |
| Authoritarianism              | 2.388***   |
| Biblical Authority            | 1.008      |
| Egalitarianism                | 0.782*     |
| Moral Traditionalism          | 0.987      |
| Past-Year Financial Situation | 0.966      |
| Religiosity                   | 0.414***   |
| White Feeling Thermometer     | 0.938      |
| Racial Resentment             | 6.631***   |
| Year: 2000                    | 0.680***   |
| Year: 2004                    | 0.611***   |
| Year: 2008                    | 0.541***   |
| Year: 2012                    | 0.634***   |
| Year: 2016                    | 0.665***   |
| Year: 2020                    | 0.494***   |
| Year: 2024                    | 0.543***   |
| N                             | 29,283     |
| AIC                           | 30,666.7   |
| BIC                           | 30,855.8   |

Notes: Entries are survey-weighted odds ratios. The model is estimated using survey::svyglm with a quasibinomial logit specification and VCF0009z as the survey weight. Year fixed effects are included, with 1992 as the reference year. The 1996 study is excluded. Born-Again Christian and Political South are excluded because they are not available in every included year. Religiosity is entered as the composite scale. Samples use listwise deletion. \*  $p < .05$ ; \*\*  $p < .01$ ; \*\*\*  $p < .001$ .

Table 5 presents the fullest model, covering almost 27,000 respondents across eight administrations of the ANES. Year fixed-effects are presented at the bottom, with 1992 as the reference year; all the years show significant declines in support since then, with 2020 showing a rate of support systematically only half of that in 1992; this is consistent with the general

dynamics of public opinion shown in Figure 1. Looking then from the top, the race variables show that Hispanic respondents are 1.27 times as likely to support the death penalty as Black respondents, and White respondents are 1.7 times as likely to support the death penalty (again, compared to Black respondents, the baseline). Looking at religious affiliation, Protestants, compared to Catholics, are 1.3 times as likely to support; Jewish individuals and those of other or no religion are slightly less likely to support, but this is not statistically significant. Women are approximately 14 percent less likely than men to support; people with high educations about 20 percent less likely than those at the lowest end of the education scale; older people 16 percent more likely to support than the youngest respondents, and so on. Strong Republicans, compared to Strong Democrats, are 2.1 times as likely to support; strong conservatives, compared to strong liberals, 2.6 times to support; those high on the authoritarianism measure, 2.5 times as likely to support as those low on that same scale; but no variable has an impact as great as racial resentment: 6.6. These odds-ratios are illustrated graphically in Figure 6.

Figure 6. Predictors of death-penalty support, 1992 to 2024.

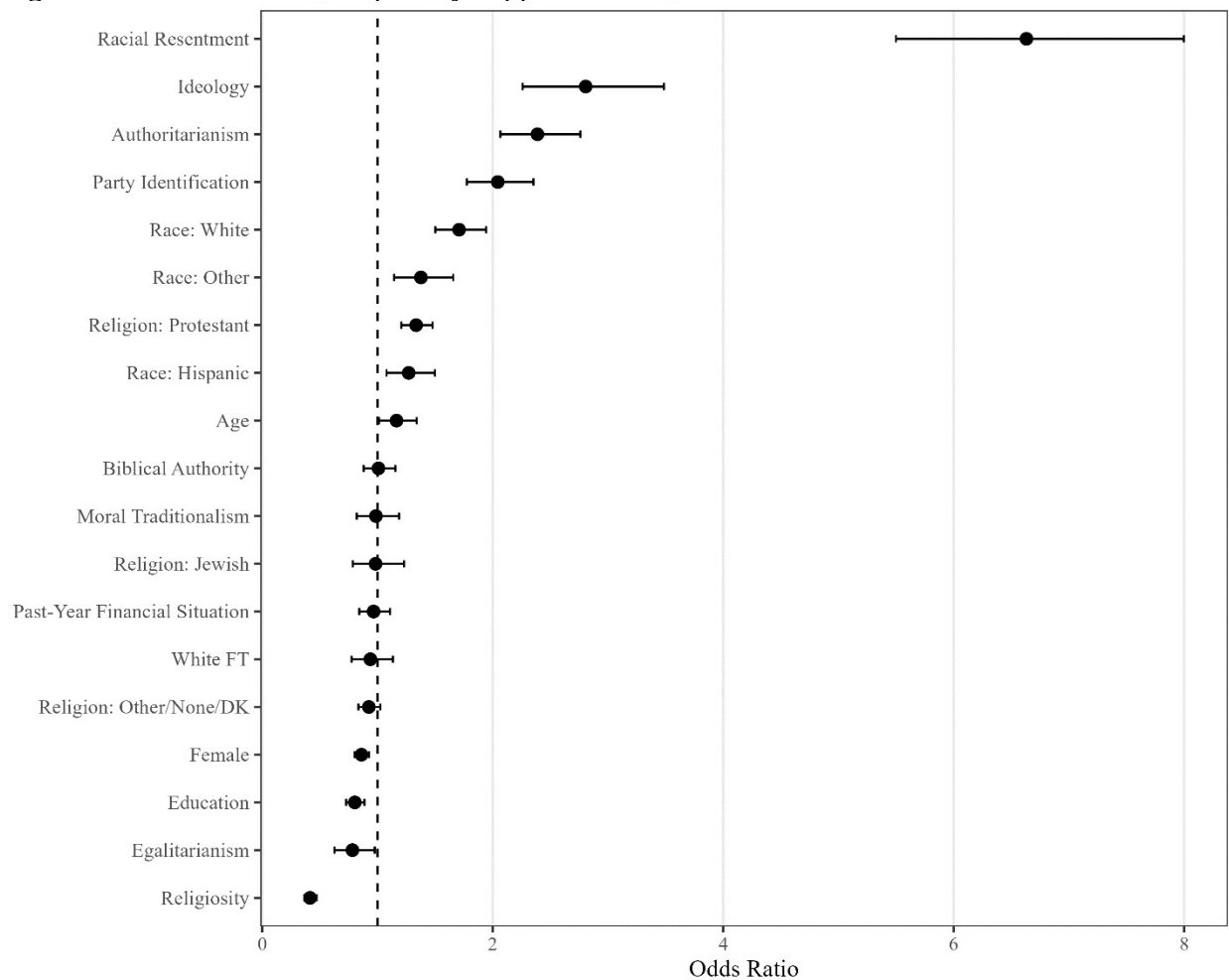
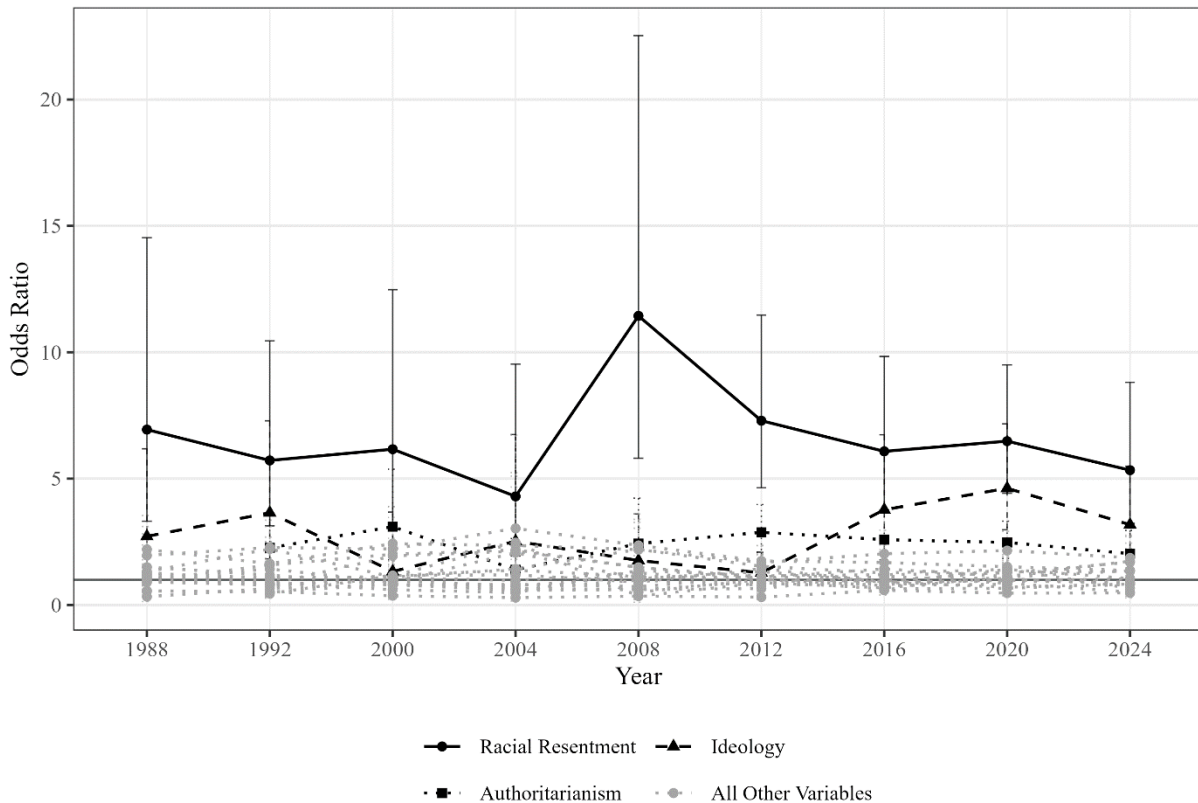


Figure 6 shows the singular effect of racial resentment. Even in a model simultaneously controlling for so many other factors including general ideology, partisanship, feelings about authority, religion, and race, it stands alone.

The analyses in Table 4 and Figure 6 stem from the pooled ANES with over 29,000 respondents, so we have high confidence in those findings. Still, we can look at each survey individually to see if the powerful results we find for racial resentment are present each time a survey is conducted. We present all of those regressions in our appendices; these are generally the same as presented in Model 4, Table 3 above, with minor adjustments based on the availability of

questions in each individual survey. Figure 7 shows the odds ratios for key variables from these individual-year regressions over time.

Figure 7. Predictors of death-penalty support, 1988 to 2024.



Racial resentment stands alone in each individual survey from 1988 through 2024 as, by far, the most substantial predictor of death-penalty support, with odds ratios that never fall below that of the second-most-powerful predictor, and only once below 5.0. The average impact of racial resentment on support of the death penalty is to increase the odds of support somewhere between 5 and 10 times for those at the top of the scale compared to those at the bottom. Figure 6 shows that ideology and authoritarianism commonly have significant effects on public opinion as well, but these effects, while relatively consistent, are never as great as those of racial resentment. The analysis underlying Figure 7 was based on nine separate cross-sectional logistic regressions. In Figure 6, we looked at all the survey respondents pooled into a single model. No matter how we

look at it, the results are highly stable. The main result, that racial resentment is powerfully connected to death-penalty attitudes, comes through consistently and powerfully.

We complete our assessment of whether these results are robust by returning to our CART models from the previous section. We estimate a CART model similar to that shown in Figure 5 for each survey year. See Appendix C for these individual models. We summarize these results in Table 6, which shows the top-five decision nodes in each of the models. Recall that in a CART model the nodes providing the greatest separation of the respondents with regards to their attitudes on the outcome variable (death-penalty support) come first. So, by looking at which variables consistently generate the top nodes in the model, we can assess their relative impact.

Table 6. Top five decision nodes, by year.

| Decision-node rank | 1988                     | 1992                     | 2000                     | 2004                     | 2008                     | 2012                     | 2016                     | 2020                     | 2024                     |
|--------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| Node 1 (root)      | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> |
| Node 2             | Ideology                 | Party Identification     | Party Identification     | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> | Ideology                 | Ideology                 | Ideology                 |
| Node 3             | Race                     | Race                     | <b>Racial Resentment</b> | Party Identification     | Race                     | Race                     | <b>Racial Resentment</b> | Party Identification     | Authority                |
| Node 4             | <b>Racial Resentment</b> | Ideology                 | Race                     | Party Identification     | Egalitarianism           | Ideology                 | <b>Racial Resentment</b> | <b>Racial Resentment</b> | <b>Racial Resentment</b> |
| Node 5             | <b>Racial Resentment</b> | Biblical Authority       | Party Identification     | Religiosity              | Party Identification     | Party Identification     | Party Identification     | Authoritarianism         | Ideology                 |

Notes: Cells report the variable used at each of the five highest nonterminal decision nodes. Nodes are ordered first by depth and then from left to right within each depth. Node 1 is the root whenever the tree contains at least one split. Terminal nodes are excluded. Estimates for 2024 are generated using a binary version of the death penalty support question, as the 4-category response version was not asked in this year.

Racial resentment is the root node in each CART model across all nine administrations of the ANES when asked. It is also the second node in three of the models and appears in the top-five decision nodes two or even three times in each survey administration but one. Thus, consistently over time, racial resentment is the most powerful predictor of who supports and who opposes the death penalty.<sup>5</sup>

Section 3 explored the correlates of who supports and who opposes the death penalty, and in Section 4 we have assessed the consistency of these estimates over time. The results are as clear as they are troubling: racial resentment drives support and opposition to the death penalty to a remarkable degree. Of course, other factors matter as well, such as general ideological dispositions, partisan identification, race, attitudes toward authority, and religious variables. But racial resentment stands alone.

Given the importance of racial resentment in predicting support for the death penalty, we turn in the next section to explore it in greater detail. Section 5 therefore turns to demonstrating the powerful effect of resentment by comparing it directly to other measures that also predict death-penalty support.

## **5. Racial Resentment as the Driving Force in Death-penalty Opinion**

The findings in the previous two sections make clear the powerful role of racial resentment. In this section, we test how strong this relationship really is. We look at the question in several ways, with each perspective pointing to the same conclusion. Racial resentment has a power like

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<sup>5</sup> Looking across all the nodes generated in each of the CART models included in Table 6 (e.g., not only the top five nodes), racial resentment appears as a decision node 28 times; party identification, 19 times; ideology, 17; race, 13, authoritarianism, 12; religiosity, 10, and so on. See Appendix C for a complete list.

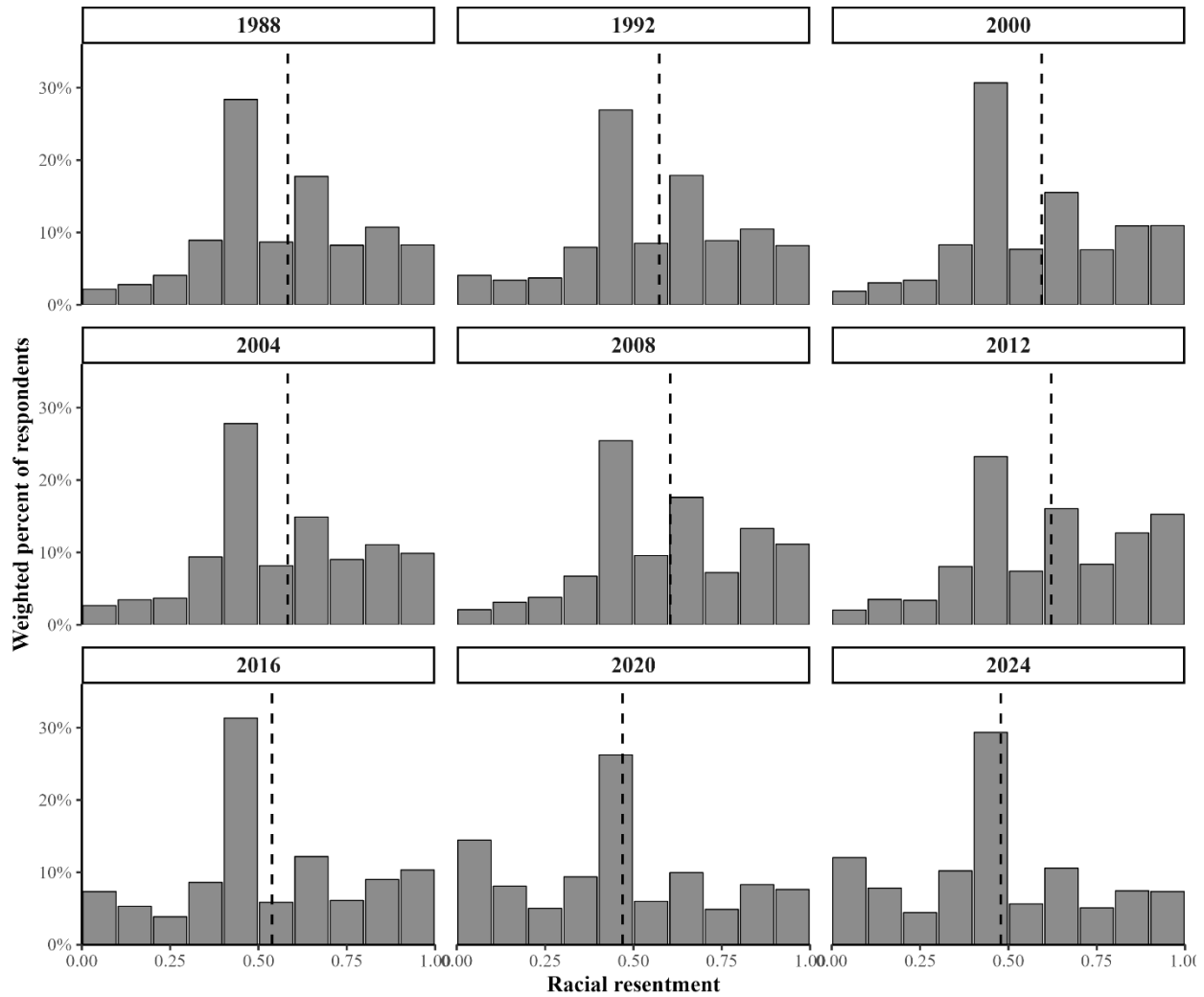
no other variable in predicting attitudes on capital punishment, and its power in the case of capital punishment is much stronger than in the case of predicting any other attitude. There is something tight about the connection between race, racial resentment, and capital punishment. Opinion on the death penalty is affected by racial resentment to a greater extent than any other attitude, and racial resentment has a more powerful impact on death-penalty opinion than any other variable.

We start by exploring the distribution of racial resentment over time, showing its wide range across respondents and consistent distribution over time. We move then to show its bivariate correlation with death penalty attitudes; these are striking and consistent over time. Then we compare the strength of these simple bivariate relations with other predictor variables such as ideology, partisan identification, and other variables from Table 3 above. We then show the predicted probabilities of support for the death penalty across levels of racial resentment, holding constant all the other predictor variables from the model in Table 3. Finally, we compare the death penalty with seven other political attitudes, some of which are relatively tightly connected with race and some of which are not. Racial resentment has a uniquely strong connection with capital punishment, much stronger than any of the other attitudes. The section concludes with a discussion of why this connection is so tight, and why it is tighter for the death penalty than for other policies.

### ***5.1 Racial Resentment: Distribution across Respondents and Average Death-penalty Support***

Figure 8 shows the distribution of racial resentment in all the ANES surveys from 1988 through 2024. We divide the responses into 10 categories of equal size from minimum to maximum.

Figure 8. Racial resentment over time.



The distributions in Figure 8 show the wide range of answers to the questions in the racial resentment scale. In each year, responses run the full range from the minimum to the maximum possible on the scale, with a slight skew to the higher side until 2020. Median responses range from .625 (2012) to .5 (2016 to 2024), with values of .562 in the years before 2012. In sum, there is little aggregate movement in these results over time and there are great differences across respondents.

Figure 9 shows how respondents at each point on this scale differ in their support for the death penalty.

Figure 9. Levels of support for the death penalty, by racial resentment.

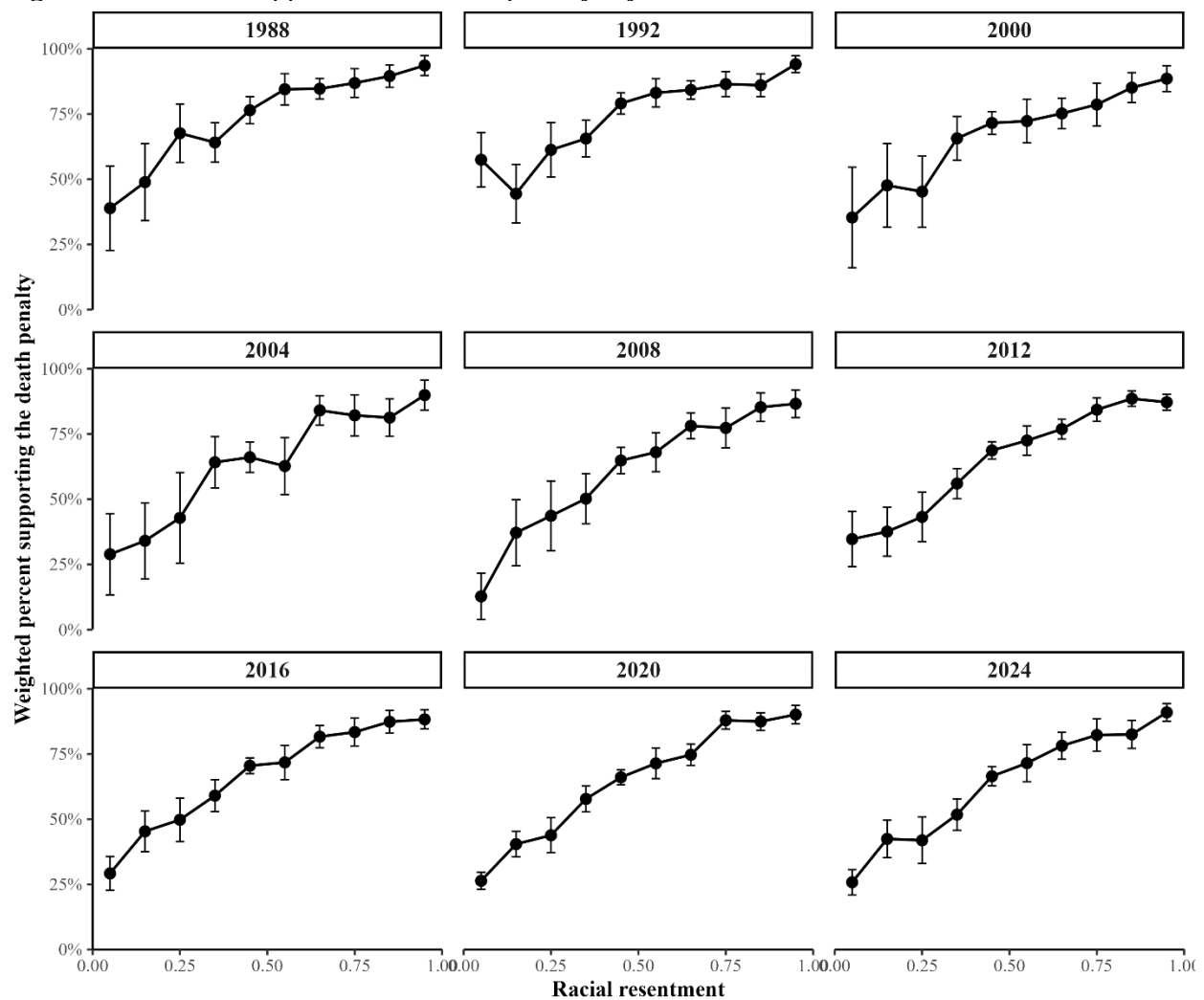


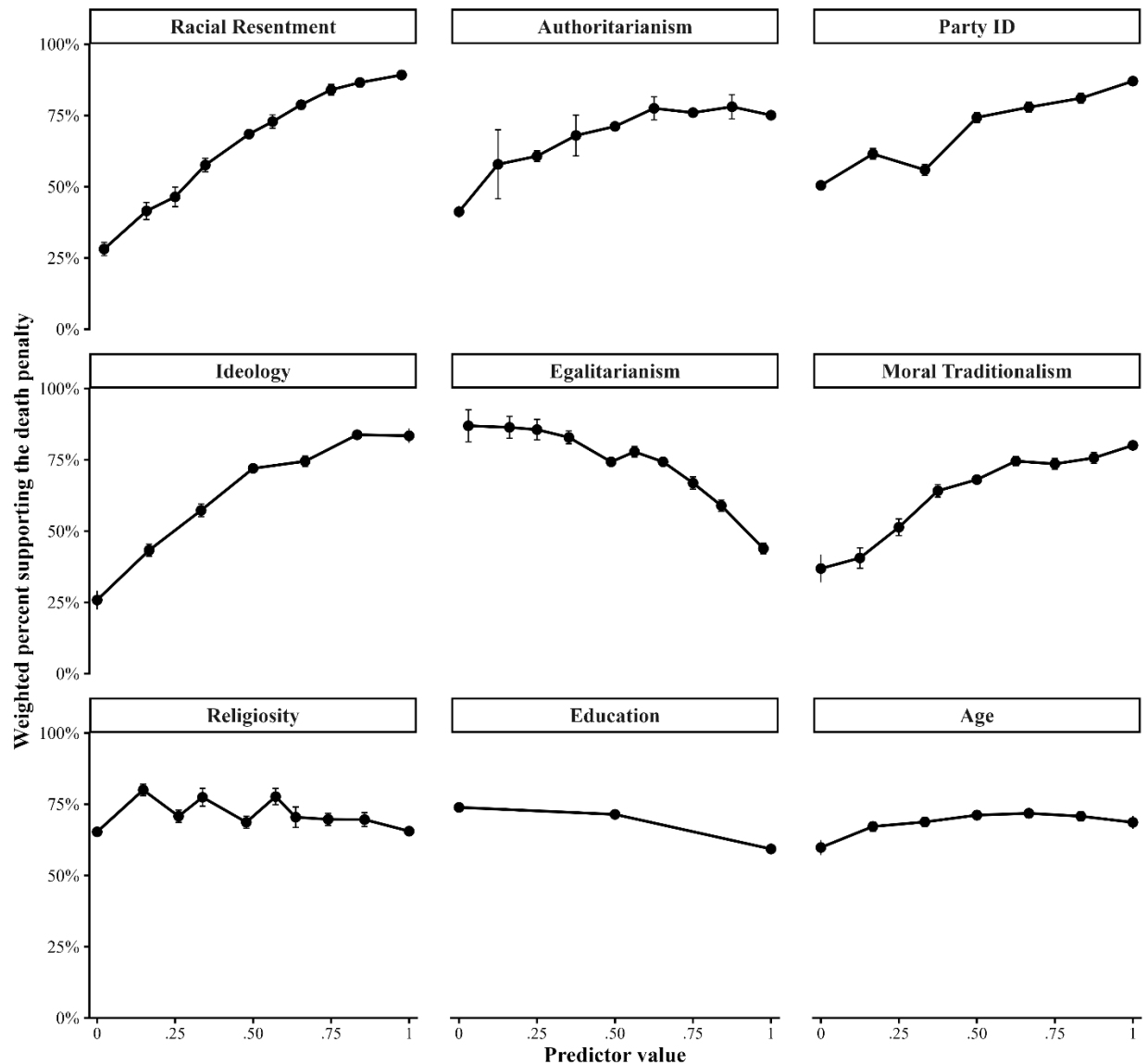
Figure 9 shows a strong connection between racial resentment and support for the death penalty across nine administrations of the ANES from 1988 to 2024. In each year shown, those with the lowest levels of racial resentment have relatively low rates of support of the death penalty compared to those with higher levels of racial resentment. The movement apparent in the lines shown in most of the frames is absolutely striking. In 2008, values moved from approximately 10 percent to about 90 percent support. Many of the years shown have evidence of ceiling effects, where levels of support for the death penalty are so high in the three highest categories of racial resentment that they cannot move much higher. The relationship between the two variables

appears somewhat weaker in 1988 and 1992 as compared to later years, perhaps because overall levels of support for the death penalty, even among those with low levels of racial resentment, were so high, as we saw in Figure 1.

## ***5.2 Bivariate Comparisons Racial Resentment Compared to other Predictors of Death-penalty Attitudes***

Figure 10 compares the relations shown in Figure 9 and presents identically formatted plots comparing racial resentment to other predictors of death-penalty support. The first pane in Figure 10 presents the same data from Figure 9, pooled across years. Support moves from approximately 25 to about 90 percent, and it increases in a relatively linear fashion. The next panes present the same data showing percent support of the death penalty across categories from low to high on: authoritarianism, party identification, ideology, egalitarianism, moral traditionalism, religiosity, education, and age.

Figure 10. Racial resentment versus other predictors of death-penalty support.



This presentation, with all the years pooled together, allows a direct comparison of racial resentment with other variables that might reasonably be expected to predict death-penalty support. Several of the variables do show a relation; authoritarianism, party ID, ideology, egalitarianism (direction reversed), and moral traditionalism all show trends indicating a strong relation. Only ideology, however, comes close to racial resentment in the strength of the relationship shown. Even here, it is not as strong as racial resentment. Religiosity, education, and

age show virtually no predictive power in this bivariate comparison. Racial resentment, in sum, is the most powerful predictor in this comparison. This confirms the findings from the multiple regression in Table 3, which showed that racial resentment was the most powerful predictor in a model simultaneously controlling for many other factors, including all those included in Figure 10.

Authoritarianism is a possible confounding factor that correlates with racial resentment, so we explore the joint relations between the two factors and death-penalty support in Table 7.

Table 7. Observed support for the death penalty by racial resentment and authoritarianism.

| Racial<br>Resentment         | Authoritarianism |               |               | Movement<br>from Low<br>to High |
|------------------------------|------------------|---------------|---------------|---------------------------------|
|                              | Low              | Middle        | High          |                                 |
| Low                          | 39% (n = 79)     | 51% (n = 63)  | 55% (n = 69)  | 16%                             |
| Middle                       | 71% (n = 128)    | 70% (n = 466) | 73% (n = 265) | 2%                              |
| High                         | 69% (n = 82)     | 83% (n = 217) | 88% (n = 333) | 19%                             |
| Movement from<br>Low to High | 30%              | 32%           | 33%           |                                 |

Notes: Cells report the survey-weighted percentage supporting the death penalty; unweighted cell sizes are shown in parentheses. Racial resentment and authoritarianism are each measured from 0 to 1 and divided into fixed thirds: Low = 0 to <1/3; Middle = 1/3 to <2/3; High = 2/3 to 1. Estimates use VCF0009z.

Table 7 explores the joint effects of authoritarianism and racial resentment on death-penalty support. Those low on both scales support the death penalty with a 39 percent probability and those high on both support it at a rate of 88 percent; clearly these two variables combine to have a large impact. Looking across each row individually, however, shows that, holding levels of racial resentment constant, moving from low to high on the authoritarianism scale has only a modest effect. Looking at those with low racial resentment, moving from low to high on the authoritarianism scale generates a shift from 39 percent to 55 percent support for the death penalty, a movement of 16 points. The table shows these values: 16, 2, and 19 for those at each level of racial resentment. When we do the opposite, holding levels of authoritarianism constant

and looking at the impact of movement from low to high racial resentment, we see 30, 32, and 33 percentage point shifts in support for the death penalty. Racial resentment again comes out as a more powerful predictor of death-penalty attitudes than the other variable.

### ***5.3 Comparison of the Impact of Racial Resentment on Death-penalty Attitudes with other Policy Attitudes***

We move in this section to another way of considering the relative importance of racial resentment on death penalty opinion. Tables 8 and 9 present the same regression models as Model 4 from Table 3, our main regression evidence about support for the death penalty. Table 8 substitutes four different attitudes for death penalty support: spending on social security, spending to protect the environment, foreign aid, and AIDS research. Table 9 then looks at welfare, aid to the poor generally, crime, and the death penalty. The last column replicates the values from Model 4 in Table 3. Because each model is the same, but with the dependent variable changed, it allows a direct comparison of the relative impact of racial resentment on those different attitudes. Paying attention to the other variables in the model also allows an assessment of what factors might be driving which attitudes.

Table 8. Predicting support for relatively race-neutral policies.

|                               | Social<br>Security | Environment | Foreign<br>Aid | AIDS<br>Research |
|-------------------------------|--------------------|-------------|----------------|------------------|
| Intercept                     | 1.925              | 0.805       | 0.052**        | 3.685*           |
| Race: Hispanic                | 0.647              | 1.613       | 0.501          | 0.645            |
| Race: Other                   | 0.741              | 1.517       | 1.324          | 0.507*           |
| Race: White                   | 0.916              | 1.311       | 0.525          | 0.603*           |
| Religion: Jewish              | 0.974              | 1.541       | 4.173**        | 1.847            |
| Religion: Other/None/DK       | 0.860              | 1.039       | 1.521          | 0.694*           |
| Religion: Protestant          | 0.756              | 0.740       | 0.843          | 0.652**          |
| Born Again Christian          | 0.899              | 1.034       | 1.359          | 1.153            |
| Female                        | 1.391**            | 0.879       | 0.994          | 0.914            |
| Education                     | 0.684*             | 1.218       | 0.586          | 0.924            |
| Age                           | 1.260              | 0.684       | 0.943          | 0.509**          |
| Social Class                  | 0.365***           | 0.911       | 1.504          | 0.428***         |
| Urbanism                      | 1.240              | 0.782       | 1.036          | 1.417            |
| Political South               | 1.383*             | 1.353*      | 1.029          | 1.483**          |
| Party ID (7pt)                | 0.350***           | 0.384***    | 0.881          | 0.614*           |
| Ideology                      | 0.737              | 0.782       | 1.351          | 0.763            |
| Authoritarianism              | 1.031              | 0.632       | 0.427*         | 0.654            |
| Biblical Authority            | 2.227***           | 1.675*      | 1.411          | 1.284            |
| Black Influence               | 0.883              | 0.531***    | 0.482          | 0.735            |
| Egalitarianism                | 3.015**            | 5.005***    | 2.022          | 4.575***         |
| Moral Traditionalism          | 0.631              | 0.532       | 0.196**        | 0.418*           |
| Past-Year Financial Situation | 0.879              | 2.009**     | 4.204**        | 1.165            |
| Religiosity                   | 0.901              | 0.980       | 2.321*         | 0.589*           |
| Social Trust                  | 0.479***           | 0.772       | 0.669          | 0.954            |
| White FT                      | 1.715              | 1.680       | 3.817          | 1.437            |
| Racial Resentment             | 2.027*             | 0.935       | 0.788          | 1.183            |
| N                             | 1,732              | 1,732       | 1,723          | 1,733            |
| AIC                           |                    |             |                |                  |
| BIC                           |                    |             |                |                  |

Notes: Entries report odds ratios from survey-weighted logistic regressions using the ANES cumulative-file weight VCF0009z. All models use the same predictor specification as the final pared 2000 death-penalty model. Each dependent variable equals 1 for support for increased federal spending and 0 for support for the same, decreased, or no spending. Black is the reference race category and Catholic is the reference religion category. Significance tests are two-sided. \*  $p < .05$ ; \*\*  $p < .01$ ; \*\*\*  $p < .001$ .

Table 9. Predicting support for relatively racialized policies.

|                               | Welfare  | Aid to<br>Poor | Crime    | Death Penalty |
|-------------------------------|----------|----------------|----------|---------------|
| Intercept                     | 0.749    | 1.370          | 0.813    | 0.288         |
| Race: Hispanic                | 0.864    | 0.934          | 1.136    | 2.090*        |
| Race: Other                   | 0.800    | 0.652          | 0.835    | 2.153*        |
| Race: White                   | 0.754    | 0.538*         | 0.775    | 2.550***      |
| Religion: Jewish              | 2.115    | 2.044          | 1.245    | 1.097         |
| Religion: Other/None/DK       | 1.354    | 0.781          | 0.587**  | 0.768         |
| Religion: Protestant          | 0.898    | 0.772          | 0.957    | 1.101         |
| Born Again Christian          | 1.172    | 0.984          | 0.870    | 0.942         |
| Female                        | 1.009    | 1.276*         | 1.519*** | 0.835         |
| Education                     | 0.617*   | 0.503***       | 0.653*   | 1.013         |
| Age                           | 0.866    | 1.034          | 0.481**  | 0.643         |
| Social Class                  | 0.832    | 0.686          | 0.731    | 0.838         |
| Urbanism                      | 1.420    | 0.853          | 0.937    | 1.814*        |
| Political South               | 1.109    | 1.542**        | 0.974    | 1.209         |
| Party ID (7pt)                | 0.674    | 0.545**        | 0.940    | 2.422***      |
| Ideology                      | 0.534    | 0.399*         | 1.080    | 1.378         |
| Authoritarianism              | 1.412    | 1.503          | 1.491    | 2.966***      |
| Biblical Authority            | 1.330    | 1.177          | 1.543    | 1.169         |
| Black Influence               | 1.148    | 0.886          | 0.837    | 0.988         |
| Egalitarianism                | 3.616*   | 14.364***      | 3.227**  | 0.692         |
| Moral Traditionalism          | 0.279**  | 0.873          | 0.800    | 0.964         |
| Past-Year Financial Situation | 0.502    | 0.947          | 1.253    | 1.106         |
| Religiosity                   | 0.946    | 1.081          | 0.992    | 0.362***      |
| Social Trust                  | 0.737    | 0.870          | 1.138    | 0.835         |
| White FT                      | 1.596    | 1.511          | 1.141    | 1.142         |
| Racial Resentment             | 0.220*** | 0.416*         | 2.469**  | 5.944***      |
| N                             | 1,736    | 1,732          | 1,749    | 1,671         |
| AIC                           |          |                |          |               |
| BIC                           |          |                |          |               |

Notes: Entries report odds ratios from survey-weighted logistic regressions using the ANES cumulative-file weight VCF0009z. All models use the same predictor specification as the final pared 2000 death-penalty model. For the spending outcomes, 1 indicates support for increased federal spending and 0 indicates support for the same, decreased, or no spending. Death Penalty equals 1 for favor and 0 for oppose. Black is the reference race category and Catholic is the reference religion category. Significance tests are two-sided. \*  $p < .05$ ; \*\*  $p < .01$ ; \*\*\*  $p < .001$ .

Tables 8 and 9 show the unique and powerful impact of racial resentment on the death penalty. It is unrelated to attitudes toward spending for the environment, foreign aid, and AIDS research, but has a significant impact on social security spending attitudes as well as those relating to

welfare, aid to the poor, and crime. Racial resentment connects more with the death penalty than even with these three variables, however.

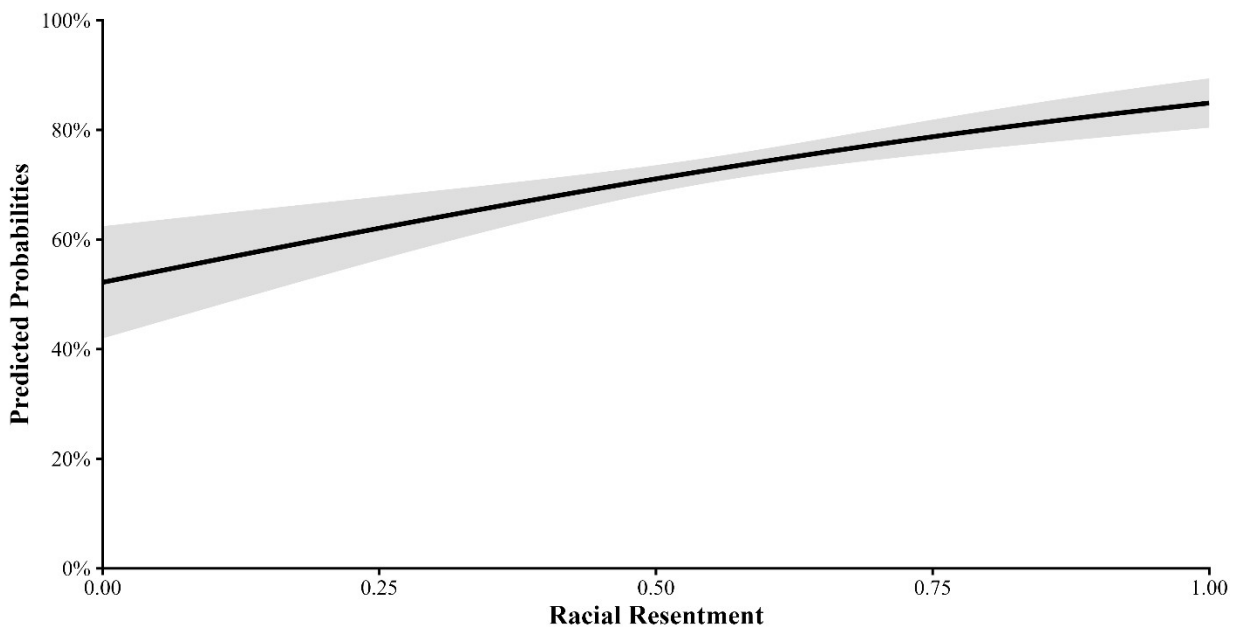
We should note that the odds-ratio for racial resentment in the model predicting support for welfare spending is very low, 0.220. If we were to reverse the coding of the dependent variable, the odds ratio would be almost as high as in the death penalty model. We also omitted from this model the “aid to blacks” measure that is also available in the 2000 ANES data file, and this showed a very powerful connection with racial resentment. In both cases, we believe that these connections do not reflect a substantive theoretical connection between two distinct variables. Rather, we think that the measurement of racial resentment, with its emphasis on “working harder” and similar constructs, makes it so closely connected to questions about support for spending programs for the poor, aid to blacks, and welfare, that these are not sufficiently distinct to reach the conclusion that one is causing the other.

Support for spending on crime is closely connected to racial resentment, but the odds ratio there, 2.5, indicates less than half the impact on the relevant attitude as the odds-ratio for the death penalty, 5.9. The death penalty stands alone in being so strongly connected to racial resentment.

#### ***5.4 Multivariate Assessment***

Finally, we turn to an interpretive figure to understand how support for the death penalty changes as we move from low to high levels of racial resentment, holding other things constant. Figure 11 presents the predicted probability of support for the death penalty over racial resentment. This results from the Death Penalty model from Table 9, which is the same as Model 4 from Table 3 above. It is based on the 2000 ANES.

Figure 11. Predicted likelihood of support for the death penalty by racial resentment, with controls.



Because racial resentment is correlated with such things as party identification, religion, and other factors, when we move from low to high on racial resentment, we are also generally moving on some of those other variables as well. People low on racial resentment tend to be Democrats, for example. Figure 11 holds all those co-variates constant so that we can observe the predicted impact of racial resentment more clearly. It is highly significant, leading to a shift from approximately 52 percent likelihood of support to over 80 percent support. Of course, Figures 9 and 10 showed that in a bivariate assessment, the impact is even greater. Figure 11 shows that impact net of any simultaneous changes in other variables.

### ***5.5 Racial Resentment is the Key Contributor to Death-penalty Attitudes, and this Relation is Unique to the Death Penalty Compared to other Policies***

This section has explored in detail the relations between racial resentment and death-penalty attitudes, looking cross-sectionally, longitudinally, in a bivariate manner and with a multivariate lens, and comparing the death penalty with other political attitudes as outcome variables. The

result of all of this is to give us confidence not only that there is a tight relation, but also that this relationship is closer for the death penalty than for virtually any other political attitude.

## **6. Symbolic Racism or Generalized Racial Hostility?**

Scholars of American public opinion have long grappled with the notion that although White Americans' racial attitudes have liberalized considerably since the gains of the Civil Rights Movement (Schuman et al. 1997), race still plays a structural role in American politics. Scholars have noted its role in structuring party conflict (Carmines and Stimson, 1989), informing candidate evaluations (Sears et al., 1997), determining preferences on welfare (Gilens, 2009) and informing our choices on healthcare (Tesler, 2012). This line of scholarship has found that support for racialized policies or racial candidates is not explained well by old-fashioned racism, given the social stigma attached to beliefs about the biological and intellectual inferiority of Black Americans. Instead, scholars have found that racial resentment, a blend of anti-Black affect and the Protestant work ethic, drives racial attitudes (Sears and Henry, 2003). Essentially, in the post-civil rights era, it is no longer socially acceptable to say certain things out loud. It may also be the case that fewer Americans hold certain views (such as biological differences based on race) that were once more common. This does not mean, however, that racial attitudes no longer differ among Americans. For those involved in survey research, these changes in cultural norms of social acceptability mean that questions designed to elicit overt racial prejudice may no longer reveal much of what is going on. The racial resentment scale seems to tap into something strongly racialized, but in a way that people are willing to admit.

In this section, we zoom in further on racial attitudes to understand whether the findings linking racial attitudes to support for the death penalty relate to generalized hostility to African-Americans or something more specific. How does our measure of racial animus, racial

resentment, compare with other measures of anti-Black attitudes? First, we briefly discuss the large and influential literature on symbolic forms of racism that undergirds the racial resentment scale. Second, we again turn to the 2000 ANES and the ANES time series, in which we leverage overt measures of anti-Black prejudice, ideological conservatism, and racial resentment to examine (1) whether they are measuring independent concepts or a single latent concept and (2) which better predicts support for the death penalty.

### **6.1. Symbolic Racism**

Since 1942, White Americans' attitudes on a host of racial issues have become more liberal. Schuman et al. (1997), for example, find that in 1942, 68 percent of White Americans favored segregated schools. By 1985, a mere two decades after the Voting Rights and Civil Rights Acts, only 7 percent held the same view. In 1944, 55 percent of White respondents agreed with the statement that White applicants should have priority over Black ones in job hiring. By 1972, just 3 percent held the same view. Blauner (1989) summarized the ethos of these mass changes:

The belief in a right to dignity and fair treatment is now so widespread and deeply rooted, so self-evident that people of all colors would vigorously resist any effort to reinstate formalized discrimination. This consensus may be the most profound legacy of black militancy, one that has brought a truly radical transformation in relations between the races. (Blauner 1989, 317)

The stigma against overt prejudice which arose after the civil rights movement was so pervasive that even avowed racist and former Klan member David Duke claimed during his 1990 run for senate in Louisiana he was not a racist, instead arguing that he was actually an ally of Blacks (see Lacy 2010).

Yet, as we have demonstrated with the racialized application of the death penalty, and as other scholars have observed with mass incarceration (Alexander 2010) and other sectors of social life such as homeownership, college attainment, and poverty, race is still pivotal role in public life

(Bobo et al. 1996). It has changed in form since the days of government-sanctioned Jim Crow (Bonilla-Silva 2003), but the disappearance of *de jure* segregation and discrimination does not mean that racial attitudes have moved to some form of post-racial innocence. Rather, racial animus and discourse have been shown to be more covert, with avoidance of explicit racial terminology. This movement from overt to covert has special implications for public opinion scholars as old-fashioned racism was much easier to measure in public opinion surveys. Today, few would admit to having such views, so the questions designed to measure latent racial attitudes must be more subtle.

Kinder and Sears (1981) raise the issue of whether “old-fashioned” racism of the Jim Crow era had been changed into a resentment among some White Americans that “blacks violate such traditional American values as individualism and self-reliance, the work ethic, obedience, and discipline” (Kinder and Sears 1981, 416). They developed the racial resentment scale to tap into this new type of racial attitude. Paul Sniderman and Edward Carmines (1997) are the main scholars to argue that opposition to affirmative action and other racial programs that may aid Blacks has more to do with principled conservative objections to the issues than racial prejudice (see also Sniderman and Piazza 2002, Feldman and Huddy 2005, Sniderman and Tetlock 1986). When put to the test experimentally, however, DeSante (2012) shows that those high in racial resentment show a substantial bias toward white welfare recipients compared with Black welfare recipients, all things being equal.

Brown (2009) notes the connection between racial resentment among White individuals and a wide range of criminal justice and other attitudes; racial resentment combines racial hostility with an assessment that Black individuals are not “working hard enough” or taking personal responsibility for their choices. Thus, it is reflected in support for policies requiring work and

drug testing for public benefits and harsh criminal justice policies, since these reflect punishments for poor choices made by individuals with insufficient personal discipline. With the legal barriers to success from the Jim Crow era removed, any further racial disparities, this argument goes, must be ascribed to a lack of effort.

Jardina (2019) notes the significant decline in overt racism among Whites but also the rise of a “new” more “subtle” form of racial hostility, one promoted by political elites seeking political advantage by exploiting such frustrations. The movement from old-fashioned racism to dog-whistle politics is best exemplified by Republican operative Lee Atwater in a 1981 interview describing the Republican “Southern Strategy” of mobilizing voters with racial animus toward African-Americans. The words had changed, but not the strategy.

You start out in 1954 by saying, 'N\_\_\_\_, n\_\_\_\_, n\_\_\_\_.' By 1968 you can't say 'n\_\_\_\_'—that hurts you, backfires. So you say stuff like, uh, forced busing, states' rights, and all that stuff, and you're getting so abstract now [that] you're talking about cutting taxes, and all these things you're talking about are totally economic things, and a byproduct of them is [that] blacks get hurt worse than whites.... “We want to cut this” is much more abstract than even the busing thing, uh, and a hell of a lot more abstract than “N\_\_\_\_, n\_\_\_\_. So, any way you look at it, race is coming on the back burner.” (Perlstein, 2012)

Coded language about inner cities and rampant crime replaced overt racial overtures. It is of course particularly noteworthy, and important for our analyses, that crime, particularly “urban crime” came to be so heavily racialized. One need not mention race when mentioning “urban crime;” it is understood implicitly. John DiIulio’s “super-predator” myth (DiIulio 1995, 1996) is part of a long series of using fear and crime to racialize a problem, and nowhere has this tendency been greater than in the area of crime policy.

The new coded language about race has, since the Civil Rights Movement, posed measurement problems for scholars of American public opinion interested in measuring racial attitudes. While racial attitudes have definitely changed, few would believe that racial attitudes no longer differ

among members of the public. These differences, however, have become more difficult to observe in the setting of a sample survey. One strand of this new scholarship on race, and the one employed in this Element, is symbolic racism (Kinder and Sears 1981), or racial resentment (Kinder and Sanders, 1996). While named differently, both symbolic racism and racial resentment are measured the same way and aim to capture the same dynamic. The four-question battery was presented in Section 3.2.1 above; the key question is whether it allows individuals who do harbor adverse attitudes toward Black Americans to express those views without embarrassment. Or, perhaps, does the racial resentment scale tap into something different from generalized antipathy or hostility to African-Americans. Some have argued, for example, that it taps into the Protestant work ethic rather than a more generalized hostility. So, it is important to know whether the racial resentment measure we have used, and which has such a powerful effect, is a measure of racial hostility or one of adherence to American values of hard work.

Lafleur Stephens-Dougan (2020) perhaps sums up the controversy here by noting that, no matter what people think it is measuring, the scale does a “remarkably good job of distinguishing between white Americans who express hostility toward blacks and those who do not ...” (51). That said, below we try to disentangle the effects of anti-Black prejudice, principled conservatism, and racial resentment (the combination of both). We leverage the ANES data below to show more explicitly the outsized effect of racial resentment on support for the death penalty. We want to know whether the racial resentment scale is a measure of hostility toward African-Americans or something else.

There is debate whether this decline is substantive or methodological; see DeSante and Smith 2020 for an argument that younger respondents have simply learned better how to answer the questions included in the resentment scale. These methodological concerns are noteworthy,

particularly with regards to the continued viability of using the scale going forward. These questions speak volumes about the difficulty of studying uncomfortable and socially disfavored racial attitudes. The bulk of the research in this Element shows, however, just how important it is to do so.

## ***6.2. An Assessment of the Racial Resentment Scale using the 2000 ANES***

The core objective of this section is to probe whether racial resentment is the pre-eminent measure of racial animus on the ANES. We also seek to test whether racial resentment and ideological/principled conservatism are one in the same or constitute two distinct dimensions. As we have described above, much scholarship has already been dedicated to disaggregating both concepts. When employing survey data, this has typically been done using factor analysis (Sears et al. 1997).

We similarly employ a factor-analytic approach, but instead use an exploratory item response theory (IRT) model. Unlike classical factor analysis, which assumes item responses are continuous and models linear relationships among observed variables, IRT does not assume continuity. It treats each observed item response as a probabilistic function of a respondent's position on an underlying latent trait. We fit a two-factor graded response IRT model (Treier and Hillygus, 2009; Bockenholt, 2017) employing the mirt package in R to a battery of six items; Racial Resentment; Blacks are lazy; Blacks have too much influence; egalitarianism; moral traditionalism; and ideology. Again, we expect racial resentment to load with other racial attitudes while ideology should capture more conservative/traditional elements. Table 10 shows the results.

Table 10. Exploratory IRT rotated factor loadings.

| Item                           | Factor 1      | Factor 2     |
|--------------------------------|---------------|--------------|
| Racial Resentment              | -0.207        | <b>0.642</b> |
| Blacks Are Lazy                | 0.232         | <b>0.545</b> |
| Blacks Have Too Much Influence | 0.001         | <b>0.781</b> |
| Egalitarianism                 | <b>0.889</b>  | -0.036       |
| Moral Traditionalism           | <b>-0.627</b> | 0.146        |
| Ideology                       | <b>-0.728</b> | -0.109       |

*Note:* Entries are rotated factor loadings from an exploratory two-factor graded-response IRT model (oblimin rotation), ANES 2000. Salient loadings ( $|\lambda| \geq 0.40$ ) are shown in bold.

A factor loading is a number ranging from -1 to +1, that tells us how strongly the observed item is related to the underlying factor. Negative loadings simply mean that the two items tend to move in opposite directions, so we see for example that egalitarianism loads strongly and positively on Factor 1, but moral traditionalism and ideology are strongly negative. They still correlate with the same concepts. Table 10 clearly identifies two separate and distinct factors.

The first dimension, Factor 1, is strongly connected with values of egalitarianism (0.889), moral traditionalism (-0.627), and ideology (-0.728), while only weakly related to the three race-related items. The second dimension, Factor 2, consists of the three race-related measures (racial resentment: 0.642; “blacks are lazy”: 0.545; and “Blacks have too much influence”: 0.781) but does not correlate with the three variables associated with Factor 1.

Empirically, though the two factors identified in Table 10 are distinct and they load on separate variables, they do correlate with each other ( $r = -0.362$ ). This suggests that traditionalism (Factor 1) and racial animosity (Factor 2) are moderately connected. This gives credence to the notion that racial resentment is mostly associated with racial animus (DeSante, 2013) while also tapping into a blend of Protestant work ethic (Kinder and Sears 1981). Table 10 shows, however, that the racial resentment scale loads at only -0.207 on the traditionalism scale but at 0.642 on the racial

animus scale. That suggests it is much more strongly associated with racial animus than with traditionalism, and that is therefore our interpretation of the meaning of our results.

### ***6.3. Comparison of Racial Resentment with other Racial Attitude Measures in Predicting Death-penalty Sentiment***

Using the model in Table 3, Model 4 as a baseline, we add the "Blacks Are Lazy" item and isolate the variables included in our IRT factor analysis to observe their effect on death penalty support, controlling for all other political and demographic factors. Figure 12 shows these results.

Figure 12. Racial resentment compared to other predictors of death-penalty support (odds-ratios).

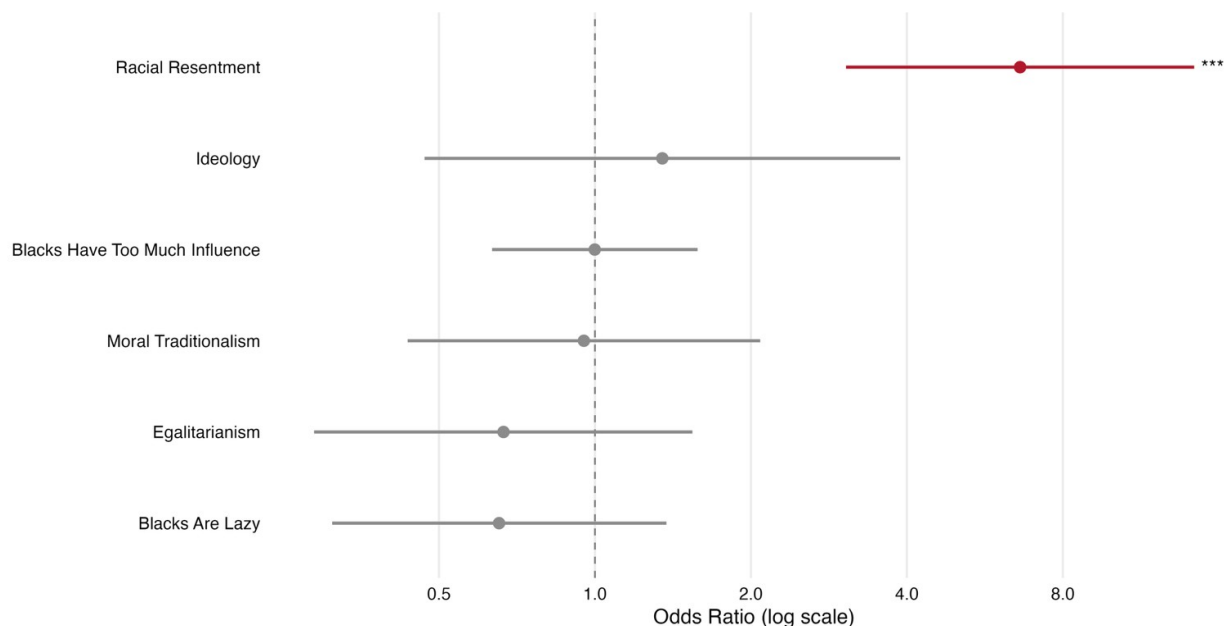


Figure 12 shows the outsized impact of racial resentment compared to the other variables in the model. These results show odds-ratios, indicating the degree to which the variable in question increases the likelihood of support for the death penalty while holding all other variables in the model constant. (The model here is the same as in Table 3, with the addition of the “Blacks are lazy” item which was not included in Table 3 and which is itself an insignificant predictor.)

These results are consistent with the odds-ratios shown for racial resentment in Table 3 (5.9) and

Table 5 (6.6), showing a value here of approximately 6.6. None of the other traditionalism or race variables are statistically significant.

Figure 12 shows that the more overt discriminatory measures, Blacks Have Too Much Influence and Blacks Are Lazy, do not hold up as meaningful predictors. This is consistent with the literature (e.g., Schuman et al. 1997) suggesting that White respondents are unlikely to express overt racial prejudice in a survey setting given the social stigma attached to doing so, meaning such measures are unlikely to translate into support for racialized policy positions. Ideology, moral traditionalism, and egalitarianism similarly show little independent effect in the model. We suspect ideology's null effect stems from its strong association with party identification, which is itself a significant predictor in the model (see Tables 3 and 5). As the parties have sorted along ideological lines, party ID and ideology function as nearly interchangeable predictors in statistical models (Hetherington and Weiler 2018).

Thus far, we have shown that racial resentment captures racial animus that is moderately, but not fully, connected to ideologically principled conservatism. We have also shown that the predictive power of racial resentment in explaining death penalty support far outweighs that of any of the other racial attitude measures in our model. We further examine the predictive power of these items below in Figure 13 with a series of predicted probability plots.

Figure 13. Racial resentment compared to other predictors of death-penalty support (predicted probabilities).

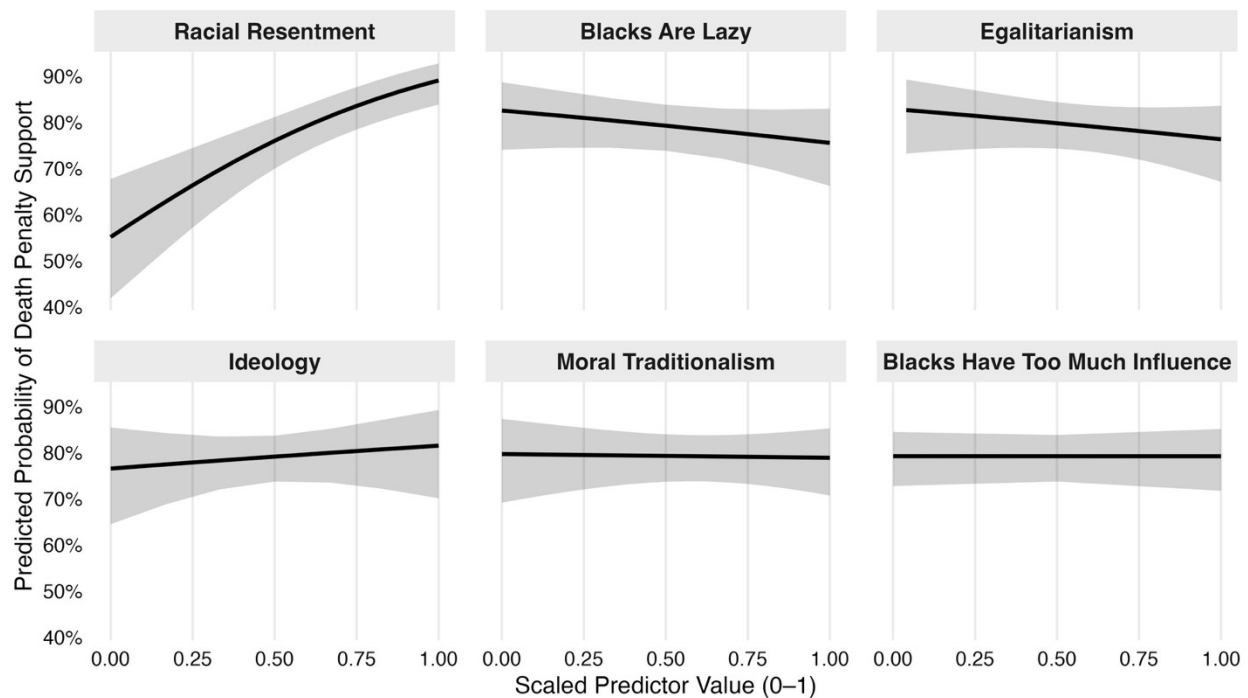


Figure 13 is based on the same analyses as in Figure 12, but shows the predicted likelihood of support for the death penalty based on values of each of the six predictors variables; again, other factors are held constant. Moving from low to high on racial resentment generates a 32-point change in the likelihood of supporting capital punishment, and none of the other factors shown seem to be strong predictors.

This section has delved into the methodological weeds, so to speak, so that we can understand the meaning of our findings about racial resentment. Is it about moral traditionalism or about racial animus? It's racial animus.

## 7. Minority Support for the Death Penalty

Our analysis thus far points to race and racial attitudes as key drivers of public opinion toward the death penalty. A substantial caveat to this claim, which we aim to address in this section,

stems from the fact that the vast majority of respondents in our analyses, around 78 percent of respondents in the ANES pooled data, for example, were White. Thus, we supplement analyses with the limited number of ethnic minorities in our ANES sample with the Collaborative Multiracial Post-Election Survey (CMPS), with a large sample (Black  $n = 3,102$ , Hispanic  $n = 3,002$ ) of Black and Hispanic Americans, the two largest racial and ethnic minority groups in the United States. (Because the CMPS does not include a measure of racial resentment, the results are not directly comparable with those presented in the main text; we show these analyses in Appendix D.) As we will detail below, while some scholarship has broached the subject of minority support (or lack thereof) for the death penalty (Price 2015), our empirical knowledge of what drives racial and ethnic minorities to support or oppose the death penalty is limited, and, in turn, so is theory. We take on this task by drawing on an emerging body of scholarship on minority support for racialized policies. In so doing, we hope this section provides a foundation for scholars interested in minority support for capital punishment, a policy we have shown by this point to be steeped in racial matters.

### ***7.1: Previous Research on Minority Support for Racialized Policies***

In recent years, increased attention has been paid to racial and ethnic minority support for racialized policies. Hickel et al. (2020) and Perez et al. (2025), for example, find that Latino Americans who prioritize their American identity over their ethnic identity are more likely to support nativist immigration policies and Republican candidates. Perez et al. (2023) find that affirming their American identity leads many Latinos to support anti-Black policies, and denial of racism also appears to drive many Latinos toward support for conservative policies and candidates (Alamillo 2019; Hickel et al. 2024; Cadena Jr. 2025). Jefferson (2023) finds that a greater embrace of respectability politics among Black Americans is associated with support for

racialized and punitive policies toward fellow group members, while White and Laird (2020) document the emergence of conservative political preferences among some Black Americans and show how personal gain can lead some Black Americans toward more conservative political choices.

While this literature has convincingly identified a conservative strand among Black and Latino Americans, classic accounts of racial and ethnic minority political behavior tell us that discrimination and group solidarity matter. The vast majority of Black and Latino Americans acknowledge the presence of discrimination in American society (Dawson 1995; Garcia and Sanchez 2021). Similarly, the vast majority express their own feelings of group solidarity (Sanchez 2006; McClain et al. 2009). Both of these factors, acknowledgement of discrimination and feelings of group solidarity, lead to staunch opposition to racialized policies and candidates. Group consciousness (or “linked fate”; see Dawson 1995; Sanchez 2006; McClain et al. 2009) is considered the foundation of minority support for the Democratic Party, as well as guiding minorities toward a host of liberal political preferences (Miller et al. 1981; Cisneros 2016; White and Laird 2020).

The primary aim of this section is, of course, to understand how these accounts of minority political behavior bear on the question of capital punishment. As mentioned above, empirical work on the question is scarce. That said, the literature thus far lends us some critical insights. Sochran and Chamlin (2006) find, using GSS data, that, controlling for other factors, Whites have supported the death penalty at considerably higher levels than Blacks, a finding we replicate in Figure 14 using the ANES time series.

Figure 14. Support for the death penalty, by race, over time.

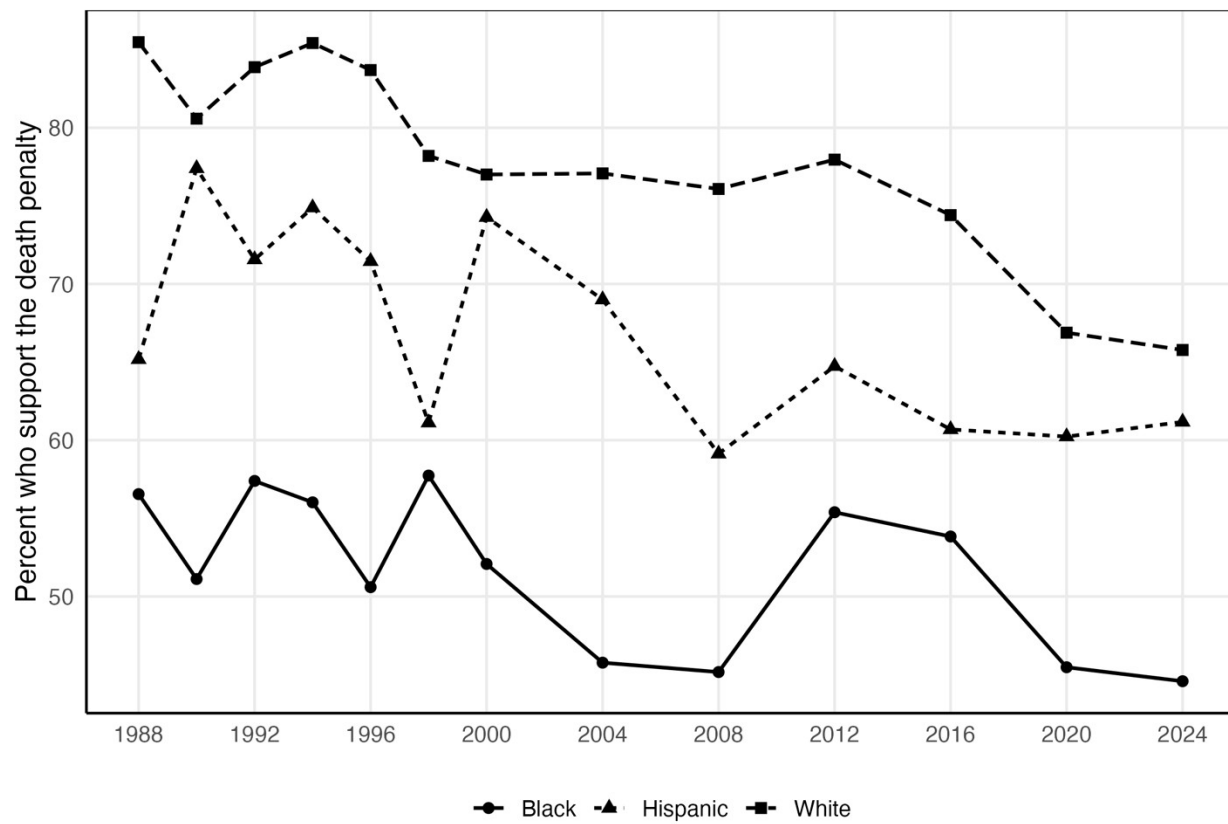


Figure 14 clearly shows that support for the death penalty is strongest in the case of White respondents, somewhat lower among Hispanic Americans, and considerably lower among African-Americans, who are consistently 30 percent-points lower in their levels of support. The Figure also shows all three groups generally reducing their levels of support over the period since 1988, consistent with Figure 1.

Still, minority support for the death penalty, while lower than White support, remains significant. Bobo and Johnson (2004) employ several survey-based experiments to tackle the question of Black support for the death penalty. While they find in different experimental conditions that conservative political ideology, the salience of crime, and even racial animus can drive Black Americans to support the death penalty, these relationships were highly conditional on how the

issue was framed, that is, in racial terms. This was even true of a negative predictor of death penalty support: belief that the criminal justice system is biased against Blacks. Lastly, Price (2015), utilizing pooled data from the Houston Area Study of Black Americans, finds that fear of crime, Republican Party identification, and income increase the odds of supporting the death penalty. Perceptions of group discrimination and church attendance decrease the likelihood of supporting the death penalty. Foglia and Connell (2018) find, using a large dataset of jurors in 14 states, that Black and Hispanic jurors are more likely to report distrust of the capital process and higher levels of empathy with the defendant. This may well have to do with research finding that racial minorities tend to perceive systemic discrimination against their groups at high levels (Dawson 1995; Sanchez and Masuoka 2010).

Given the literature, we expect Group Consciousness and Democratic partisanship to lead both Black Americans and Latinos to oppose the death penalty, while prioritization of American identity, immigration attitudes, and crime concerns should lead Latino Americans and Black Americans to support the death penalty.

## ***7.2: Individual-level Analysis on Minority Support for the Death Penalty***

Table 11 shows results for Black Americans using pooled ANES data from 2012 to 2024.

Included are standard demographic variables such as age, education, income, and gender. We also include the classic linked-fate question (Dawson 1995), which asks respondents whether they feel their fate is tied to that of their group, along with a measure of perceived group-level discrimination, party identification, authoritarianism, racial resentment, and other political variables.

Table 11. Predicting Support for the Death Penalty, Black Respondents

| Variable                 | Odds-Ratio |
|--------------------------|------------|
| Immigration Attitudes    | 1.185      |
| Perceived Discrimination | 1.341      |
| Party Identification     | 1.725      |
| Linked Fate              | 1.049      |
| Year: 2016               | 0.865      |
| Year: 2020               | 0.819      |
| Year: 2024               | 0.713      |
| Religion: Jewish         | 0.656      |
| Religion: Non Religious  | 0.827      |
| Religion: Other          | 1.109      |
| Religion: Protestant     | 1.009      |
| Ideology                 | 2.008      |
| Crime Spending           | 1.096      |
| Age                      | 0.703      |
| Gender: Male             | 1.140      |
| Education                | 1.012      |
| Income                   | 1.399      |
| Religiosity              | 0.856      |
| Economic Evaluation      | 0.939      |
| Authoritarianism         | 2.742**    |
| Racial Resentment        | 2.762*     |
| N                        | 1,192      |
| AIC                      | 1532.0     |
| BIC                      | 1606.3     |

Note: Cell entries are odds ratios from survey-adjusted logistic regression. Model uses pooled ANES data. \* $p < .05$ ; \*\* $p < .01$ ; \*\*\* $p < .001$ .

Our main finding is that racial resentment and authoritarianism are both strong predictors of death penalty support, though the model has few significant variables overall. This is consistent with recent scholarship on Black support for punitive policies targeting fellow group members (Jefferson 2023; Sommer and Franco 2025). There has always been a conservative strain within the African American mass public (Dawson 2001), which can lead some Black Americans to embrace racially conservative rhetoric and policies (Rigueur 2015); we believe this may help explain the racial resentment finding, though we return to this point below. As for authoritarianism, while some scholars have argued the construct may be inapplicable to racial minorities and thus reflects a measurement artifact (Pérez and Hetherington 2014), newer

research however challenges this claim and finds measurement invariance in the scale across groups (Engelhardt, Feldman, and Hetherington 2023; Fialho 2026). Across these studies and others (Jefferson, 2023) there is a consistent relationship between authoritarianism and support for conservative policies among Black Americans. Lastly, we note that linked fate and partisanship do not emerge as significant predictors, contrary to our expectations

Table 12 shows an equivalent model for Latino/a respondents, using the same data source and questions. We also add a control for national origin, given the diversity of national origins among U.S. Latinos, with Mexican-origin respondents as the reference category.

Table 12. Predicting Support for the Death Penalty, Latino Respondents

| Variable                        | Odds-Ratio |
|---------------------------------|------------|
| Immigration Attitudes           | 1.297*     |
| Perceived Discrimination        | 1.008      |
| Party Identification            | 2.016*     |
| Hispanic Origin: Other Hispanic | 1.098      |
| Hispanic Origin: Puerto Rican   | 0.589      |
| Linked Fate                     | 0.766      |
| Year: 2016                      | 1.232      |
| Year: 2020                      | 1.849      |
| Year: 2024                      | 0.736      |
| Religion: Jewish                | 0.424*     |
| Religion: Non Religious         | 1.186      |
| Religion: Other                 | 0.752      |
| Religion: Protestant            | 0.701      |
| Ideology                        | 0.960      |
| Crime Spending                  | 1.820***   |
| Age                             | 0.741      |
| Gender: Male                    | 1.165      |
| Education                       | 0.966      |
| Income                          | 1.534      |
| Religiosity                     | 0.911      |
| Economic Evaluation             | 1.040      |
| Authoritarianism                | 1.171      |
| Racial Resentment               | 3.681***   |
| N                               | 1,193      |
| AIC                             | 1401.6     |
| BIC                             | 1489.4     |

Note: Cell entries are odds ratios from survey-adjusted logistic regression. Reference category for Hispanic origin is Mexican; for year, 2012. \* $p < .05$ ; \*\* $p < .01$ ; \*\*\* $p < .001$ .

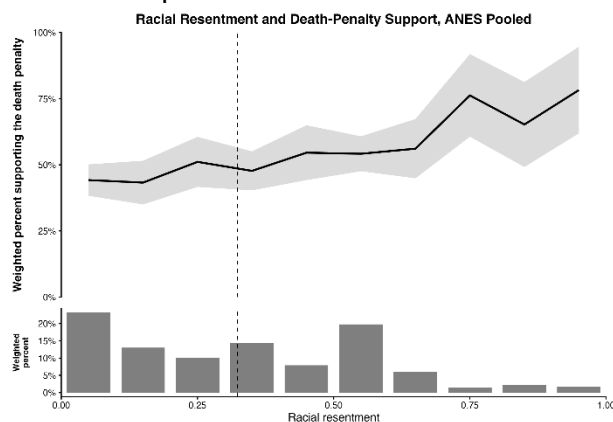
As before, racial resentment is a powerful and highly significant predictor of death penalty support (OR = 3.681,  $p < .001$ ), a stronger effect than in the Black sample (OR = 2.762). Unlike the Black sample, however, authoritarianism does not emerge as a significant predictor here (OR = 1.171, n.s.), suggesting that racial animus may drive things more similarly with Latinos as with White respondents. Consistent with our expectations regarding crime concerns, crime spending preferences are a strong, significant predictor of death penalty support (OR = 1.820,  $p < .001$ ), as are immigration attitudes (OR = 1.297,  $p < .05$ ) and party identification (OR = 2.016,  $p < .05$ ). Contrary to our expectations, however, neither perceived discrimination nor linked fate reach

statistical significance, suggesting that group consciousness and perceptions of discrimination, while robust predictors of opposition to the death penalty in some of the literature reviewed above (e.g., Sanchez 2009), may not be enough to bolster opposition towards the death penalty for minority groups.

Figure 15 takes the results from Tables 11 and 12 and shows the predicted likelihood of support for the death penalty, among Black and Hispanic respondents, over the range of racial resentment.

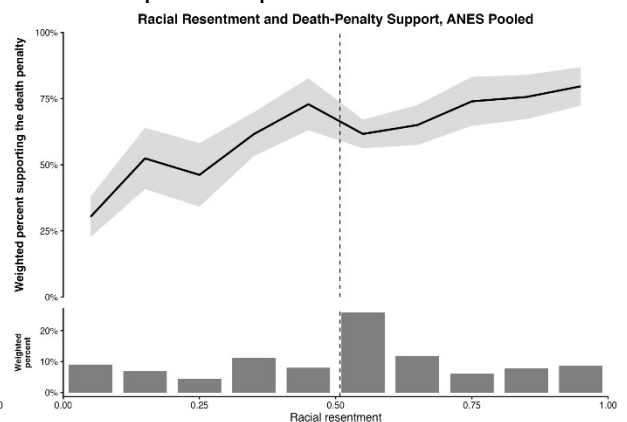
Figure 15. Racial resentment and support for the death penalty among Black and Hispanic respondents.

A. Black respondents



Notes: The line reports the survey-weighted proportion supporting the death penalty within fixed 0.10-wide racial-resentment intervals; the shaded region represents 95% confidence

B. Hispanic respondents



Notes: The line reports the survey-weighted proportion supporting the death penalty within fixed 0.10-wide racial-resentment intervals; the shaded region represents 95% confidence

Black individuals tend to have low levels of racial resentment; the bottom of Figure 15 shows this distribution for each racial group. (See Figure 11 for the overall results, combining all racial categories.) In both racial groups, the predicted likelihood of supporting the death penalty rises substantially as racial resentment moves from low to high. These results, of course, hold all other variables at their means or modes, and are based on the models presented in Tables 11 and 12.

## **8. Do States with Higher Levels of Support for the Death Penalty Condemn a Higher Share of Homicide Offenders?**

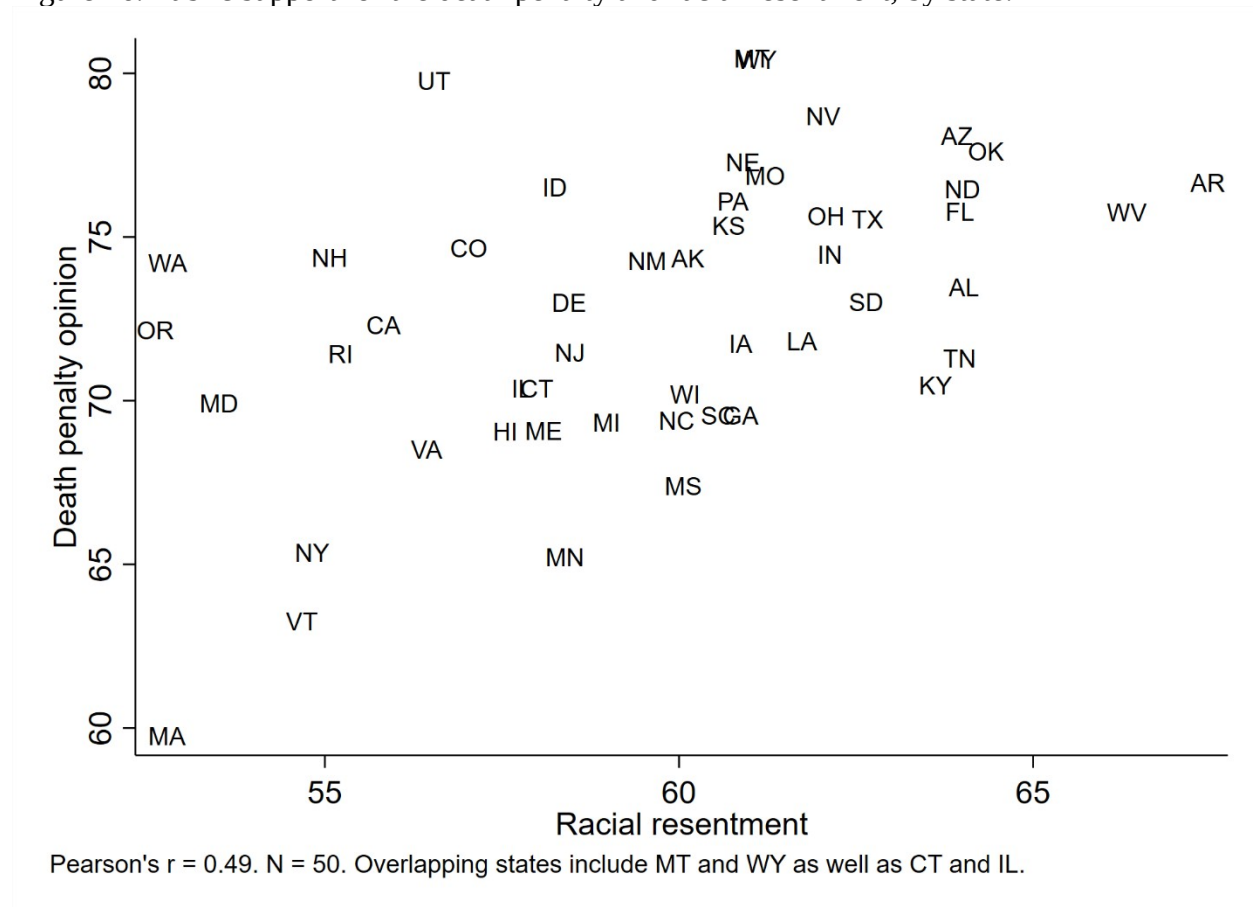
To this point we have focused on who supports the death penalty and why. Now we switch to another question: Does it matter? Do opinions on the death penalty affect the number of death sentences? We showed in Figure 2 that at the national level there is a strong empirical connection between a punitive “national mood” (see Stimson 1999) and a higher number of death sentences actually imposed. In this and the following two sections we assess these connections at the level of the US states. The death penalty, like other elements of the criminal legal system, is largely a state matter, and the states differ dramatically in their relative proclivities to use it. This section looks state by state; the next section develops yearly estimates of death penalty sentiment and racial resentment for each state; and Section 10 uses these estimates to predict the number of death sentences imposed. We show a tight connection between public attitudes and the number of death sentences imposed. Of course, the previous sections have clearly (and exhaustively) demonstrated that these attitudes derive substantially from racial resentment. In this final part of the Element, we demonstrate that such attitudes are not merely of academic interest. They drive actual usage up or down across the states and over time. In the end, racial resentment has an indirect impact on death sentencing because public opinion matters so much. It also has a direct effect, however. Even controlling for levels of attitudinal support for the death penalty at the state-year level, higher levels of racial resentment lead to more death sentences being imposed. We start with a state-by-state comparison.

People living in Massachusetts and those in Montana have different political orientations, on average. In this section, we explore state-level differences in these attitudes and how they relate to actual usage of the death penalty. We find that the spatial linkage between opinion and

practice is only modest. Most of the variance in death penalty usage relates to time, not place. As attitudes have changed over time, so has usage. Place matters, but time matters more.

We begin by looking at the state-level correlations between the two measures of opinion, averaged over time. Figure 16 shows how the 50 states array with regard to their level of support for the death penalty (on the y-axis) and average levels of racial resentment (x-axis).

Figure 16. Public support for the death penalty and racial resentment, by state.



The correlation in Figure 16 is 0.49, and the Figure illustrates a modest connection between the two constructs.<sup>6</sup> The two concepts are related, but there is considerable independent variance. For example, Massachusetts, Oregon, and Washington all fall near the same point at the lowest end

<sup>6</sup> Appendix E shows a replication of this Figure excluding years and states without a valid death-penalty statute; the correlation drops to 0.22.

of the racial-resentment scale, but they differ substantially on their levels of support for the death penalty. Similarly, if one reads across the Figure looking at those states with an average level of support for the death penalty at around 75, we see Washington, New Hampshire, Colorado, New Mexico, Alaska, Indiana, and then just a slight bit higher Texas, Florida, West Virginia and Arkansas. This brings us across the entire range of the racial-resentment scale. So there is a lot of independent variation in each, though we can also see a modest correlation.

Figure 17 shows the average public opinion score over time for each state along with the rate of death sentencing per 100 homicides in that state. It includes the 40 states that have had a valid death-penalty statute at any time in the modern era (post-*Furman*). To calculate the rate of death sentencing, we start with the total number of homicides across all the years since 1972 during which that state had a legally valid capital punishment statute, using CDC values. We then use the total number of death sentences to calculate the rate per 100 homicides across the entire post-*Furman* period. This number can literally be interpreted as the percentage of homicides that lead to a death sentence. Readers may be surprised to know that the numbers are typically around one percent; the death penalty is a rare punishment for homicide, with no state averaging even as much as five percent of homicides leading to a sentence of death. This value is on the y-axis and the average public opinion estimate for that state is on the x-axis.

Figure 17. Death sentencing rate and public support for the death penalty since *Furman*.

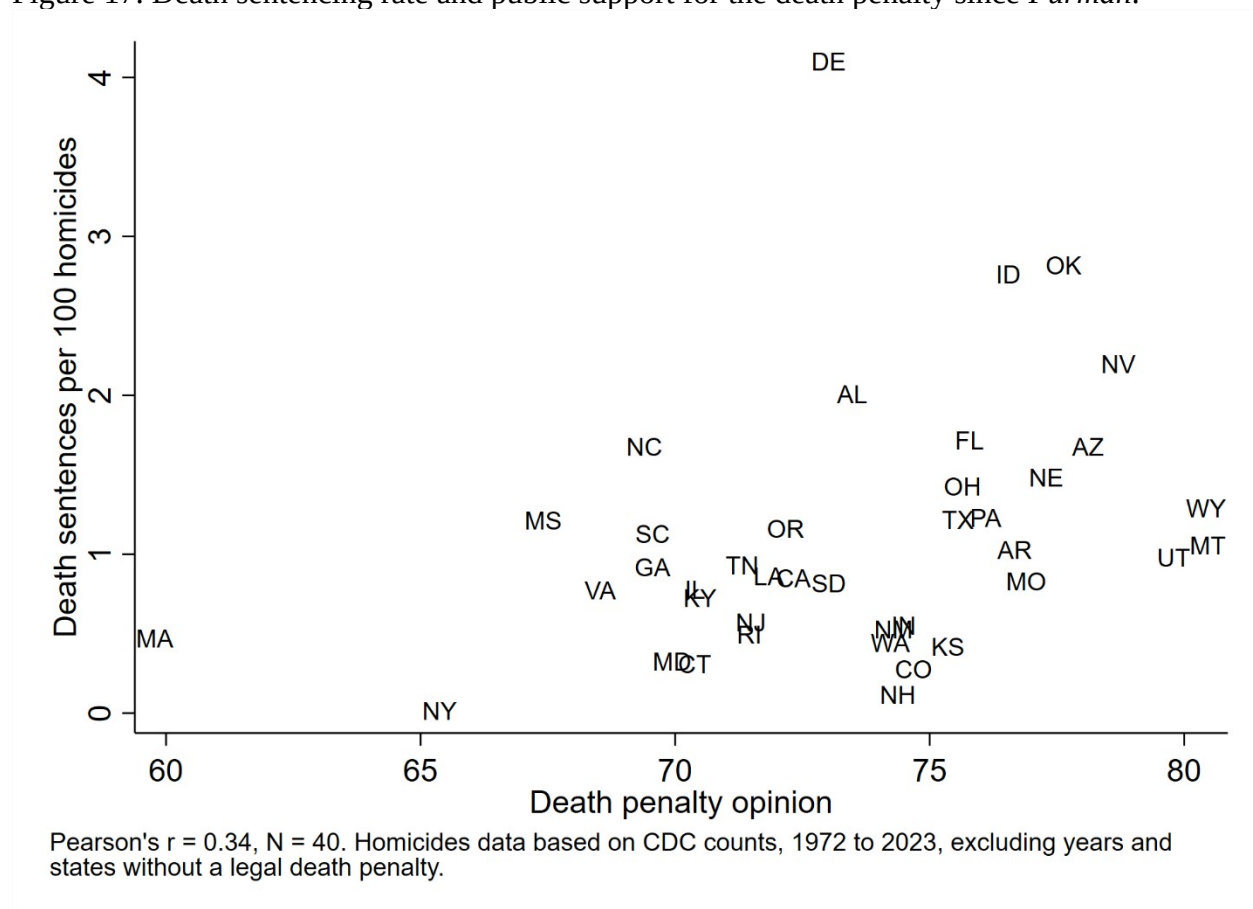


Figure 17 shows a weak correlation at the state level.<sup>7</sup> Across the 40 states with a modern history of the death penalty, Delaware stands at the top with a rate of death sentencing equal to approximately 4 percent of all homicides. Many states cluster very close to zero, since they have had fewer than five death sentences overall since 1972. Some others, such as Virginia, Pennsylvania, Texas, and California, may surprise since these are major death-penalty states, but they have relatively low rates per 100 homicides; these states have a lot of homicides so even with only around one percent of them leading to a sentence of death, it adds up to a lot of death

<sup>7</sup> Appendix E shows a replication of Figure 6 where opinion is calculated only for those years where the state had a valid death penalty statute. Results are similar but the correlation drops to 0.30. It also shows a version substituting the number of death sentences for the rate. The correlation drops to zero in that case.

sentences (over 1,000 in California and Texas, as well as in Florida, where the rate per 100 homicides is slightly higher, near two percent).

Figure 18 shows the same data as in Figure 17 regarding state-level death sentencing per 100 homicides and compares this with racial resentment, rather than with death-penalty opinion.

Figure 18. Death sentencing rate and racial resentment.

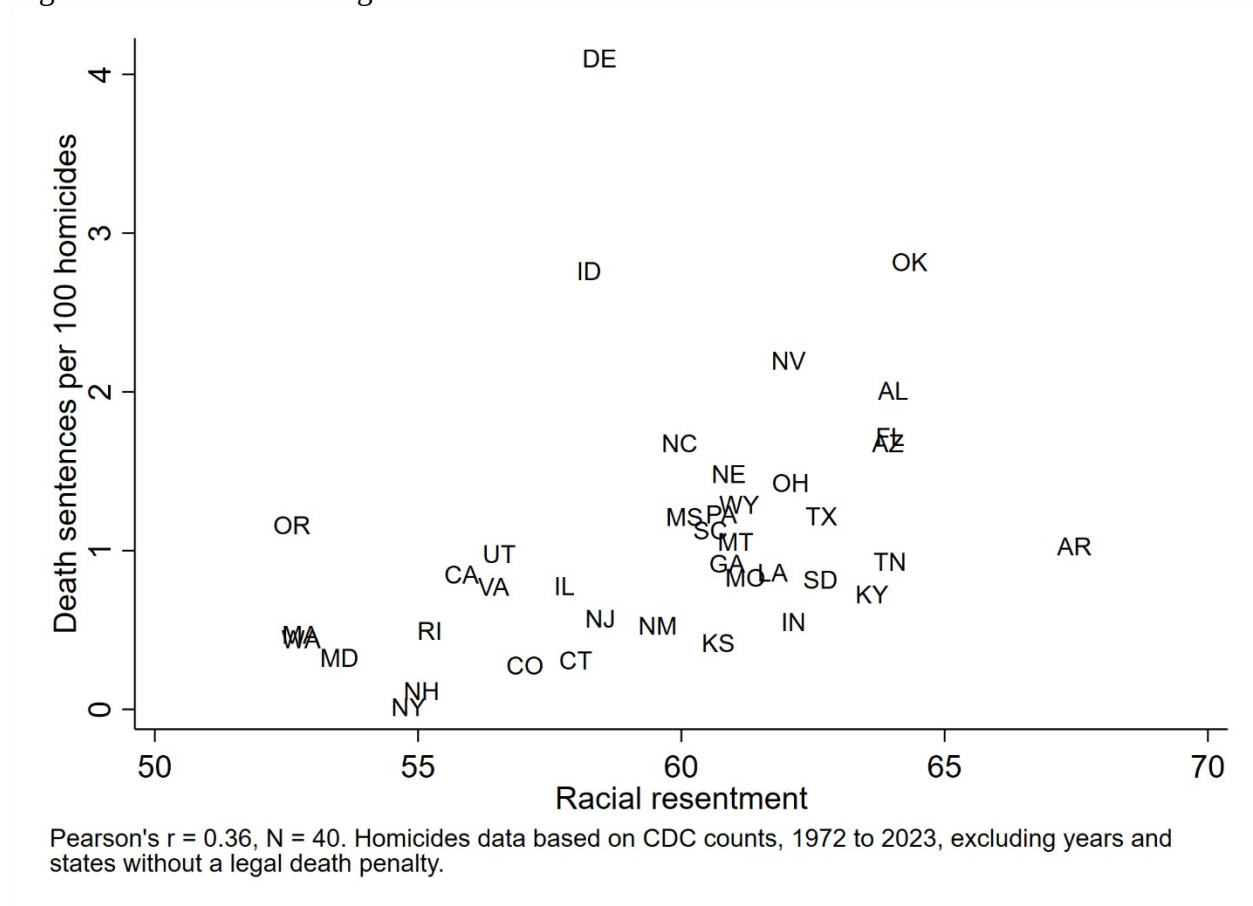


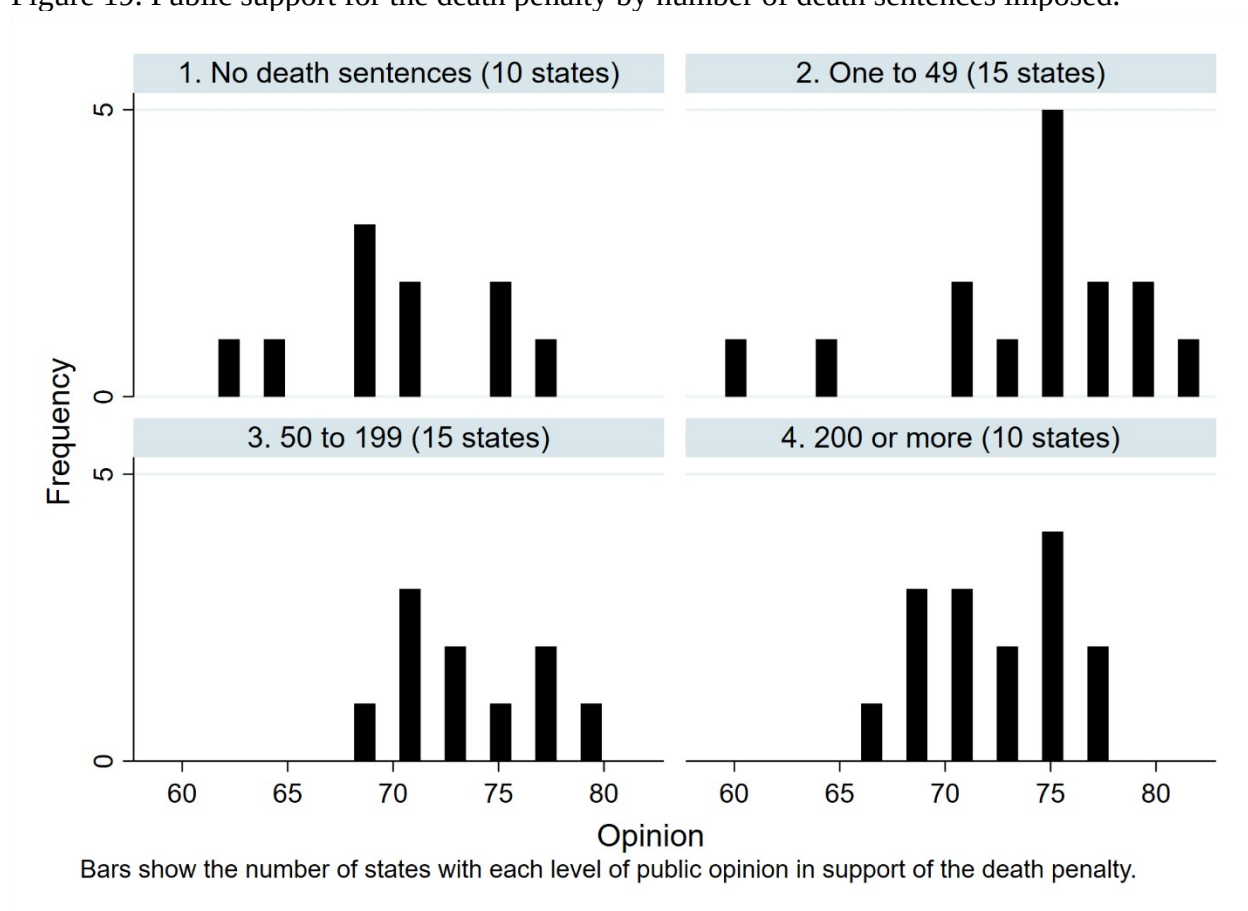
Figure 17 showed a relationship remarkably similar to that in Figure 18, with a modest correlation (0.34) similar to what we see here (0.36). Racial resentment at the state level explains just as much of the variability in death-penalty usage as public opinion directly on the matter.<sup>8</sup>

<sup>8</sup> Appendix E presents a version of Figure 10 where opinion is calculated only for those years where the state had a valid death penalty statute. Results are similar, though the correlation drops to 0.29.

In any case, looking at public opinion responsiveness by taking each state's entire modern history with the death penalty, we can see only a surprisingly modest connection between public support for capital punishment and its use. In fact, our measure of racial resentment at the state level performs just as well (or poorly) in predicting the rate of usage of capital punishment. (Our appendix materials show an even lower correlation, with a correlation of 0.07, when we use the absolute number of death sentences, rather than the rate per 100 homicides.)

Figure 19 demonstrates a similar pattern. It divides the 50 states into four groups: 1) ten states with no modern history of the death penalty; 2) 15 states with low usage (fewer than 50 death sentences imposed since 1972); 3) 15 states with moderate usage (50 to 199 sentences); and 4) the ten states with the highest usage. For each group, the bars show the distribution of public opinion support for the death penalty, the same values as in Figure 6 above.

Figure 19. Public support for the death penalty by number of death sentences imposed.



It is particularly noteworthy that the ten states with no modern history of the death penalty include states with substantial public opinion support for it.<sup>9</sup> The mean values of public opinion support for the death penalty across the four groups shown in the Figure are 70.5, 73.8, 73.2, and 72.9 as we move from group 1 to group 4. The differences in levels of public support for the death penalty are not statistically significant between any of the four sets of states.

We do not have data at a granular-enough level of aggregation to allow us to estimate public opinion support in particular cities or counties that have higher and lower levels of use of the death penalty. However, it is clear that a number of anomalies exist. Chicago, Philadelphia,

<sup>9</sup> Appendix E presents a version of Figure 11 where opinion is calculated only for those years where the state had a valid death penalty statute. Results are similar.

Houston, and Atlanta have been historically high users of the death penalty. Houston (Harris County), TX in fact has imposed more death sentences leading to execution than any American state, other than the remainder of Texas. However, given the demographic make-up of the city, with a high minority population, public opinion support for the death penalty in Houston is actually lower than in other parts of Texas (see Baumgartner et al. 2018, chapter 13). Similarly in Philadelphia and in Chicago, a racialized dynamic takes place where the aggregate public opinion values of county residents are not particularly supportive of the death penalty, but local prosecutors have long been aggressive in seeking and imposing death. Recent elections of progressive district attorneys such as Kim Ogg in Harris County, TX or Larry Krasner in Philadelphia, PA appear to be more in sync with local opinion, but the historical fact is that these high-minority counties have nonetheless had high-use prosecutors over much of their modern histories.

Los Angeles County is the single greatest-use county in the nation, with 320 death sentences imposed, but the five boroughs of New York City (each their own county according to the Census) account for just 3 death sentences. California as a whole has over 1,000 death sentences and New York State has just ten. Rather than public opinion differences, it seems that elite dynamics, including for example moderate Republican lawmakers in New York maintaining either an abolitionist stance, or a highly restrictive death-penalty law that made few crimes eligible for the punishment, have more to do with these differences. And of course, the imposition of a death sentence requires that the local district attorney seek death. These public officials differ dramatically in their willingness and interest in doing so (for examples, see Dieter 2013; Kovarsky 2016; Baumgartner et al., 2020). Such seemingly idiosyncratic dynamics

perhaps explain the modest state-level correlation between public opinion and the use of the death penalty.

While the correlation between opinion and usage is not perfect, the states do differ in levels of support, and these opinions also vary over time. In the next section, we turn to an effort to predict actual usage of the death penalty based on changes in levels of public opinion support. Here we find a greater degree of connection and responsiveness. Before we do that, we must create our own measures of opinion over time for each state.

## **9. State-Level Measures of Racial Resentment and Support for the Death Penalty over Time**

Section 2 made clear that there are dramatic differences over time in the degree of use of the death penalty, and in Section 8 we noted big differences across the states. For example, New York and New Hampshire, which, while they retained a death-penalty statute through much of the modern era (both states established in 1974, abolishing in 2007 and 2019 respectively), were always very low users, with just 10 death sentences in New York and a single one in New Hampshire. (New York was a major user of the death penalty in previous decades and centuries, carrying out the first execution by electric chair, for example; see Baumgartner et al. 2018 Chapter 2 for statistics on historical versus modern use of the death penalty by state.) At the other extreme, Texas leads the nation in executions, and three states, California, Texas, and Florida, have sentenced more than 1,000 individuals to death in the period since 1972. If New York has sentenced just 10, and executed none of them, but Texas (with a smaller population) has sentenced over 1,000 and executed 600,<sup>10</sup> it is clear that state cultures differ dramatically

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<sup>10</sup> Texas executions total 600 as of August 4, 2026; see DPI 2026a.

with regards to use of the death penalty. In this section we explore these differences by developing a new measure of public opinion on the death penalty by state over time.

### ***9.1. Developing Estimates of Death-penalty Support by State–Year***

We estimate a multilevel regression with poststratification (MRP) model for state-level opinion about the death penalty over time. The most recent such estimates come from Shirley and Gelman (2015) and Caughey and Warshaw (2022), so our update is timely and will be of value to scholars in state politics as well as those interested in capital punishment. It allows us to assess the connection between opinion and death sentencing state-by-state, extending the analysis from the previous section substantially.

The initial Bayesian multilevel model includes five individual-level demographic variables: education (4 categories), an interaction between gender and race (6 categories), age (4 categories), state, and Census region. We also include the state-level percentage of two-party votes attributed to the Democratic candidate in the most recent presidential election as a state-level smoothing variable. Though Shirley and Gelman (2015) fit a series of models for each year, we adopt the approach outlined by Gelman, Lax, Phillips, Gabry, and Trangucci (2018) to estimate a single “dynamic MRP” model to better characterize changes in death-penalty support in each state over time using the entirety of the data. The model includes a continuous time smoothing variable (year and year-squared), in addition to a random intercept for year, enabling partial pooling across time. We estimate the model using `rstanarm`. We then generate predictions for each combination of demographic groups and geographies and post-stratify these predictions using Public Use Micro Data Samples from IPUMS and the Census Bureau (Ruggles et al., 2025).

We estimate our MRP model predicting public opinion on the death penalty using 33 unique Gallup polls and ANES surveys from 1971 to 2020. Further information on the sample sizes and demographic breakdown of the included polls can be found in Appendix B. The resulting MRP estimates are well correlated with existing measures of state level support for the death penalty (see Appendix B), and the national estimates follow a similar trajectory as those estimates calculated using the Stimson dyad-ratios algorithm. Note, however, that by using the Gallup and ANES surveys we are generally using the “Gallup murder” question; Figure 1 showed that answers to this question skew in the supportive direction generally, compared to other question wordings. Still, we expect the results to be consistent over time and across states.

Figure 20 presents a map highlighting the estimated proportion of each state that supports the death penalty for nine years in our sample. Figure 21 plots estimated levels of support for the death penalty over time in five states: Florida, Texas, California, New York, and Massachusetts. (See Appendix B for further information including individual state estimates associated with Figures 18 and 19.)

The figure displays nine maps of the United States, each representing a different year from 1972 to 2020 in increments of six years. Each map is a choropleth where the shading of each state indicates the level of support for the death penalty. The legend at the bottom shows a grayscale gradient from light gray (0.5) to dark gray (0.8), with intermediate ticks at 0.6, 0.7, and 0.8. The maps show a clear trend where states that were light gray in 1972 (e.g., California, New York, Illinois, Michigan, Minnesota, Wisconsin, Indiana, Ohio, Pennsylvania, New Jersey, Delaware, Maryland, Virginia, North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Louisiana, Texas, Oklahoma, Kansas, Nebraska, Colorado, New Mexico, Arizona, Nevada, Idaho, Utah, Wyoming, Montana, North Dakota, South Dakota, Iowa, Missouri, Arkansas, West Virginia, Kentucky, Tennessee, Kentucky, Alabama, Georgia, South Carolina, North Carolina, Virginia, Maryland, Delaware, Pennsylvania, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, Vermont, New Hampshire, Maine, Alaska, and Hawaii) became progressively darker over time, indicating a shift towards higher support for the death penalty. By 2020, many of these states were in the darkest shade of gray, indicating support levels of 0.8 or higher. Conversely, states that were dark gray in 1972 (e.g., Montana, North Dakota, South Dakota, Nebraska, Kansas, Oklahoma, Texas, Louisiana, Mississippi, Alabama, Georgia, South Carolina, North Carolina, Virginia, Maryland, Delaware, Pennsylvania, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, Vermont, New Hampshire, Maine, Alaska, and Hawaii) remained dark gray or became even darker, indicating consistently high support for the death penalty.

Figure 21. Support for the death penalty over time, selected states.



Figures 18 and 19 make clear that there is significant movement over time as well as variance from state to state in death-penalty opinion. Figure 20 shows much darker shading on average in 1984, 1990, 1996 and 2002 before a significant national movement returning in the direction of the early 1970s. The same trends are apparent in Figure 21, which also illustrates the consistent (though not identical) relative positioning of the states. Texas and Florida consistently show higher levels of support than New York and Massachusetts. Note that the movement over time is greater than the differences across the states shown. New York begins the series below 50 percent support, rises to almost 80 percent, then declines again to close to its own starting point, a shift of approximately 30 points up, then 30 points down. Both New York and Massachusetts show higher levels of support of the death penalty in the mid-1990s than either Florida or Texas does in the early or later years of the series. This double movement, both spatial and temporal, is

key to understanding opinion trends and patterns. In fact, there is more movement over time than there is from state to state.

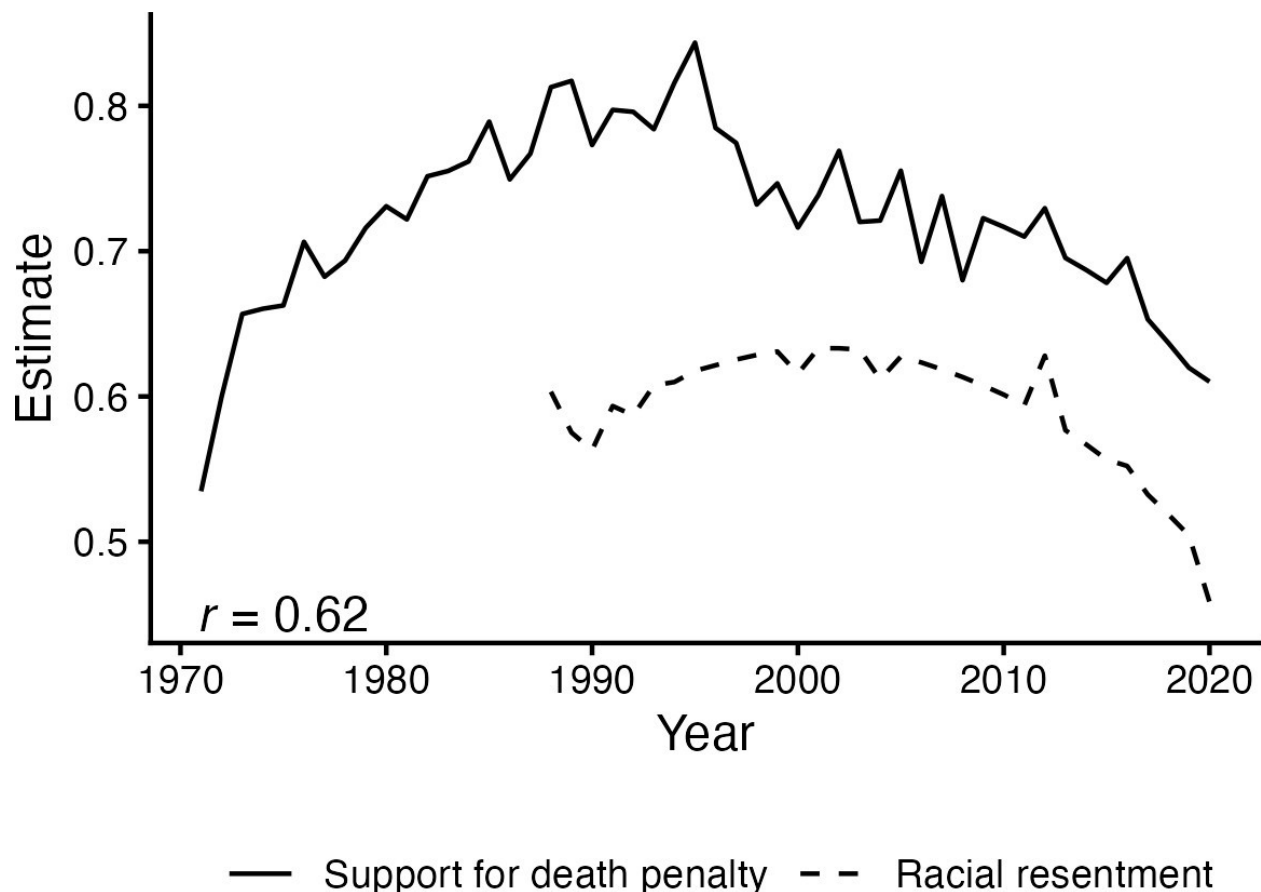
## ***9.2. An MRP Estimate of Racial Resentment by State–Year***

We estimate an MRP-based estimate for racial resentment using the same methodologies as described in the previous section for death-penalty support, updating the work already completed by Smith et al. (2020). This allows us to show the tight connections between our two opinion measures: death-penalty support and racial resentment, and their mutual connection to the actual numbers of death sentences imposed in each state over time. These analyses show the racially contaminated nature of public opinion on the ultimate punishment; at the aggregate level, what politicians might be paying attention to cannot be distinguished from racial resentment.

We use largely the same procedure for the racial resentment MRP as we did for the death-penalty MRP in Section 3. Data come from the ANES for years where all four racial resentment items were asked between 1988 and 2020. An individual’s racial resentment score was calculated as a simple index of responses to all four items. Scores range from 0 (least) to 1 (most). We estimated a Bayesian hierarchical linear model to predict individual-level racial resentment based on the same demographic and state level variables as before: namely, age (4 categories), sex–race interaction (6 categories), education (4 categories), state, Census region, and state level presidential vote share. Poststratified estimates can be thought of as the average racial resentment score in the state for that year. Validation of the MRP estimates against Smith et al.’s (2020) estimates can be found in Appendix B.

Figure 22 shows the results of this analysis, overlaying our new measure of racial resentment with that of death-penalty support. Note that the racial resentment measure does not extend as far back in time because of the availability of survey data.

Figure 22. Death-penalty support and racial resentment over time.

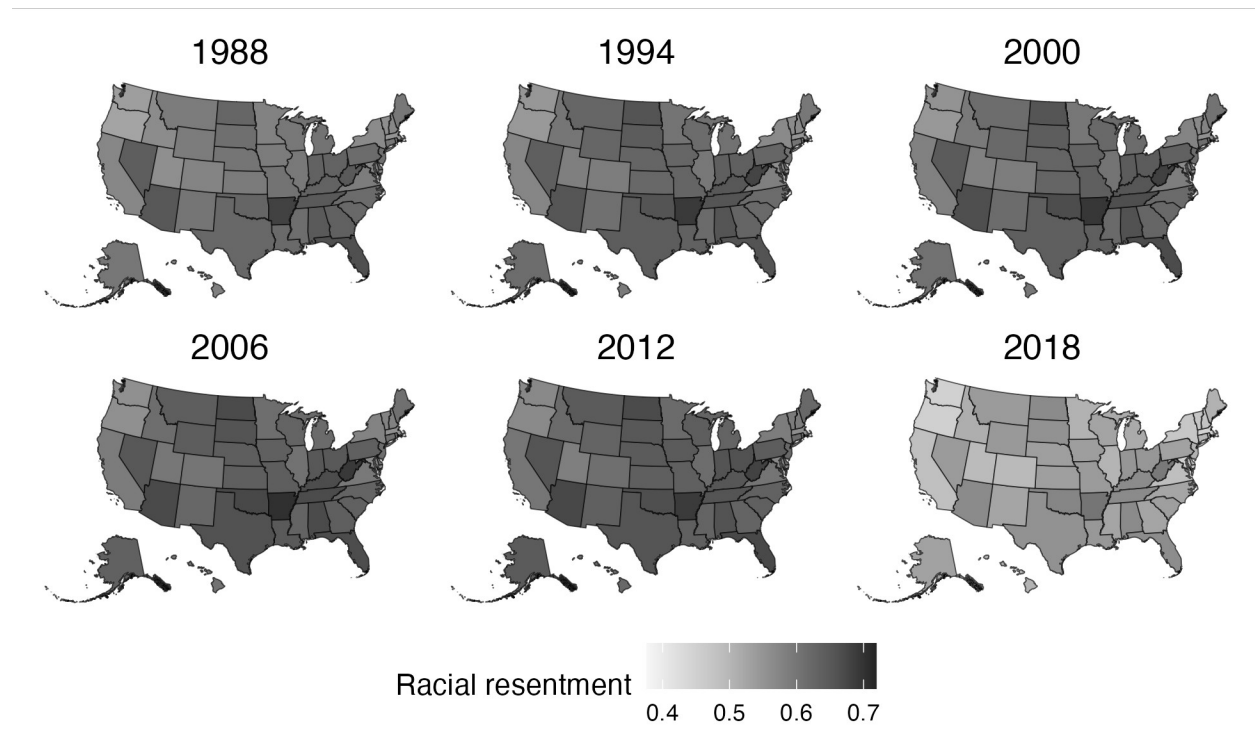


While these estimates are on ostensibly different scales, they follow a fairly similar trajectory, with both measures beginning to decline in the 2000s.<sup>11</sup>

Figure 23 presents a map showcasing each state's estimated average racial resentment score across 6 years. These results parallel those of Figure 20 above. Resentment appears to peak nationally in the period near 2012 and to decline after.

<sup>11</sup> State by state comparisons are included in Appendix B. The patterns are broadly similar. National estimates are shown here for simplicity.

Figure 23. Racial resentment by state over time.



## 10. Predicting State Death Sentences by Year with Public Opinion

Having developed a state-year measure of levels of public opinion support, we turn now to use it to predict the number of death sentences imposed in a state in a given year, controlling for such factors as homicides and crime rates. This analysis provides further evidence about the substantive importance of public opinion. Political leaders seeking public support use the death penalty as a way to signal their position; district attorneys advertise their support (or opposition) to the punishment and are in a position to act on these statements. Therefore, it should be no surprise that there is a strong link between opinion and policy. This might be seen as a

normatively appealing feature of the US political system, as it shows responsiveness to public opinion. Policies appear to reflect the wishes of the people.

To assess the impact of public opinion on death sentencing, we estimate a negative binomial model, regressing the number of death sentences imposed in a state in a given year on the state-level estimates of public support for the death penalty from the previous year, controlling for a number of institutional and demographic factors. All independent variables are lagged one year. Data on death sentences comes from Baumgartner 2026. We begin with a model focused on death-penalty opinion, and in a later section we add racial resentment. Recall that our measure of public support for the death penalty is available from 1971 through 2020 but the racial resentment measure covers only the period of 1988 through 2020.

### ***10.1. Public Support for the Death Penalty and Death Sentencing***

Because the imposition of death sentences in a state is dependent upon which crimes are death-eligible, we control for the number of homicides.<sup>12</sup> We also control for the violent crime rate in the state. Data on homicides and violent crime rates come from Jacob Kaplan (2025). To account for national trends or shocks that exogenously increase death sentences in a given year, we include a random intercept for year.

We control for a number of institutional and political variables that may be linked to death sentencing. To disentangle the effects of death-penalty opinion and general political attitudes, we include an estimate of state-level economic ideology from Caughey and Warshaw (2022).

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<sup>12</sup> States or state-years without the death penalty are not included. States with the death penalty determine their own eligibility factors, and these are not identical across states. New York, for example, had a highly restrictive death penalty statute, as does Oregon currently. Other states, California for example, have laws that render the vast majority of homicides at least theoretically eligible for capital punishment (see Baldus et al. 2019). We have not modeled these differences explicitly, but we use random state intercepts, as explained below.

Because elected judges appear more punitive than others (e.g. Brace and Boyea 2008; Canes-Wrone et al. 2014), we include a binary variable that indicates whether a state elects trial court judges of general or criminal jurisdiction.<sup>13</sup> Data on judicial selection comes from the Council of State Governments (2022). We also control for whether the state has a Republican governor in a given year and the percentage of the state legislature that is Republican. These data come from Jacob Kaplan (2021) and Thomas (2022 based on underlying data provided by Klarner (2013) and the National Council of State Legislatures).

We also account for several demographic factors, namely the white poverty rate and the percent Black population. We also include an indicator variable for whether a given state is in the South (Census region). Demographic and geographic data is from the Census Bureau. All models include an offset for state population. Though we include a number of controls, to account for other state level factors that could impact death sentences (i.e. legal cultures, death-eligibility laws regulating use of the death penalty etc.), models include a random intercept for state. To account for any year-to-year shocks in death sentencing, we include a random intercept for year.<sup>14</sup> Analyses are restricted to only those states where the death penalty was legal during that year in order to exclude structural zeroes.

Table 13 presents the results of the regression for 1973 to 2021. To ease interpretation, support for the death penalty was rescaled as a percentage (rather than proportion) before estimation.

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<sup>13</sup> States that select trial court judges via election are coded as one for this variable. If a state appoints judges for their first term who are then subject to retention elections, those states are coded as zero—however, the results are robust to the inclusion of retention-only states. States with mixed selection systems, wherein some counties elect judges and others do not, are coded as having elected judges.

<sup>14</sup> We believe the decisions relating to controls and state-year intercepts underlying the model in Table 13 are conservative and appropriate. We present extensive robustness tests in Appendix B using alternative specifications. Results are similar or stronger under the alternative specifications.

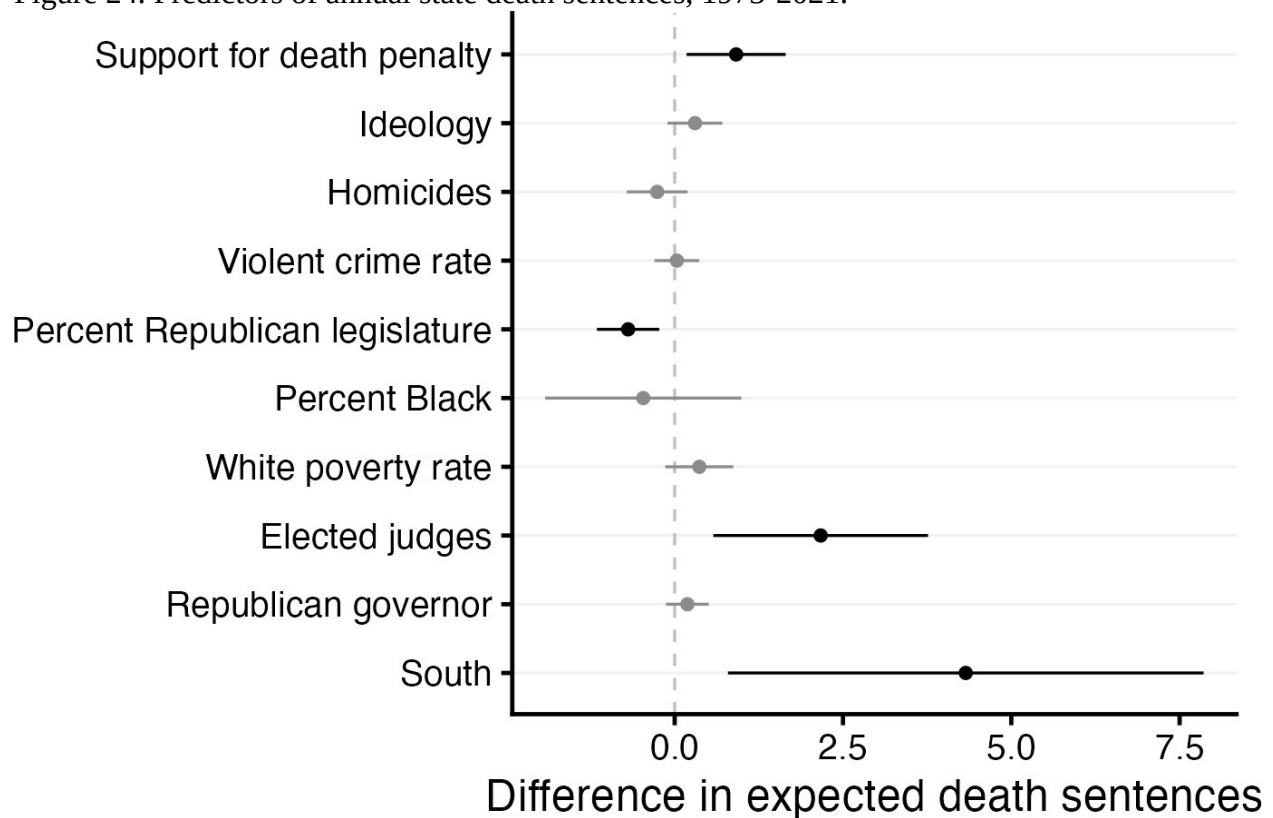
Table 13. Predicting annual state death sentences, 1973 to 2021.

| Predictor Variables            | Death Sentences Imposed |
|--------------------------------|-------------------------|
| Support for death penalty      | 1.0419**<br>(0.0144)    |
| Ideology                       | 1.3795<br>(0.2886)      |
| Elected judges                 | 2.3119*<br>(0.7530)     |
| Homicides                      | 0.9999<br>(0.0001)      |
| Violent crime rate             | 1.0000<br>(0.0002)      |
| Republican governor            | 1.0542<br>(0.0461)      |
| Percent Republican legislature | 0.9896***<br>(0.0028)   |
| Percent Black                  | 0.9877<br>(0.0180)      |
| White poverty rate             | 1.0396<br>(0.0281)      |
| South                          | 3.6454***<br>(1.4170)   |
| N                              | 1,632                   |
| AIC                            | 6601.03                 |
| BIC                            | 6676.59                 |

Note: Cell entries are incident rate ratios from a negative binomial mixed model, with standard errors in parentheses. Model includes random intercepts by state and year. Dependent variable is the number of death sentences in a given year in a given state. \* =  $p > 0.10$ ; \*\* =  $p > 0.05$ ; \*\*\* =  $p > 0.01$ . See Appendix B for extensive robustness tests and alternative specifications.

Figure 24 illustrates the expected difference in the number of death sentences associated with changes in each of the explanatory variables.

Figure 24. Predictors of annual state death sentences, 1973-2021.



Note: See Table 8. The Figure shows the difference in expected death sentences from a one standard-deviation change in each independent variable shown. For binary variables (elected judges, Republican governor, and South), the estimate represents the effect of moving from 0 to 1.

Few of the variables in the model have a significant effect; the key predictors are being in the South, having elected judges, having fewer Republicans in the legislature (an unexpected finding), and a public opinion profile that supports the death penalty. Having a Republican governor, poverty, percent Black in the population, violent crime, homicides, and general ideology are all non-significant predictors in the model. Moving by one-standard deviation on the public opinion relating to the death penalty appears to have a modest but significant effect on the number of death sentences.

## ***10.2 Adding Racial Resentment to the Model***

The analysis just presented revealed important spatial and temporal variation in death-penalty support. The degree of public support or opposition to the death penalty is a powerful predictor, one of only a few statistically significant predictors in fact, of the number of death sentences imposed in each state in a given year. This all demonstrates a powerful connection between opinion and policy, a strong dynamic process of responsiveness. In this section we begin to evaluate something much more troubling. This responsiveness has a lot to do with race.

Table 14 repeats the analysis from Table 13 predicting the number of death sentences in a given year on the subset of years for which we also have estimates of states' average racial resentment. Model 1 repeats the analysis from Table 13 for the more limited time frame so that its values are fully comparable with the models including racial resentment. Model 2 substitutes the racial resentment measure for the direct measure of public opinion support of capital punishment. Model 3 includes both support for the death penalty and racial resentment.

Table 14. Predicting annual state death sentences with public opinion and racial resentment.

| Predictor Variables            | Model 1               | Model 2               | Model 3               |
|--------------------------------|-----------------------|-----------------------|-----------------------|
| Support for death penalty      | 1.1407***<br>(0.0131) |                       | 1.1274***<br>(0.0133) |
| Racial resentment              |                       | 1.1024***<br>(0.0275) | 1.0431*<br>(0.0177)   |
| Ideology                       | 0.6947<br>(0.1557)    | 0.8899<br>(0.2201)    | 0.6497<br>(0.1442)    |
| Elected judges                 | 2.3827**<br>(0.7797)  | 1.9652*<br>(0.6669)   | 2.1903*<br>(0.7051)   |
| Homicides                      | 0.9998*<br>(0.0001)   | 0.9998<br>(0.0001)    | 0.9998<br>(0.0001)    |
| Violent crime rate             | 1.0002<br>(0.0002)    | 1.0003<br>(0.0002)    | 1.0002<br>(0.0002)    |
| Republican governor            | 1.0251<br>(0.0426)    | 1.0188<br>(0.0472)    | 1.0236<br>(0.0461)    |
| Percent Republican legislature | 0.9894***<br>(0.0030) | 0.9952<br>(0.0032)    | 0.9896***<br>(0.0029) |
| Percent Black                  | 1.0291<br>(0.0191)    | 1.0082<br>(0.0190)    | 1.0284<br>(0.0188)    |
| White poverty rate             | 0.9649<br>(0.0279)    | 0.9828<br>(0.0311)    | 0.9622<br>(0.0271)    |
| South                          | 2.2979*<br>(0.8629)   | 1.9603<br>(0.7773)    | 2.0293<br>(0.7559)    |
| N                              | 1,098                 | 1,098                 | 1,098                 |
| AIC                            | 3836.89               | 3900.40               | 3833.27               |
| BIC                            | 3906.91               | 3970.42               | 3908.29               |

Note: Cell entries are incident rate ratios from negative binomial mixed models, with standard errors in parentheses. Models include random intercepts by state and year. Dependent variable is the number of death sentences in a given year in a given state. \* =  $p > 0.10$ ; \*\* =  $p > 0.05$ ; \*\*\* =  $p > 0.01$ .

The results in Model 1 are consistent with those from Table 13, above. Death sentences correlate with public opinion, elected judges, Republican legislatures (inversely), and being in the South.

The N here is 1,098 rather than 1,632 in Table 8 because the analysis is restricted to the time-period available for the resentment measure. Model 1 allows a direct comparison of resentment

with death-penalty opinion, using the same time period for both models. Its similarity to the results in Table 8, which uses a longer time period, indicates the robustness of these results.

Model 2 substitutes resentment for death-penalty opinion, and Model includes both measures. Model 2 performs slightly less well than Model 1, which makes theoretical sense because predicting death-penalty usage would be expected to be more strongly connected to death-penalty opinion rather than any other opinion measure. Model 3 then includes both measures. This specification is revealing because there are so many statistically insignificant predictors, and we know that death-penalty opinion is correlated with racial resentment (see Section 7), yet resentment comes through as a significant predictor even when simultaneously controlling for opinion on the death penalty.

Figure 25. Predicted and actual death sentences in two models.

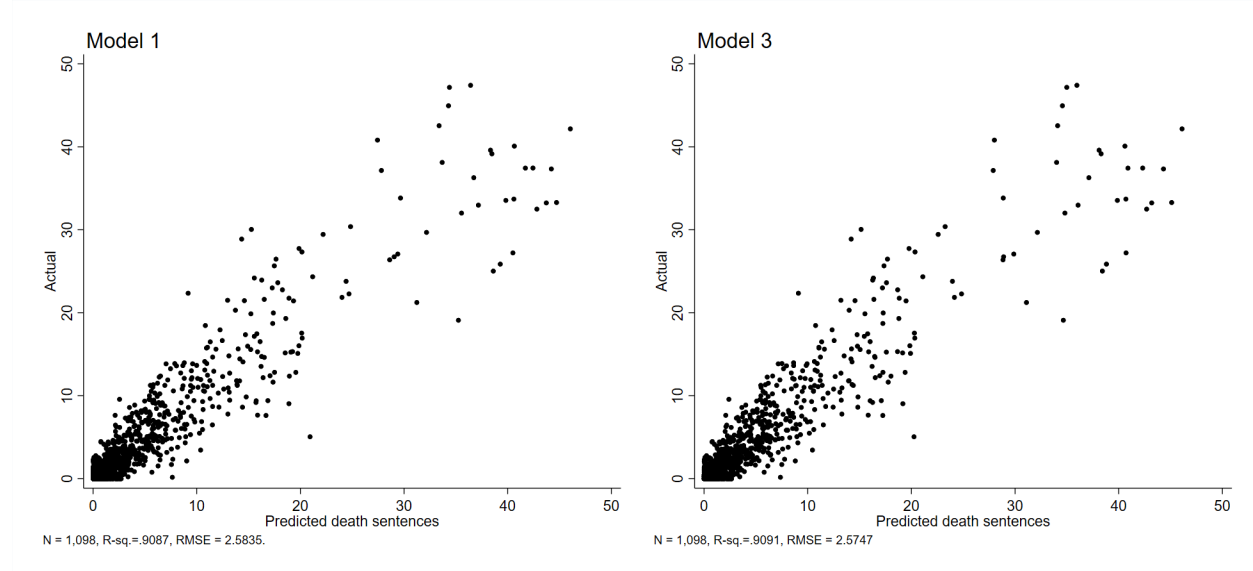


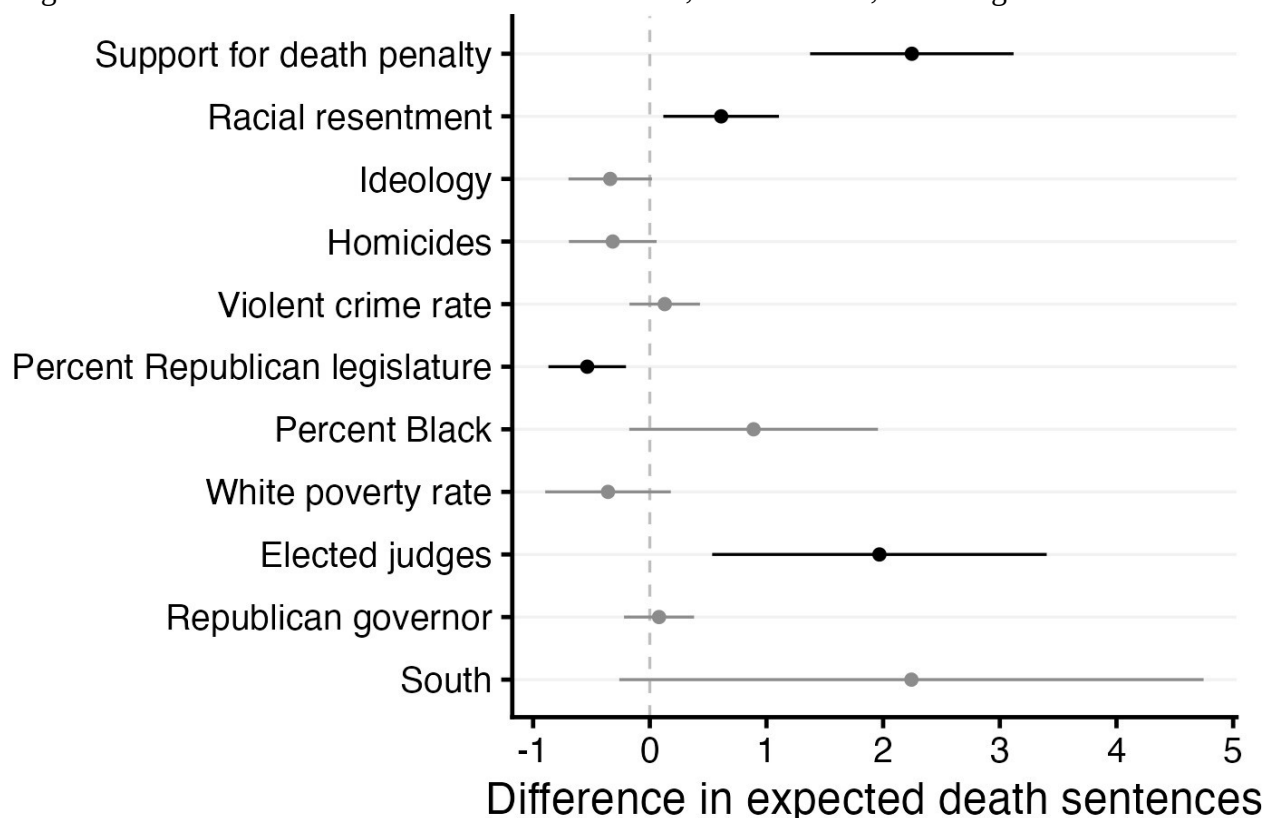
Figure 25 shows the predicted number of death sentences along the x-axis and the actual or observed number on the y-axis. The left pane shows results from Model 1, which excludes racial resentment, and the right pane shows the results from Model 3, which adds it in. The data are slightly “jittered” so that overlapping dots can be observed. (Note that 386 of the 1,098

observations have an actual value of zero, so there is a lot of overlap at that point and for other low values.)

Two important interpretations derive from Figure 25. First, both models do a very good job in explaining the number of death sentences; the R-squared value is above 0.90 in both cases, indicating that the models explain more than 90 percent of the variability in states' usage of the death penalty. Second, Model 3 improves (though only slightly) on Model 1. The R-square value increases from 0.9087 to 0.9091 and the root mean squared error, another measure of the residual unexplained variance, declines from 2.58 to 2.47. These are perhaps modest improvements, but they are improvements nonetheless. And, it is hard to improve on a model that already explains over 90 percent of the variance.

Figure 26 illustrates the expected difference in the number of death sentences associated with changes in each of the explanatory variables from Model 3 of Table 9.

Figure 26. Predictors of annual state death sentences, 1989 to 2021, including racial resentment.

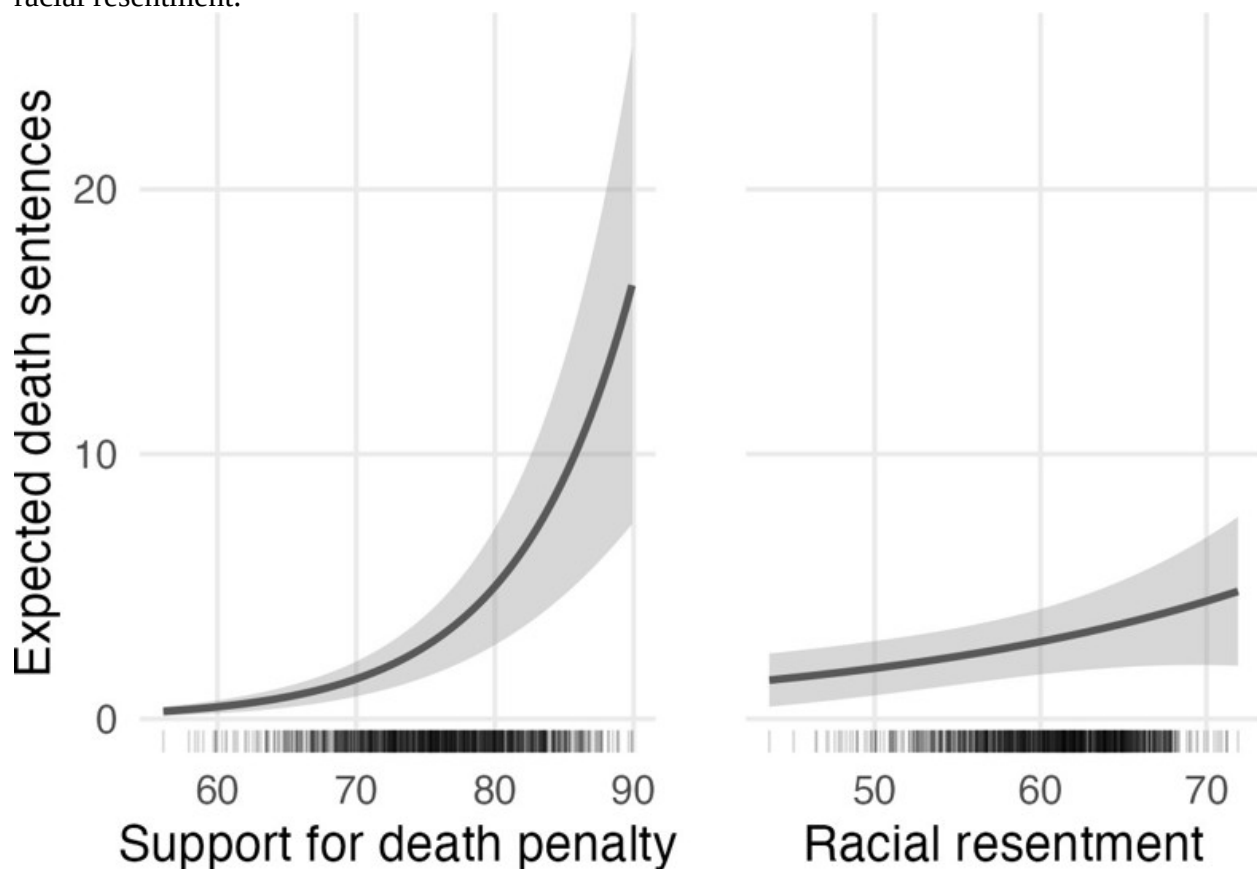


Note: Estimates from model 3 in Table 9. For binary variables (elected judges, Republican governor, and South), displayed estimate represents the effect of moving from 0 to 1. Model includes state and year random intercepts

Racial resentment is not as strong a predictor of death sentences as a direct measure of public opinion support for capital punishment, but it stands out as one of the few significant predictors in a model that also includes a direct measure of opinion. General political ideology shows statistically null (and mis-directed) effects; homicides and the violent crime rate are not significant; percent Black in the state population is not driving it; having a Republican governor is not associated with it, but racial resentment is.

Figure 27 shows the number of expected death sentences in a given state-year based on the results from Table 14 and Figure 26. The estimates in Figure 27 assume a state with a population of 10 million and all other factors from Table 14 at their mean or modal values.

Figure 27. Expected number of death sentences by state levels of death-penalty support and racial resentment.



Note: Estimates from Model 3 in Table 9. Model includes state and year random intercepts. Predictions are calculated separately across the range of death-penalty opinion and racial resentment with population set at 10 million and all other variables held at means or modes.

States and years with high levels of racial resentment can be expected to impose more death sentences. The relationship is clearly not as strong as that for death-penalty opinion, but it remains a significant predictor even when death-penalty opinion is held constant. These results are remarkable because racial resentment is such a strong predictor of death-penalty opinion. That is, it is already incorporated into the measure of support for the death penalty, which Figure 27 shows has a very large impact on actual usage. But, even after racial resentment has had its impact on sentencing because of being a driving force in public support for the death penalty, the Figure also shows a residual factor. Holding opinion (and everything else) constant, states and years with higher levels of racial resentment have more death sentences; where such feelings are

lower, death sentences are fewer. These are statistically significant effects even after the main work has been done by public opinion. Racial resentment therefore has an indirect effect on sentencing (through opinion) as well as a direct effect.

## **11. The Enduring Story of Race in American Politics**

We conclude with reflections on the specifics of the death penalty and then with broader reflections on US politics. Regarding the death penalty, no one involved in the process would honestly and sincerely deny the powerful racial dynamics at play. Race is not the only thing at play, of course. Randomness and caprice were the grounds on which the US Supreme Court found the death penalty unconstitutional in 1972. But race came in second, even at the time. The Justices concluded that it had not been clearly demonstrated as a driving force in the system, so they “put it to one side” and ruled on other bases (see Justice Stewart, concurring, *Furman v. Georgia*, 310). The response to the Furman decision was just as telling as the decision itself. States mobilized almost immediately to re-enact their death-penalty systems, acting in response to the Court’s ruling of bias not by insuring safeguards against a racially disparate application of the death penalty, but enthusiastically endorsing the punishment’s full history (see, Banner 2002; Garland 2012; Steiker and Steiker 2016).

Our findings are unsettling and unpleasant—disturbing even. If there is one study whose results ours seem to amplify the most, it is that by Peffley and Hurwitz (2007), who conducted an experiment to understand White and Black attitudes on the punishment. We quoted from their conclusion: “a majority of whites refuses to abandon support for the death penalty despite evidence that the policy is highly flawed” (Peffley and Hurwitz 2007, 1008). At this point it seems fair to suggest that these authors were being polite, or pulling their punches. It seems more likely than not that many White Americans support the death penalty because, not in spite, of its

racialized application. No open-minded and knowledgeable American can honestly say they believe that capital punishment and race are not connected. The question is whether this is considered a flaw or a feature. Our evidence strongly, if inconveniently and awkwardly, points to the conclusion that many Americans see this as a feature. We are wrong to think that everyone opposes racial discrimination but that some may accept it as a necessary evil or an unintended but hard-to-avoid consequence of our crime policies. It seems more straightforward to stare at the evidence straight-on and conclude something more troubling: Many Americans support the death penalty because it is racist.

Race deeply informs preferences regarding the death penalty. This is nothing out of the ordinary in the study of American politics. It was indeed the issue of race which fractured the political equilibrium of the New Deal Democratic coalition (Carmines and Stimson, 1989; Hutchings and Valentino 2004), animating the transition from concerns over redistribution to bitter conflict over matters of culture (Hetherington and Weiler, 2009; 2018). Race also affects how White Americans evaluate a host of political objects, including Black political candidates (Knuckey and Orey, 2000; Tesler, 2013), spending on welfare (Soss et al., 2003; Gilens, 2009), healthcare (Tesler, 2012), and affirmative action (Kinder and Sanders, 1996), to name just a few.

Emerging research has also found other innovative ways that demonstrate the importance of race in American political development. Acharya et al. (2018) find that White Americans in the South who live in counties with a high share of enslaved people prior to the abolition of slavery are more likely to express higher levels of racial resentment and more hostile feelings toward Black Americans. Jardina (2019) shows that while out-group prejudice is robust in affecting support for Republican candidates and racially conservative policies, in-group favoritism among Whites is also a powerful determinant of racial preferences, capturing an ethnocentrism that has

increasingly been identified by scholars of political science (Parker and Barreto, 2015; Lieberman and Scholzman, 2026).

What the empirical work above shows is that race has a structural role in American politics. The death penalty, as we have demonstrated, is yet another example of race showing its head. In his seminal work on the study of American race relations, Gunnar Myrdal (1944) stated as its central thesis: “The American Negro problem is a problem in the heart of the American. It is there that the interracial tension has its focus. It is there that the decisive struggle goes on” (p. xlv).

## Appendices

Please see our on-line appendices for further information, robustness tests, alternative specifications of the models used in the text, and background information. Our website also includes replication data and other resources.

**Appendix A.** Dyad-Ratios Algorithm.

**Appendix B.** MRP models.

**Appendix C.** ANES analyses.

**Appendix D.** GSS and CMPS analyses.

**Appendix E.** State Comparisons.

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